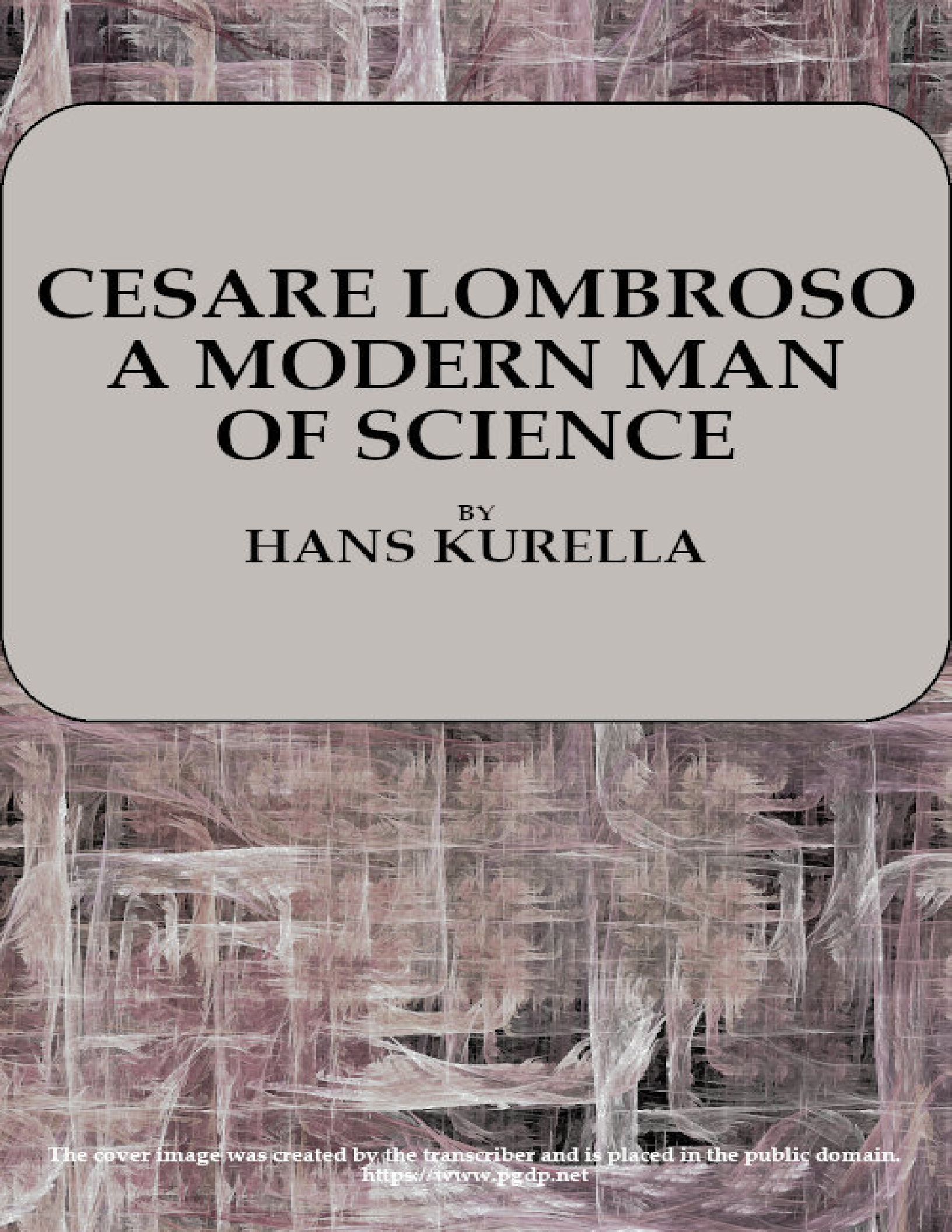
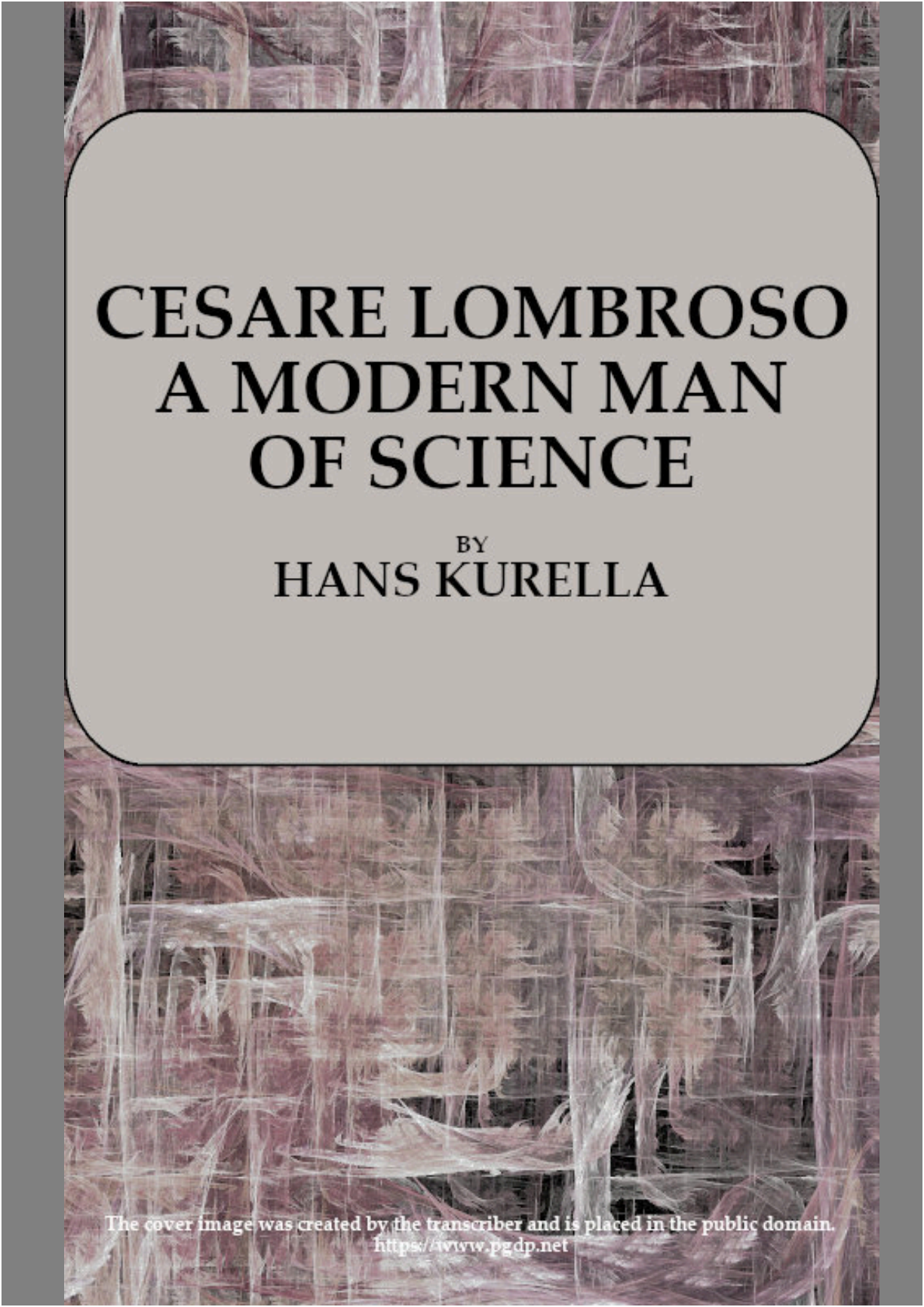




CESARE LOMBROSO A MODERN MAN OF SCIENCE

BY
HANS KURELLA



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CESARE LOMBROSO, A MODERN MAN OF SCIENCE ***

CESARE LOMBROSO
A MODERN MAN OF SCIENCE

BY

HANS KURELLA, M.D.

AUTHOR OF "NATURAL HISTORY OF THE CRIMINAL," ETC.

TRANSLATED FROM THE GERMAN BY

M. EDEN PAUL, M.D.



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PREFACE

The subject of this little book is, as its title shows, Cesare Lombroso, the man and the investigator; it makes no attempt to deal adequately with Lombroso, the reformer of criminology and criminal sociology. To do justice to Lombroso's work in the latter respect would be impossible, without at the same time writing the history of the Italian school of "positive criminal jurisprudence" and that of the influence of that school upon important tendencies of the public life of all the leading civilized peoples. It would also be impossible without dealing at the same time with the plan of the new German criminal code. For many reasons I have refrained from any such attempt; above all, in view of limits of space. None the less, I have dealt with Lombroso's activity as a reformer as far as this was essential in order to do justice to the personality of the deceased investigator.

Certain brief sections of this book have, with considerable modifications, been taken over from my earlier publications upon the development of criminal anthropology. Entirely new, however, is the attempt here made to demonstrate how high is the position Lombroso may justly be said to have occupied in a brilliant epoch of positive study of the world, of mankind, and of society. In order to illustrate the positive mode of thought, I have in an Appendix, to which I especially direct the reader's attention, attempted a tabular statement of the facts and documents of positivism during the middle decades of the

nineteenth century. The inclusion in this tabular statement of the principal writings of Herbert Spencer is the result of mature consideration and of a renewed careful study of his essay entitled "Reasons for Dissenting from the Philosophy of M. Comte." Comte's philosophy represents merely the reflection of positivism about itself, and is no more than the introduction to the completer development of positivism.

HANS KURELLA.

BONN, *Whitsuntide*, 1910.

PREFATORY NOTE BY THE TRANSLATOR

I take this opportunity of expressing my grateful acknowledgments to Mr. Havelock Ellis, who read my translation in manuscript, and made many valuable suggestions as to terminology.

M. EDEN PAUL.

MOORCROFT, PARKSTONE, DORSET.
Christmas, 1910.

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CESARE LOMBROSO

CHAPTER I

ANTECEDENTS—LOMBROSO'S PREDECESSORS IN RESEARCH

Cesare Lombroso was born in Verona, as an Austrian subject, on November 6, 1835, and was the second child in a family of five. His father Aron sprang from a Venetian mercantile family, whose origin can be traced back to a colony of North African Jews, trading with Leghorn, Genoa, and Venice. Again and again members of the Lombroso family settled in one or other of these ports. The branch to which he himself belonged had lived for several centuries in Venice and the Venetian territories on the mainland, of which from the year 1448 onwards Verona formed a part; they were patrician merchants, to whom the French occupation, occurring before Lombroso's father grew up, had brought full and equal privileges of citizenship.^{[\[1\]](#)} Several members of this Venetian family were distinguished by characteristic and vigorous action on behalf of the cause of enlightenment. In Virginia, North America, in the seventeenth century, the brother of a direct ancestor of Cesare Lombroso, at a great risk to himself of being burned alive, protested most energetically against the belief in witchcraft, and declared that the reputed witches were "hysterical" merely.

The French emancipation of Upper Italy was followed in 1814 by the Austrian reaction, but the family suffered at

this time from the decline in economic prosperity (interrupted for a while in 1830, when Venice became a free port) upon which its own well-being and patrician position had been dependent.

The formation of the Hapsburg Kingdom of Lombardy and Venice put an end for the time being to equality of civil rights for the Jews; and Verona was one of the few towns of the district in which Jewish boys were allowed to attend the Gymnasium (public school), now removed from the control of the freethinkers, and handed over to that of the Jesuits.

When Lombroso's mother, Zefira Levi, married Aron Lombroso in the year 1830, she stipulated that her children must be brought up in a place in which it would be possible for them to attend the higher schools.

The marriage with Zefira Levi, who belonged to a rich family engaged in the higher branch of industrial life, did not suffice to prevent the onset of poverty; and the youth of the five children of the marriage was passed in narrow circumstances. The mother, richly endowed both in mind and in character, and deeply concerned regarding the upbringing and culture of her children, remained her son's confidant. She nourished in him the love of freedom and the sense of independence, both of which were dominant in her parental home at Chieri, one of the centres of activity of the Carbonari. Chieri, an industrial town of Piedmont, lay beyond the sphere of influence of Haynau and Radetzky, who, with the aid of their Croats and Tschechs, encouraged the feudal and clerical reaction in Venice, Verona, and Milan.

Lombroso's father was an amateur as regards practical life, a man who had grown up under the influence of the French spirit and in a perfectly free social state, a man of great goodness of heart, but as little fitted to cope with the influences of the economic decay of the Venetian State as he was with those of the Austrian reign of terror.

During Lombroso's childhood there occurred a conspiracy on the part of certain Veronese patriots against the Austrian occupation, which was suppressed by the wholesale hanging and shooting of the conspirators; and when he was only thirteen years of age there took place the temporary freeing of Milan and Venice from the Austrian yoke (1848), an event in which the young men of Milan, the second largest town of the old Venetian Republic, played a lively part.

Lombroso's revolutionary tendencies in the field of science, and his small respect for what was traditionally established, were doubtless dependent upon the joint effect of the inherited tendencies and the youthful impressions I have described. An important additional factor in his development was his family's loss of fortune, consequent upon the political disturbances in Italy, which lasted until the re-establishment of the Austrian dominion. It was only the courage and capacity of the mother which saved the children from sinking into the ranks of the proletariat; but some loss of social position was inevitable, and the effect of this on Lombroso's distinctive temperament may be traced in the fact that he was a rebel from youth onwards, and strongly opposed the (vitalistic) doctrines professed at the Universities by the sons of the well-to-do. Thus it was also that he ventured a serious attack upon the interests of the great landed proprietors of Upper Italy by his descriptions of agrarian poverty and his bold exposition of the causes of pellagra.

The influence of the philosopher Vico, whose works were eagerly studied in secret at the Gymnasium (public school) of Verona, made him acquainted at an early date with the importance of the principle of organic development in relation to the structure and life of human society. Vico was studied *in secret*, because the Gymnasium was under the control of Jesuits with Austrian sympathies, who

deliberately discouraged all advanced ideas. In 1861 Lombroso wrote in his diary as follows: "It may be said of my schooldays without exaggeration that I was thrust back into an environment of persistent medievalism—not the later sentimental revival of the Middle Ages in romance and drama—but into the conditions that prevailed prior to 1789, literally restored by the might of the bayonets of 1814. The memory of this forcible discipline, which did violence to the inborn logical spirit, and visited with severe punishment any protests against its methods, is so hateful to me that even now it visits me in dreams like a nightmare." At the time of the introduction of Italian scholastic methods into the lands under Austrian rule, the well-known utterance of the Kaiser Franz is said to have originated: "I want, not educated, but obedient subjects."

While still at school, Lombroso was also introduced to the evolutionary idea by the writings and the powerful personal influence of the physician Marzolo, who endeavoured by means of comparative philology to explain the origin of the earliest religious and legal institutions. Ceccarel, Marzolo's biographer, in his first work on this investigator, published in 1870 (by Priuli of Treviso), writes as follows: "In 1850, when the first volume of Marzolo's '*Monumenti storici rivelati dall' analisi della parola*' was published, certain periodicals reviewed the book in the most favourable terms. But the writer himself was disappointed by their remarks, for he saw that his well-meaning critics had not really understood his ideas. Then one day he read in a journal published in Verona an article in which full justice was done to his book; he desired to make the acquaintance of this critic, whose name was unknown to him, and whose real understanding of Marzolo's views had delighted the latter for the first time in several years, and had at length rewarded him for his long and arduous labours. He imagined that the writer of the notice must be an advanced

but lonely scientific thinker, one who owing to his private circumstances or on account of the disturbed times had hitherto lived in retirement. But when the writer of the review came to see Marzolo at Treviso, it proved to be a youth only sixteen years of age—Cesare Lombroso—the first in all Italy to recognize the genius of Marzolo, bringing the love of a son and the devotion of a disciple.”

At the outset of Lombroso’s studies he was greatly influenced by reading Burdach’s “Handbuch der Physiologie,” a work rich in anthropological ideas. At the University of Pavia, Panizza^[2] was the only man who had much effect in shaping Lombroso’s mental development.

During the decade 1850 to 1860, on the other hand, Lombroso, as a self-taught man, was simultaneously influenced by three great contemporary and complementary tendencies—that of French positivism, that of German materialism, and that of English evolutionism. With the last-named he became acquainted through French intermediation. He never had any clinical instruction in psychiatry. He read the works of Charuigi, Griesinger, and the great psychiatrists of the school of Esquirol.

Lombroso’s attitude towards German materialism, by which in youth he was so powerfully influenced, is shown most clearly by two utterances of his regarding Moleschott. The first of these occurs in the preface to his Italian edition of Moleschott’s “Kreislauf des Lebens,” a translation not published till 1869, though written in the early sixties. (In the year 1854 Moleschott was expelled from Heidelberg on account of the publication of this work; from 1861 to 1879 he was professor of physiology in Turin.) The passage runs as follows (II.-III.): “At a late hour, perhaps, and yet when the time was ripe, and unquestionably with greater sincerity and fervour than has been the case with the other Latin peoples, Italy took part in the scientific movement of which this book formed the starting-point. But just because

she was so tardy an adherent, and in the endeavour, as it were, to make up for lost time, some persons in this country are apt to go too far; not only do they contest the old prejudices and the false authorities, but they also deny or misunderstand facts, simply for the reason that those in the other camp admit these facts, or because these facts appear to support the old doctrines. Thus they often follow leaders who are not entirely to be trusted, such as Büchner, Renan, and Reich; and they mistake declamations and confused rhapsodies for sound arguments, oppose fanaticism with fanaticism, and offer to their enemies the tools needed for the reconstruction of the buildings which have just been razed to the ground."

The other passage occurs in his obituary notice on Moleschott, written in 1893: "The whole course of modern science shows that the impulse it received from the life-work of Moleschott is destined, not only to persist, but to make further and more rapid progress. Moreover, the reputed philanthropists, whose objection was not so much to the truth itself as to the injurious consequences which they believed would follow from its publication, must see to-day that certain truths, however dangerous and alarming they may at first appear, lead ultimately to the general advantage, and to the advantage even of that morality on which it was at first supposed they would have a damaging effect. It no longer distresses us when we see that morality, thanks to social physics and political economy, must descend from its glittering but fragile metaphysical altar, in order to find in utility a modest but secure foundation, from which it becomes possible to render harmless or to diminish that crime which hitherto has mocked at penal methods."

In Vienna, in 1856, Lombroso passed the official examination for his medical degree. Here the influence of Skoda, and Lombroso's becoming acquainted with the early

works of Virchow, did not tend to induce in him sentiments of toleration towards the vitalistic doctrines dominant at the Italian Universities or towards the narrow circle of professors owing their appointment to Austrian influence and interested in the maintenance of these doctrines. He never ceased to be affected by this early opposition to academic tradition and to academic circles; in fact, it accentuated in him a certain natural tendency to paradoxes and heresies.

The inclination to exact observation,^[3] acquired through his contact with German science, led him to the study, with record of weights and measurements, of cretinism in Upper Italy;^[4] from this to the utilization of these methods for the instigation of an anthropometrical investigation of the population of Upper Italy; and also to the study of clinical psychiatry, at that time entirely neglected in Italy.^[5] The translation of Moleschott's epoch-making writings gave a finish to Lombroso's conception of the world; he broke loose from the speculative tendency of the psychiatry of the day, which at that time in Germany also was assuming the most remarkable forms; he turned with repugnance from the interminable discussions regarding the freedom of the will, and began, in the case of the insane, of criminal lunatics, and of criminals, to study their pathological anatomy (assisted here by Golgi), their sensory impressions, and their anthropological—and more especially craniological—peculiarities.

It is a well-known fact that from that day to our own the pathological anatomy of the psychoses has not furnished much in the way of positive results, not even to the most accomplished virtuosos of the methods of staining the fibres of the brain. Lombroso, to whom in Pavia Golgi for a long time acted as assistant, wisely refused to limit himself to the study of pathological anatomy, but always

investigated side by side with this the clinical features of the psychoses and neuroses.

From the first he inclined to the view that the exact measurement and description of skulls and brains would lead to the discovery of definite distinctions between sane and insane criminals, between lunatics and epileptics, etc.

Whilst he never ignored clinical observation and the study of the sensory functions, he gave the first place to weights and measurements: these were to him the guarantees of an exact method of procedure; and he was led to borrow the instruments and methods of anthropology on account of his postulate for an anthropology of lunatics and criminals. In his interpretation of the facts thus obtained he was guided chiefly by the sane materialism of Moleschott and by the Darwinian idea of the variability of races. As a disciple of Vico, he saw nothing absurd in the view that an apparently purely social phenomenon, such as crime, can be organically caused.

The chance discovery of theromorphism (the expression is Virchow's, and denotes the presence in man of certain bodily peculiarities of one of the lower animals) in the skulls of certain criminals, in the year 1870, finally gave rise to the formulation of a uniform hypothesis regarding the nature of criminality. Before the publication, in 1871, of the elements of this theory, Lombroso was able to devote a year to the study of the inmates of a large prison, being at the time Medical Superintendent of the Provincial Asylum at Pesaro, where there was also a large penitentiary. During the years 1871 to 1876, when he was once more lecturer and professor-extraordinary at Pavia^[6]—years during which he published his studies on pellagra, and, in addition, a number of anthropological and purely psychiatric works—he was also much occupied with the anatomical post-mortem study of the bodies of criminals. After 1876, when he came to Turin^[7] as professor of

forensic medicine, being also physician to the great prison in that town for prisoners awaiting trial, he was able to examine most minutely, according to his own methods, two hundred prisoners every year, whilst a much greater number were subjected at least to ordinary clinical examination. This inconsiderable and very poorly-paid official position led him, without abandoning his unwearied researches into pellagra, to devote his chief attention day by day to the subject of criminal anthropology.

It was in the course of these investigations, and of the controversies to which the publication of his results gave rise, that he first became acquainted with the work of his predecessors in the same field. This has been demonstrated to me by incontrovertible evidence.

As predecessors must be named some of the adherents of Gall's theories regarding the skull: the French physiologist and physician, Despine; the French psychiatrist, Morel; and three English medical men—one, the psychiatrist and distinguished anthropologist, Prichard, the other two prison surgeons, Nicolson and Bruce Thomson.

Gall is apt to be judged, very unjustly, only by his errors; for he was, in truth, the originator of the principle of the localization of the functions of the brain, and gave the first impulse to the scientific study of criminals, though he did not himself make any definite discoveries in this field. His pupil, Lauvergne, prison surgeon at Toulon during a long period of years, examined thousands of criminals, and left interesting plaster-casts of skulls; certain types were admirably described by him. Despine made a thorough study of the psychology of the criminal, and showed that the principal characteristics of the habitual criminal are idleness, irresolution, and lessened sensibility, both mental and physical. Supplementary to Despine's investigations was the great work of Lucas upon heredity, in which he demonstrated the hereditary transmissibility of the

disposition to theft, murder, rape, and arson, and furnished extensive materials regarding the congenital nature of the tendency to crime.

Morel's work lacked thorough analysis, and was also destitute of a firm biological foundation; but it was based upon extensive materials, and was animated by a certain instinct for what was important. His "*Traité des Dégénérescences*" was published in 1859. Thus originated the catchword "degeneration," which remains current to-day, without having even yet acquired any definite signification. Now it is used to denote the neuropathic constitution; now, again, to denote the hereditary predisposition to psychoses. According to some this predisposition is latent, and manifests itself only by physical stigmata of degeneration; others regard the degenerate as being mentally as well as physically abnormal, and as suffering, either before the onset of actual insanity or in the entire absence of the latter from mutability of mood and temper, obsessive ideas, moral defects, and one-sided intellectual endowment; yet others use the term "degeneration" to denote a vague diathesis—a mingling of tendencies to disturbances of metabolism and to neuropathies.

More recent French investigators distinguish between "higher" and "lower" degenerates, and include in these categories almost the entire province of mental disturbances, severe neuroses, and criminality. German investigators go so far as to explain that most human beings are degenerates, and Moebius held that the repulsiveness of the majority of his fellow-creatures spoke in favour of this view.

Morel, through the vagueness of his definition of degeneration ("*déviations maladives du type humain*"), was himself partly to blame for the unsatisfactory development of the whole doctrine. He had correctly observed that

unfavourable conditions of life—for example, the lack of legislative enactments for the protection of factory workers during the middle of the last century—transformed the entire outward appearance of those exposed to such conditions; but he failed to distinguish between inherited and acquired characteristics, nor did he ask himself if and how acquired characteristics are inherited; and he omitted to determine at the outset of his inquiry what were the precise characteristics of the type, deviations from which he was recording. With the exception of Lombroso, those who, after Morel, dealt with the problem of degeneration ignored the fact that these problems transcend the narrow limits of pathology to trespass on the wider province of biology, and failed to see that the problems in question are those of human variability, of the laws of inheritance, and other anthropological questions. Prichard, the distinguished ethnologist, widely regarded (in company with the English prison surgeons Thomson and Nicolson) as a predecessor of Lombroso, was the first to detect what is typical in the outward appearance of old “gaol-birds,” and to put forward, in explanation of confirmed criminality, the conception of moral insanity. This moral monstrosity was to be regarded as correlated with the abnormal physical characteristics.

Lombroso found it necessary again and again to elaborate the doctrine of moral insanity; and in the long-continued campaign against the misunderstandings to which his theory of the *homo delinquens* was exposed, that doctrine played a much more important part than Morel’s theory of degeneration.

It is incorrect to speak of Prichard and Morel as *predecessors* of Lombroso, in a sense implying that the latter was influenced by either of the two former in the inception or development of his teachings. Just as little is it true of Gall, whose work was justly estimated by Lombroso

as early as the year 1853, as we learn from his brief work on the correlation between sexual and cerebral development—“Di un fenomeno fisiologico commune ad alcuni nevrotteri.”^[8]

CHAPTER II

CRIMINAL ANTHROPOLOGY

Lombroso was led to formulate his doctrine of the criminal, not through the influence of the earlier workers in the same field, whose names were mentioned at the end of the last chapter, but as a natural consequence of the idea which dominated his whole mental development. This leading idea—a part of the teaching of anthropological materialism—is, on the one hand, that a man's mode of feeling, and therewith the actual conduct of his life, are determined by his physical constitution; and, on the other hand, that this constitution must find expression in his bodily structure. He was led to the more definite formulation of this idea by chance anatomical discoveries (*vide Arch. ital. delle malattie nervose*, and also *R.C. dell' Istituto Lombardo*, 1871, v., fasc. 18)^[9] in the corpses of criminals, one of which, the so-called “median occipital fossa,” had not been noticed by previous observers; this is found in most of the lower mammals, as well as in many monkeys. This first discovery of the kind has since been supplemented by a large number of others: in part such as were in the first instance most carefully observed by Lombroso and his pupils; in part those described by other anthropologists as “theromorphs”; in part those enumerated by Darwinian naturalists as “atavisms”—that is, characters regarded and described as vestiges inherited from the prehuman ancestors of our species. If we compare

the writings of those zoologists and anatomists who treat of these questions, with those of Lombroso and his followers, we cannot fail to notice the complete independence of the Italians, and at the same time their more comprehensive grasp, and their better knowledge of prehistoric data. The anthropologists of the Italian school usually went to work in the following way. If in examining the body of a criminal they came across a theromorph in any organ, or observed any other unusual structure, they propounded certain questions regarding the peculiarity, viz.:

1. Is this peculiarity present in any of the authentic remains of prehistoric man, and, if so, how often is it met with in these, as compared with the frequency of its presence in the bodies of criminals?

2. Is it met with in the lower races of man, and, if so, how often? (The answer to this question is obtained by examining the skulls, etc., of these lower races, to be found in European museums.)

3. Is it found in the higher apes, and, if so, is it an occasional or a constant feature?

4. Is it found in other species of the group of primates?

5. Is it found in animals lower than these in the scale of classification?

6. Is it found in human beings presenting congenital morbid anomalies; more especially is it found in epileptics and in idiots?

It is easy to understand that such investigations are very laborious. In order to throw light on the meaning of comparatively insignificant data, it may be necessary to organize most comprehensive researches. Unceasing care and indefatigability in such isolated observations, and in the interpretation of their meaning, is one of Lombroso's highest claims to honour. For this reason, his books and the thirty volumes of his archives will remain for many decades

to come a rich mine of discovery for anthropology, as soon as this science returns from the study of Mongols and Australians to the examination of contemporary Europeans. As a result of these investigations, the fact has been established that, above all in the skulls and the brains of criminals, but also in other parts of the skeleton, in the muscles, and in the viscera, we find anatomical peculiarities, which in some cases resemble the characters of the few authentic remnants of the earliest prehistoric human beings, in other cases correspond to the characters of still extant lower races of mankind, and in yet others, correspond to the characters of some or all of the varieties of monkey.

From these facts Lombroso draws a somewhat rash conclusion—namely, that there are born criminals, representing the type of mankind which existed before the origin of law, the family, and property, and that the representatives of long past conditions thus thrust upon our own time are incapable of respecting the security of life and property and other legal rights; but, bold as this conclusion seems, it has, none the less, all the qualities of a scientific conjecture, inasmuch as it harmonizes with all the known facts, and enables us to deal in an orderly and critical manner with the material upon which it bears.

I leave the question open whether we are to regard this idea as a theory or merely as a hypothesis; but it is necessary to point out, in opposition to the obstinate assertions of Lombroso's opponents, that the Italian school of anthropology has never maintained the proposition that all persons who come before European courts of justice upon criminal charges, or all who are confined in the criminal prisons of Europe, are the unchanged descendants of the Neanderthal men, who hunted the cave-bear with stone arrows. Put as concisely as possible, the doctrine of the Italian school runs as follows: Born criminals exist,

presenting typical characters, both bodily and mental, and they owe their peculiar organization to the fact that their development has been affected by an atavistic reversion. It is impossible here to give particulars showing the manner in which, in the five successive editions of "*L' uomo delinquente*," this conception becomes gradually more clearly defined.

I may be permitted to make some further observations regarding the nature of this atavistic reversion. There is not one single characteristic of the human anatomy which is not the product of inheritance. The existing type of the European mixed race appears to be a permanent type; or rather, owing to the fact that the struggle for existence of our time takes an almost exclusively economic form, and that in consequence of this the brain has received a preponderant importance, the present phase of human evolution affects the brain only (in women, unfortunately, as well as in men); if any other organ than the brain is influenced by selection in modern man, it is affected solely or mainly on account of its correlation with brain development.

Naturally, future extensive changes in the size and shape of the brain will ultimately give rise to changes more or less extensive in neighbouring organs also, such as the bones of the skull, the teeth, the jaws, the external ear, and the upper cervical vertebræ. But for the brief period which the individual investigator has under his observation in the course of his life, the human species may approximately be regarded as a permanent type. Now our most enduring possessions in the way of bodily characteristics are inherited from very remote ancestors—they are atavisms. The great weight of the brain, the upright forehead, the large facial angle, peculiar to the European, have been inherited by him from his ancestors of the historic epoch; on the other hand, the number and shape of his teeth, the

structure of his sense-organs, the arrangement of the fissures and convolutions of his cerebral cortex, the number and form of the mammary glands, the configuration of the upper limbs—these the European shares with the so-called anthropoid apes, with whom in other respects also he possesses a very close blood-relationship. Finally, the number of our fingers and toes, and the structure of the various tissues, as demonstrated by the microscope, are common to us and to the great majority of mammals; whilst innumerable other physical characteristics are shared by us with the lower vertebrata. Thus most of our bodily peculiarities are derived from our prehuman ancestors; they are atavisms, interesting antiquities. But if this be so, then the occasional appearance of one or two additional atavistic characters, whether these be derived from the men of the ice-age or from those of the tertiary period, or date back to the still undiscovered ape-men of a yet earlier day, or to the half-apes, or even to our remote fish-like progenitors, is hardly so incredible an occurrence as to demand that the thunderbolts of sterile anthropometry, so long carefully cherished by Virchow, should be launched against the heretic Lombroso.^[10]

Modern man has freed himself from much that was rooted in the blood and bone of his forefathers. But unquestionably he has not freed himself from all that was so rooted, and therefore it need not surprise us to encounter individuals who exhibit, firmly fixed either in their bodily or in their mental organization, characteristics which in the majority have been weakened or have disappeared.

Such individuals, exhibiting characters no longer possessed by the European permanent type, but still common to the most primitive extant races of mankind, such as the Old Peruvians, the Papuans, and the Australian

blacks, and common also to the other primates, are found among criminals, as Lombroso showed, with remarkable frequency—in fact, to the extent of more than 40 per cent.—and with especial frequency among those whose first crime is of a serious nature, and among those who have for many years been living for and by crime.

In addition, we meet with numerous characters, either not atavisms, or not yet regarded as atavisms, but which are or may be rather of a morbid nature. Thus, the skull or the brain of a criminal may exhibit, in addition to dubious atavistic characters, certain morbid features or signs of past disease. It is, indeed, by no means improbable that a congenital atavistic special predisposition may only become active to such an extent as to lead to a criminal act in consequence of some superadded disease; but in such a case it is idle to dispute whether we have to do with a congenital, an insane, or an alcoholic criminal.

If Lombroso's teaching were based solely upon the examination of the skulls and brains of criminals to be found in European collections, its foundation would unquestionably be too narrow. But it is based, in addition, upon the anthropological examination of many thousands of living criminals—an examination quite as thorough as that carried out by an anthropologist in the case of a savage tribe which he has crossed the world to study.

The examination of living criminals cannot, of course, take into account the convolutions of the brain, or the fossæ, foramina, and processes on the inner surface of the skull. The first place must here be given to the external measurements of the head.

Now, as regards many of the problems of anthropology, it is left to the examiner to decide whether he will describe the facts he has to record by means of figures or ratios, or by means of a catchword descriptive of some visible peculiarity of shape or of some other objective fact.

Thus the presence of a thick bony prominence in the middle of the hard palate (torus palatinus) may, of course, be indicated by simply recording the numerical results of the measurements of the palate; but, on the other hand, we may prefer to state that one man has a slightly developed torus palatinus, another a large torus, a third none at all, and so on.

Another important character gives to the face, when seen from the front, an extremely typical shape. This is a great lateral extension of the malar bones, or, to speak more precisely, of the zygomatic arches. This condition may be denoted simply by the one word, *eurygnathism*, which describes it amply and aptly. On the other hand, instead of employing this term, we may, in the case of each person examined, record the exact width of the face between the malar eminences, and note also the relation of this measurement to the width of the forehead.

As regards characteristics of form, however, it is much more convenient, and at the same time conveys a much more vivid impression, to denote these merely quantitative variations, and also relations perceptible only through comparison, by means of a generally descriptive terminology, which must not, of course, be confused with the precise description of actual structures.

Employing this method, we have a lengthy register of crimino-anthropological characters, and in the following table I append a fragment of such a register:

I. PRIMATOID VARIETIES.

A. AFFECTING THE SKULL.

CEREBROGENOUS.

(a) *Direct Cerebrogenous.*

1. Frontal submicrocephaly (expressed in the relative and absolute smallness of the brain, especially in the transverse diameter). Criminals, 41 per cent.

2. Narrowing of the cranio-facial angle at the base of the skull, leading to prognathism.

Occurrence: In all primates, in negroes, Papuans, Australian blacks, etc. Criminals, 60 per cent.

3. Receding forehead.

Occurrence: According to Lombroso, in 19·4 per cent. of 4,244 criminals. According to Kurella, in criminals from Upper Silesia, 11 per cent.; in workmen from Upper Silesia, 4 per cent.

4. Often associated with 2 or 3. Middle occipital fossa.

Occurrence: In all apes, in the anthropoids, including the gibbon.

In the skulls of various races of mankind—

	Per cent.
Ancient Peruvians	15
Australian blacks	28
Skulls provided with "students' sets"	4·1
Criminals (3,200), (Lombroso, 16 per cent.)	20
Negroes	10
Prehistoric skulls	14·3

(b) Indirect Cerebrogenous Varieties.

1. External angular process of the frontal bone abnormally large. In criminals (704), 11·9 per cent.
2. Excessive size of orbits (exceeding the highest degree of Mantegazza's scale of the index cranio-orbitalis)—

	Per cent.
Lombroso	9
Kurella	8·2 (of 218 cases)

3. Abnormal width of frontal sinuses—

Criminals	13 (of 252 cases)
Skulls provided with "students' sets"	4

4. Strongly developed superciliary ridges—

Lombroso:

Skulls provided with "students' sets"	7
Criminal skulls (out of 253)	13

Kurella:

Living workmen	7
Living criminals	16
Italian murderers	41·7

5. High (internal) frontal crest. The mean height of the frontal crest is normally 3·8 mm.; in criminals the mean height is 5·4 mm. In 25 per cent. of criminals it exceeds 7 mm., and in 35 per cent. of these latter it is associated with the presence of an internal occipital fossa.

(c) *Marked Development of the Antagonism between Brain Development on the one hand, and Development of the Facial Portion of the Skull on the other, the latter predominating.*

1. Strongly developed temporal crest, nearer than usual to the sagittal suture.

Distance between the two temporal crests, measured across the sagittal suture—

	Mm.
Gorilla	0·10
Eskimo	80
Skulls provided with "students' sets"	125
Skulls of murderers	70

2. Torus occipitalis—

	Per cent.
Criminals (Lombroso's results)	31·7
Murderers (Lombroso's results)	75

3. Eurygnathism—*i.e.*, abnormal breadth of the face at the level of the zygoma. This is a common characteristic in the oldest human remains (skulls from Gibraltar, Cro-Magnon,

and Furfooz), and in the lower races of to-day (the circumpolar tribes).

	Per cent.
Convicts sentenced for robbery with murder	37
In 1,567 criminal heads	18

4. Excessive height of the upper jaw.

This table exhibits the characters visible in the skull in a definite class only, those whom in my "Naturgeschichte des Verbrechers" ("Natural History of the Criminal") I have, with Lombroso's approval, designated "primatoid." Granted that they are typical of the criminal, it has none the less often been maintained that the Italian school is not justified in speaking of a criminal type, for the reason that not one of the individuals described exhibits all these peculiarities. How, then, it is said, can a criminal type be abstracted from such utterly heterogeneous abnormalities?

This really depends upon the possibilities of abstraction. Academically correct anthropologists continue to dispute regarding the types of the most important races of mankind, whilst description is always preceded by perception, and perception is not always in a position to comprehend the typical; he who is not endowed with a sense for the significant will see nothing but the insignificant. But there is something extremely typical in the commonest and most important characteristic of the criminal nature—namely, the coexistence of several primatoid characters in the same individual. (Characters are termed "primatoid" which are present in all primates, but which in the normal human being are developed very slightly—in part, indeed, so slightly developed as to be almost imperceptible. But in many criminals these peculiarities, which are chiefly physical, are either more strongly marked than in the normal European, or else they

make their appearance in the criminal in a form in which in the normal European they are entirely unknown, whereas they are present in the members of many savage races, as well as in primates lower down in the scale.)

There is one character, however, by which the primates in general are distinguished from the lower mammals, whilst in the human species it is far more strongly marked than in other primates; but in the criminal this character is often so little developed as hardly to reach the degree characteristic of prehistoric human remains. The character in question is the greater development of the cranium (dependent upon the more powerful development of the cerebral hemispheres) in association with a lesser development of the jaws and their appendages. In this way the direct cerebrogenous characters originate; and with these are associated yet other characters, evidently in part mechanically dependent on the cerebrogenous characters, but in part arising from these in a different way. To this category belongs prognathism—the condition in which the upper jaw protrudes markedly in front of the base of the skull, so that when the face is viewed in profile, the region of the incisor teeth appears very prominent. The skulls of the lower races of mankind are prognathous, and still more prognathous are the skulls of the anthropoid apes. Directly associated with prognathism is another characteristic of the criminal type—namely, the forehead which “recedes” markedly as it rises; and associated with the receding forehead is a marked projection of the “superciliary ridges.”

It is well known that the two earliest known human skulls—that of the Neanderthal and that of Spy—both exhibit to a high degree the two characters last mentioned. If we compare with these the drawing in Lombroso’s “Archivio di psichiatria” (vol. ii., 1882) of the skull of Gasparone (the

brigand celebrated under the name of "Fra Diavolo"), we cannot fail to recognize a striking example of atavism.

One of the most remarkable of these characters is the middle occipital fossa, first described by Lombroso, whose dependence upon the formation of the cerebellum is still open to dispute. In any case it is a well-marked primatoid character, for it is present in all the higher primates, with the exception of the gorilla, the chimpanzee, and the orang-utan. The middle occipital fossa was found to be present in 4·1 per cent. of the skulls provided with "students' sets" that were examined (but it must be remembered that such skulls always include a certain proportion of the skulls of criminals). In prehistoric skulls the character was present in 14·3 per cent.; in ancient Peruvian skulls in 15 per cent.; in Australian blacks in 28 per cent.; in all the criminal skulls examined it was present in 20 per cent. The significance of such a fact as this cannot be gainsaid; and it is not surprising that its discovery by Lombroso, the pupil of Panizza, made a profound impression, more especially in view of the fact that he was then about to bring to a close his comparison of the European with the melanodermic races.

The book in which Lombroso instituted this comparison, "*L' uomo bianco e l' Uomo di colore*," was published in 1871 by Sacchetto of Padua, after the manuscript had spent three years in vain wanderings from publisher to publisher. In this work the writer asserted the common descent of the higher apes and of the human species from an unknown primate, supporting his contention by means of anthropological data. Darwin's "*Descent of Man*" was published while Lombroso's work was in the press. The latter displays the remarkable knowledge of comparative anatomy which Lombroso owed to his teacher Panizza. It displays also a wide knowledge of ethnological literature, and a thorough acquaintanceship with the previous

discoveries regarding prehistoric man (including those made at Cro-Magnon, Hohlenfels, etc., during the years 1868-1870); and it shows, in addition, the author's remarkable talent for the discovery and utilization of fruitful analogies.

I do not propose to consider here the various anomalies and malformations of the skull discovered, described, and enumerated by Lombroso and his pupils; but on account of their importance in relation to the criminal physiognomy, we may mention that an abnormal widening of the face (due to an exceptionally great distance between the two zygomatic arches), and an abnormal divergence of the two halves of the inferior maxillary bone, are characteristic of the criminal type. Subsequently to the first publication of Lombroso's results the question of the distance between the angles of the lower jaw was thoroughly investigated, more especially by the Dutch anthropologists and alienists, at the instigation of Winkler of Amsterdam, and with the aid of a very large quantity of material.^[11]

Many remarkable peculiarities in the shape of the skull, the origin of which cannot be referred to the above-mentioned antagonism between the development of the cranium and that of the facial portion of the skull, depend upon abnormalities and disturbances in the sequence and extent of the ossification of the sutures of the skull. We know that the flat bones of the skull-cap grow principally at the edges, with which they come into contact one with another, and that normally they continue to grow in this way as long as growth continues in the subjacent portions of the brain; but if such a suture undergoes premature ossification, room can only be provided for the growth of the brain by the yielding of one or more of the other sutures, whereby that diameter of the skull at right angles to the yielding suture becomes increased. Thus a skull in which the sagittal or interparietal suture has undergone

premature ossification (as often occurs in the Eskimo) assumes the shape of a narrow boat (scaphocephaly).

It is probable that such sutural varieties are dependent upon the most diverse causes, and that in many cases they are not anomalies, but racial peculiarities or racial congenital variations, whose origin is genetically very ancient. In the skulls of criminals examined for the detection of sutural abnormalities these have been found in about 40 per cent., whilst in 1,200 living criminals the frequency was as high as 49 per cent.

Among the most interesting of the sutural abnormalities are the "Wormian bones," by which more or less extensive deficiencies of bone along the principal sutures are filled in. A Wormian bone found at the apex of the lambdoid suture, where this joins the posterior extremity of the sagittal suture, was first discovered in the mummies of the ancient civilized race of Peru, and it has therefore been named the "Inca bone." It is said that all the infant Inca mummies possess this bone, and that it is present in 15 to 20 per cent. of the adult Inca remains. Italian observers found it in 25 per cent. of the skulls of murderers, and in 8 per cent. of the skulls of other criminals.^[12]

Certain other peculiarities of the sutures of the skull have received much attention from students of general anthropology, on account of the fact that they constitute distinctive racial characters; but some of these are met with even more frequently in the skulls of criminals than in ethnological specimens, although their appearance in these latter is considered a characteristic feature of normal anthropology.

Of great interest are measurements of the cubical capacity of dried skulls, and also estimates of this capacity, based upon measurements of the head taken in living criminals (although such estimates can be no more than approximations). Be it noted in this connection that the

extreme recorded range of capacity of normal skulls is from 2,050 c.c. (the largest) to 1,050 c.c. (the smallest); the largest recorded cubic capacity of skull in an anthropoid ape is 621 c.c.; thus, the difference between the cubic capacity of the largest and that of the smallest human skull exceeds the difference between the cubic capacity of the smallest human skull and that of the largest simian skull.

Now, collections of the skulls of criminals comparatively often contain skulls with a cubic capacity of less than 1,100 c.c., whereas skulls as small as this are hardly ever met with in collections of normal skulls; skulls ranging in cubic capacity from 1,100 c.c. to 1,800 c.c., which in collections of normal skulls are found to the extent of from 6 to 10 per cent., in collections of the skulls of criminals have been present, in various instances, to the extent of 17·8, 18, 65·5, and 72·2 per cent. respectively. Skulls below the normal mean in cubic capacity, which in collections of ordinary skulls are present to the extent of from 25 to 30 per cent., are found in the different collections of the skulls of criminals to be present to the extent of from 30 to 60 per cent. To put the matter in a word, the criminal's skull is often submicrocephalic; it is, however, necessary to point out that skulls with the very largest cubic capacity, exceeding 1,600 c.c., are met with twice or thrice as often among the skulls of criminals (although this is not true of the Italian collections personally known to me) as they are among bone-dealers' or museum skulls. A somewhat similar characteristic is exhibited by all the criminal characters accessible to measurement. When the material under investigation is derived indifferently from the general population, the extreme values recorded by measurement are seldom encountered. Among criminals, on the other hand, these extreme values occur much more frequently; and, indeed, the extremely *low* values are encountered in criminals with especial frequency when the dimension

under consideration is one which usually increases as we pass from lower to higher stages in the scale of development. For example, great breadth of the face across the zygomatic arches is a characteristic of lower development; in criminals (900 instances), exceptional width and exceptional narrowness of the face in this region occurs more frequently than in the general population; but this is true to a greater extent as regards the maximal than it is as regards the minimal values of this dimension of the criminal skull.

Similar relations to those which obtain with regard to the size of the skull are found in the bodies of criminals, in respect of the size, or, rather, the weight of the brain, since the mass of the brain must naturally bear a definite relationship to the cubic capacity of the skull. In my "*Naturgeschichte des Verbrechers*" ("Natural History of the Criminal"), published in 1893, I have collected the data known at that period, derived, for the most part, from Italian sources; these data relate to 305 brains accurately examined. To understand the results here given, it is necessary to remember that the average weight of the European brain, the mean resultant of a very large number of weighings, is 1,360 grammes for males, and 1,220 grammes for females. A maximum very rarely exceeded (though it was exceeded, for example, in the case of Cuvier, and also in that of Tourgeniew) is a brain-weight of 1,800 grammes; whilst the smallest brain-weight known in individuals who can be regarded as having possessed normal intellectual endowments is 960 grammes for males, and 880 grammes for females. Among a very large number of normal brains, we shall find very few indeed weighing as little as 1,150 grammes, and a considerable number weighing more than 1,500 grammes. On the other hand, among the total number of the brains of criminals that have hitherto been weighed, we find that brains weighing less

than 1,300 grammes form a very considerable majority; whereas, among the brains of normal individuals, less than 25 per cent. weigh less than 1,300 grammes. In the various collections of the brains of criminals, we find that brains weighing less than 1,300 grammes numbered, in one case, 62·5 per cent. (Benedikt), in a second case, 77 per cent. (Mingazzini), and in a third case, 83·2 per cent. (Mondio).

At the very time when the criminal anthropologists were making a thorough study of this problem, the anatomists (with the exception of Flesch of Wurzburg) and the professorial anthropologists (that is, those in official positions who were interested in this branch of knowledge) were vigorously contesting the idea that there was any difference between the brains of criminals and the so-called normal brains. All the more interesting, therefore, were the data communicated by Professor Johannes Ranke to the German Anthropological Congress at Dortmund in August, 1902, in association with a demonstration of plaster-casts of the heads of decapitated Chinese criminals. According to Ranke, the brains of criminals show no structural deviation from the brains of normal Europeans. This was Professor Ranke's first contention; but to this there succeeds a little parenthesis, in which he alludes to certain peculiarities in the conformation of the central convolutions. (So, after all, these brains do differ from those of Europeans!) Ranke is straightforward enough to describe the abnormalities in question, but he adds that they are probably to be regarded as racial peculiarities. He gives no grounds whatever for this view, but he prefers to drag in an ethnological hypothesis of this kind rather than to commit himself to the heresy that the brains of criminals exhibit peculiarities; the abnormalities must be labelled "ethnological," lest they should fall a prize to the heretical school of Lombroso.

On the other hand, in the same address (1902), Ranke laid stress on the fact that among the brains of criminals

there is a preponderance of exceptionally large and of abnormally small brains, and also that among the skulls of criminals there is, similarly, a marked preponderance of extremely large and extremely small skulls—a fact which he might have ascertained as long ago as 1893 from a study of the very numerous tables of measurements and weights published in my “Natural History of the Criminal.”

Finally, in other portions of his address, Ranke approximates even more closely to the “heresies” of criminal anthropology. He insists on the need for a careful study of the brains of criminals, and he points out that there are two questions to which especial attention should be paid in future investigations of this kind. The first of these is the question whether the possessor of a brain of medium size does not exhibit less inclination to crime than one whose brain is either excessively large or excessively small; and the second is the question whether, perhaps, certain intellectual abnormalities, which readily lead to criminal practices, may not depend upon a partial microcephaly—that is to say, is it not possible that in certain sharply circumscribed portions of the brain, during intra-uterine life, there may have developed certain abnormalities corresponding to those characteristic of microcephaly? According to Ranke, it is always possible that an indirect connection exists between the so-called stenocrotaphy (narrowing of the skull in the temporal region) and the criminal tendency, in so far as, in consequence of the said narrowing of the skull, those nervous centres by whose activity automatism is kept within bounds may have their development partially arrested or may in some other way be sympathetically affected.

In these remarks we find, in the first place, a reference (although one less clear than many recorded demonstrations of Lombroso’s teachings) to the law in

accordance with which extreme dimensions of physical characteristics occur in criminals with especial frequency; and, in the second place, in the theoretical portion of Ranke's utterances we encounter the fundamental notion of criminal anthropology, which is that the lower organization of criminals, standing nearer to the lower animals than that of normal men, predisposes the former to the commission of criminal acts; and more especially that in the criminal's skull there is no room for a brain able to hold the feelings (or, in physiological parlance, the inhibitory apparatus) requisite to induce normal social behaviour. I have devoted considerable space to this address of Ranke's because it shows how convincing are these basic ideas of criminal anthropology, and how irresistibly they are associated with an anthropological mode of study of this social group. But how remarkable it is that, through a study of the brains of Chinese criminals, a recognition of the truth of Lombroso's doctrines should first dawn upon a German professor of established reputation!

The study of the brains of criminals subsequently moved in two directions: whereas Benedikt, the talented and original Viennese investigator, and after him a number of Italian investigators, studied the fissures and sulci by which the surface of the human brain is divided into convolutions in such a remarkable manner; during the years 1894 to 1900, the more limited circle of Lombroso and his immediate pupils was engaged in the study of atavistic anomalies, and of those more delicate peculiarities of the intimate structure of the brain which can be demonstrated only with the aid of the microscope.

Moreover, the study of the convolutions in the brains of criminals has led to the discovery of a number of characters which may be regarded as atavistic. Most of these are primatoid varieties—that is to say, either they are manifestations of an abnormally slight development of

those peculiarities of the convolutions by which the members of the human species are distinguished from the other primates, or else they are characters which are not normally found in human beings at all, although they exist normally in other primates. In a tabular comparison of the differences between the human and the simian brain, we observe that these differences are precisely those in respect of which the deviations of the criminal brain from the normal human type of brain are also manifested.

In other words, the human brain is an advanced type of the brain of the primates in general, but in the brain of the criminal the resemblances to the simian type are much more strongly marked.

It is, indeed, quite impossible to explain the abnormal moral and social behaviour of the criminal with reference merely to the abnormal configuration of the criminal's cerebral convolutions. Perhaps the human contemporaries of the cave-bear in Europe possessed a brain, and, *mutatis mutandis*, exhibited in many respects a mode of life analogous to that of the modern Sardinian bandit, of the London street arab, the *voyou* of Montmartre, or the fugitive from the Siberian mines. But in the Stone Age there existed no economically developed society upon which our palæolithic progenitor could become parasitic. We know almost nothing about post-glacial man. It may be possible at some future date, from a chart of the surface of the brain, to deduce the social characteristics of the race; but, although at present this deduction remains beyond our powers—and perhaps will never become easy—the primatoid character of the cerebral convolutions of the criminal possesses, none the less, a profound anthropological significance. No ethnologist is able from an examination of the convolutions of a Greenlander's brain to deduce the national characteristics of the race to which the possessor of the brain belonged; but, nevertheless, when

we see a brain with certain characteristics we are able to declare it to be the brain of a Greenlander.^[13]

The interesting discoveries of Roncoroni, regarding the peculiarities of certain cells of the cerebral cortex in criminals, though widely discredited at first, have been subsequently confirmed by Pelizzi. In this case also it appears that we have to do with atavism (Pelizzi, "Idiozia ed Epilessia," *Arch. di psichiatria*, 1900, p. 409).

Not only in the skulls and brains of criminals, but also in almost all their other organs, we find abnormalities with greater average frequency than among the general population, and this is especially true of rudimentary organs, those which constitute the majority of the so-called secondary and tertiary sexual characters. Many of these abnormalities may be regarded as primatoid or atavistic; others appear to be mainly dependent upon disturbance or arrest of development. All alike, in so far as they are not merely characters acquired during the lifetime of the individual, give the impression that the criminal is a being whose humanity is not completely developed. This does not exclude the fact that the criminal himself, in the light of his own peculiar valuation of social and legal value, is apt to be firmly convinced that his is a superman.

This arrest at an earlier stage of development gives rise, in respect of numerous traits, to an approximation in the "criminal type" to the characteristics of one or other of the extant savage races of mankind—races such as the Australian, etc., which, owing to prolonged isolation from other types and, possibly, also to less rigorous selection and therefore less marked differentiation, in consequence of a less severe struggle for existence, have been able for thousands of years to retain their primitive characteristics.

We are, however, compelled to assume that many savage races have been unable to raise themselves above their present low level of intellectual, economic, and social

culture, not merely on account of the slighter operation of the factors of differentiation, but also on account of an inferior innate developmental capacity. In philosophical terminology we should perhaps therefore say that the world of crime recruits itself from among the number of the less developed individuals of the nation concerned; for it is an obvious deduction from the law of organic variability that among all the individuals born as members of any civilized race there should be some who are congenitally incapacitated to attain the normal mean level of development peculiar to that race.

It is not proposed to deal here at any length with the innumerable anthropological characteristics of criminals other than those found in the skull and the brain, but the physiognomically important characters deserve separate notice.

Like all rudimentary organs (organs, that is to say, which continue to be transmitted in the absence of any discoverable physiological function), the external ear (pinna, or auricle) exhibits all possible variations. Among these variations, two only appear to be of importance in relation to criminal anthropology—viz., the handle-shaped and projecting ear (German *Henkelohr*) and the Darwinian tipped ear,^[14] which are met with comparatively often in criminals, the former being found in 328 among 1,568 criminals examined, and the latter in 189 out of 1,187; rare in comparison with these is the so-called Morel's ear, in which the external margin of the auricle (the helix) is not folded upon itself. Morel's ear is a sign of a congenital tendency to severe nervous troubles, and it is a remarkable fact that this character is common in prostitutes.

According to my own observations, in addition to the two abnormalities in the shape of the external ear already mentioned, we sometimes find in criminals other strongly marked malformations of the ear; and as in the case of

other abnormal characters in criminals, so also in the case of those of the ear, the anomalies are met with more frequently in proportion as the crime for which the man was condemned was grave in character, and in proportion also to the intensity with which the criminal tendency has been manifested in the course of life.

The length of the auricle is also subject to great variations in criminals. In Europeans the normal length of the ear lies between 51 and 60 millimetres (2 and 2·36 inches); it is longer than this in Mongols and Indians, shorter in Malays, Papuans, and Australians; shortest in Nubians, Negroes, and Bushmen. In this respect also (*i.e.*, in the greater range of variation) criminals resemble savage races rather than civilized. According to the measurements of Frigerio, great length of the external ear is in thieves and robbers even more characteristic than great length of fingers, which latter, however, is also something more than proverbial merely.^[15]

If we endeavour to combine the physiognomical peculiarities of the criminal type with the data of anthropological investigation, we obtain a somewhat monotonous picture in widely different climates, notwithstanding the fact that it is not permissible to speak of a perfectly uniform type. The reason why this is impossible is one to which I have already alluded more than once—namely, the fact that the extreme cases, very great or very small values of linear dimensions, surfaces, and weights, of the human body and its parts, are encountered far more frequently among the inmates of our great prisons than they are among an equivalent number of non-criminals; for example, among several hundred factory employés, soldiers, emigrants—in a word, any other category of mankind. It must not, however, be supposed that what we find is, in one-half of the criminals we examine, that everything is too large, and in the other half,

that everything is too small. What we find is: one dimension too large, and another dimension too small, side by side in the same individual. An extremely common combination is: too small a cranium, with jaws unduly large; beard too scanty; ears too large. As regards an immediate general impression, and on superficial observation, there can be no question of a "type." The type first becomes manifest as a result of intimate study. Anthropometrically, the criminal type represents the extreme values; zoologically, it represents the primatoid characters; developmentally, cases of incomplete development, such as are found here and there in all nationalities. Such is the meaning of the doctrine of the criminal type, which, intentionally or unintentionally, has been continually misunderstood.

In respect of an immediate general impression, a well-marked example of the criminal type attracts attention less by the expression of the face than by the permanent structural peculiarities of the skull and the face, more especially the smallness of the skull as a whole or in the frontal region, the receding forehead, the large frontal sinuses, prognathism of the upper jaw, and massiveness of the lower jaw, prominent malar bones, and all kinds of anomalies in the shape of the skull. The large, pale face is often very striking, with scanty beard, thick, usually dark, hair, and large projecting ears. The nose is commonly long and straight; in some cases it is bulky, with a wide, ill-defined bridge. A well-formed, symmetrical nose is extremely rare in the criminal type. Asymmetry of the face and a crooked nose are so typical that realistic painters, from the period of the Early Renaissance down to the days of modern naturalism, depict these peculiarities whenever they are painting rascals, vagabonds, executioners, condemned criminals, and the like. I may mention, more especially, Goya, Gavarni, Géricault, Canon, Wiertz, Leibl, etc. In Géricault's drawing, "Tête d'un Supplicié" ("Head of

an Executed Criminal”), the asymmetry of the nose is very clearly represented; whilst the broad, deeply-furrowed face, the thin moustache, the narrow and receding forehead with prominent superciliary ridges, the prominent cheek-bones, the heavy lower jaw, and the irregular teeth, combine to constitute the complete criminal type.

The physiognomy of the criminal is naturally dominated by the traces left on the face by the habitual modes of expression. Youthful criminals have, for the most part, a dull or a frivolous appearance. The life of crime when they are free, and the prison life when they are not free, combine to produce a permanent imprint of anger and obstinacy, cunning and hypocrisy. Obstinacy and anger are often expressed by a permanent compression of the lips, marked wrinkling of the forehead, and a wild look in the eyes. This last, quite by itself, often suffices to betray the criminal nature, especially in the faces of women.

Elderly criminals often lose the energetic expansive expression, which during prolonged periods of confinement they have endeavoured to transform into a submissive mien—often, however, with but partial success, resulting in a peculiar form of the superciliary arches, which assume the appearance of an S lying on the side. In others, the dominant brutality is marked by a one-sided grin, or by restless facial movements. Lombroso made some valuable observations regarding the peculiar look of the criminal, which he often demonstrated to me personally. The cold, wild glance of the murderer, and the restless glance of the thief, are unmistakable. The cheat and the *chevalier d’industrie* (sharpener), attempting to play the man of integrity or the loyal soul, betray themselves by their piercing glances. Very great restlessness of the glance, to a degree verging on the pathological, is often seen in murderers, alternating with a cold, glassy, fixed stare. In the mouth may be observed all shades of cruelty and

defiance; the fawning smile of the poisoner and of the homosexual prostitute is a very common appearance. In the deeply-wrinkled face of elderly criminals, Lombroso's pupil, Ottolenghi, was the first to discover a remarkable furrow, extending across the middle of the cheek at the level of the angle of the mouth. I have rarely seen it outside the prison walls, but have found it with notable frequency in the convicts of Upper Silesia. Lombroso has named it the *ride du vice*.

In this chapter I have simply attempted to give a sketch of the data of criminal anthropology. In view of the extensive material already available, collected by numerous observers whose methods often differ, a scientifically adequate exposition of these data is by no means easy. It gives little satisfaction to learn from tabular statements that such and such characters occur with such and such frequency. What we want to know is, what proportion of criminals in general exhibit characters of this kind, and how many of such characters may be assembled in a single individual.

From 5,000 cases described in the literature of the subject, for the most part by Lombroso himself or by his immediate pupils, I have selected those cases in which the individual had been carefully examined, in which his life-history was thoroughly known, and in which mental disorder could be excluded: these numbered 800. I compared them with the cases studied by myself in the prisons of Upper Silesia, whose records were accessible to me; from these also I excluded several dozen as idiots or lunatics.

The material being thus rigorously sifted, very carefully analyzed, and consisting exclusively of criminals, it was then tabulated. The results obtained were briefly the following:

There were present

	Per cent.
At least one cerebrogenous character in	98
Frontal microcephaly in	57
Three or more cerebrogenous characters in	40
Primatoid characters in	100
Three or more primatoid characters in	60
Primatoid characters in the brain (post-mortem)	47
Varieties of the pinna in	41
More than three characters of any of the above kinds in	77
More than five characters of any of the above kinds in	33

From this we learn that among those repeatedly convicted of serious crime in Western and Middle Europe, no less than 60 per cent. exhibit several distinctive characters, indicating the existence of an abnormal congenital predisposition.

CHAPTER III

OPPOSITION TO LOMBROSO'S VIEWS— WOMAN AS CRIMINAL—THE POLITICAL CRIMINAL—CRIMINAL PSYCHOLOGY

In the first fierce campaign against criminal anthropology two objections are repeatedly encountered. One of these points out the absence of distinctive anthropological characters in female criminals; the other contests the conceivability of the anthropological unity of a social group whose sole link of union consists of a concept so variable in time and place as is the concept of crime.

The latter of these two objections was, of course, controverted by Lombroso in part on purely conceptual grounds; but in addition to this he has shown that the criminal group in which the idea of crime is so relative that the criminal of yesterday may be the judge to-day, whilst the judge of yesterday may to-day be the criminal—to wit, the category of political criminals—he has shown that this criminal group may, with a little criticism, readily be resolved into geniuses, enthusiasts, fools, rogues (and, finally, the crowd these carry along with and after them); and that in every revolution—even the most desirable one—old-established professional rascality and newly-awakened cruelty find a most suitable field for the display of their dangerous attributes. By means of the study of a large number of regicides, and also that of the most notable

personalities of the French Revolution at the end of the eighteenth century, of the fight for Italian unity, the uprising of the Paris Commune, and the Russian terrorism of our own day, he demonstrates this truth beyond dispute.

The other objection, regarding the lack of distinctive anthropological characters in female offenders, demanded for its answer very comprehensive studies in a previously neglected field; these researches were undertaken in co-operation with G. Ferrero, and resulted in the publication in 1893 of the widely read work on "Woman as Criminal and Prostitute."^[16]

The Introduction to this book, 180 pages in length, appears to me to be the most interesting and remarkable piece of work Lombroso ever issued. Even his opponents never denied his all-embracing culture and extraordinarily wide reading, nor his brilliant intuitive powers and bold faculty for combination; on the other hand, his most zealous advocates and adherents have always complained of his obvious neglect of critical examination of his sources of information, of analytical treatment and systematic arrangement of his material, and of comprehensive presentation and definitive architectonic. But nowhere else are his merits so strikingly manifest, and nowhere else are his defects less conspicuous, than they are in this brilliant description of the biological and physiological characteristics of woman and accurate survey of the differences between the sexes. In part, indeed, the work under consideration may owe its conspicuous merits in point of style and arrangement to the fact that Lombroso's own deficiencies in these respects were supplemented by the assistance of his collaborator and subsequent son-in-law, G. Ferrero, the author of the celebrated "History of the Roman Empire." However this may be, Lombroso in this work penetrates deeply into the science of general biology, and endeavours, having regard to the characters found by

him to differentiate woman from man, to formulate a comprehensive law of sexual differentiation in general.

He refers this differentiation to the fact that the whole organization of woman is predestined to motherhood, and to the fact that any other professional activity of whatever kind is hardly possible to her, or, if possible, only on account of an abnormal and degenerative predisposition.

With this dominant position of motherhood in woman he correlates also two facts of great importance in the anthropology of the female offender. The first of these is the much lesser variability of women,^[17] owing to which women in general exhibit less marked special differentiation than men; consequently such deviations from type as do occur in women are far more significant than similar deviations occurring in men, and therefore in women very great importance must be attached even to isolated theromorphs. The second fundamental fact is the lesser general sensibility and lesser sensibility to pain of women as compared with men.

Both these phenomena of sexual differentiation are more strongly marked among civilized races than they are among savages. Thus, according to Lombroso's investigations, the female skull, especially in the civilized races, resembles rather the skull of the child than that of the adult male, and this is especially the case as regards its frontal and facial portions.

Lombroso made an exhaustive study of the problem of the origin of the greater development of sympathy in the female sex, and discussed how, notwithstanding this fact, the frequent tendency to cruelty in women can be explained: he sees in this one of those contrasts which are common in the sphere of the emotional life, but which, with progress in civilization, tend to disappear, owing to the development of sympathetic feelings. The rest of the emotional life of woman is also adapted to her profession of

motherhood; and this is true, above all, of the sexual feelings, which thus seem to be constructed almost entirely upon a “masochistic” basis. Strong erotic feelings, when they do occur in women, are, according to Lombroso, an approximation to the masculine type; they are, that is to say, abnormal in women. In respect to moral development, he regards woman as inferior to man. “We cannot, indeed, say that woman displays to the same degree as the child the lineaments of moral idiocy, for she is saved from this by her endowment with maternal love and with sympathy. Fundamentally, however, woman remains non-moral, and this often precisely in consequence of her sympathy. She exhibits numerous traits of character ... which prevent her from approaching to the same degree as man that balance between rights and duties, between egoism and altruism, which is the ultimate goal of moral development.”

By means of historical and ethnological data, the importance of which, notwithstanding the criticism of Westermarck, has not been shaken, Lombroso endeavours to prove that during the long ages of the life of prehistoric humanity certain conditions were generally dominant in the sexual life which are now regarded as constituting prostitution—that is to say, he considers that prostitution and prostitutes at the present day are reversionary or atavistic phenomena. The intimate description given by Lombroso of the psychical life of the prostitute has notably contributed to our interpretation of prostitution in the atavistic sense. This explains why it is that among prostitutes the criminal type is found more frequently and more markedly than it is even among female criminals.

Thus, for Lombroso, the prostitute, even more than the homicidal robber, is the genuine typical representative, the prototype, of criminality—the counterpart of the male major criminal; and in social co-operation with the latter, the prostitute gives rise to the institution of *soutenance*.^{[\[18\]](#)}

The world of feminine crime, in so far as it is not allied to prostitution, is regarded by Lombroso as constituted only to a very slight extent of true criminal natures: "A small group of women, marked with very severe stigmata of degeneration, almost more numerous than such stigmata are in male criminal types, is sharply distinguished from the great majority of women criminals, who exhibit few and uncertain stigmata of degeneration; similarly, from the psychological standpoint, we have to distinguish from the great mass of female criminals a small group of women in whom we recognize more severe and more unnatural moral anomalies than are met with in male criminals. The ordinary woman criminal has usually been lured to crime, either by hetero-suggestion or by very powerful temptation, and her moral sense will often be found to be unimpaired, or, at any rate, not entirely destroyed."

In other words, women criminals—who in civilized countries are only from one-fifth to one-tenth as numerous as men criminals^[19]—are, as a rule, criminals by passion or occasional criminals. A woman of the genuinely criminal type is either at the same time a prostitute as well as a criminal, or else—if her social position has saved her from becoming a professional prostitute—she exhibits a marked anthropological and psychological similarity to a prostitute.

By reference to a large number of cases personally examined by himself, and with the aid of extensive statistical material, Lombroso endeavours to establish the thesis that, as a general rule, female delinquents come under the ban of the penal law, either from affective causes (criminals by passion) or else from the pressure of unfavourable economic circumstances or other external conditions (occasional criminals); that their offences are for the most part the outcome of a normal feminine psychical life, and are in no respect the product of emotional or moral abnormality; that alike in the general conduct of

their life and in the particular offences for which they have been condemned we can trace the characteristic lineaments of the womanly nature; that above all, in the majority of them, the mother-sense is in no way diminished, or if diminished, only to a very trifling degree, and that an increase of the sexual impulse is in them hardly ever demonstrable.

He then goes on to prove, by the examination of an extensive material, which he has subjected to a most careful analysis, that prostitutes and genuinely criminal feminine types (*"rea nata"*) are characterized by an utter lack of the mother-sense; that in women condemned for major crimes an increased sexual impulse is almost invariably present, and that this fact notably contributes to their criminal development; whereas prostitutes are, as a rule, conspicuous for sexual frigidity, and from childhood onwards are characterized by a lack of the sense of shame.

The case-histories, of which the book contains an abundance, show, indeed, that genuine women criminals are endowed with the same fundamental peculiarities which Lombroso has so fully described in male criminals, and the prostitute is exhibited no more than as a slightly divergent variety of the woman criminal; but the peculiar part which the female sexual life and the endowment of the woman criminal with the attributes of motherhood play in her psychology, give to the general picture of the female criminal certain peculiarities which justify a separate treatment of feminine criminal psychology.

This thesis of Lombroso's, that among women criminals the number of genuinely criminal types is small, whilst the number of occasional criminals is very large, is supported by the following considerations (quoted by him in the book we are now studying). Some years before the publication of *"La donna delinquente,"* an anthropological investigation undertaken in prisons for women by other authors showed

that in women the various characters commonly found in male criminals were less frequently present. Varieties of the skull and of the external ear, abnormalities of dentition, of the growth of the hair, etc., were found only in from 10 to 20 per cent. of female prisoners, as compared with 40 to 60 per cent. of male prisoners, whereas the well-marked "criminal characteristics" are actually more frequently present in prostitutes than they are in male criminals.

Another important objection to Lombroso's views on the nature of the criminal is answered in his work on political crime and revolutions.

The very title of this book, "*Il delitto politico e le rivoluzioni*" (Bocca, Turin), shows that Lombroso, whose investigations had hitherto been concerned with the criminal only, not with crime itself, was now working in a wider field. Although in this book the sections dealing with the individual factors of political crime, and the descriptions of the criminaloid, degenerate, and mentally-disordered protagonists of political disturbance, are the fullest and at the same time the most successful; none the less, Lombroso's investigations into the historical nature of revolutions and revolts, and his explanation of their etiology, deserve our consideration, and in many cases our admiration.

Unquestionably, this is a field of ideas to which a positive mode of treatment is especially applicable; and in this portion of his work Lombroso has utilized with profit and ability, and not seldom with true genius, the method of Buckle and the conceptions of the doctrine of evolution.

Occasionally, indeed, we cannot fail to notice the lack of adequate criticism of his sources of information, and that too often he has failed to refer on his own account to the ultimate sources. We can excuse him for accepting the authority of Mommsen, Grote, and Curtius, when he is compiling a statistical survey of the political disturbances

of the ancient world; but when he came to study the great French Revolution, it was certainly unwise to accept Taine as an authority. He has no lack of sources of information regarding more recent history; above all, as regards the Paris Commune, the still enduring epidemic of assassinations and attempted assassinations of Kings and Presidents, as regards Russian nihilism, anarchism, and the revolts and revolutions in the Central and South American Republics—all these provide him with a veritable superfluity of material for the study of the etiology and psychical anthropology of revolutions and revolts. In the chapters based upon such information as this the treatment often assumes a merely anecdotal form, which will induce in many readers a critical frame of mind, although the majority will find this portion also of the book alike stimulating and interesting; and, indeed, we must not forget that a thorough study and elucidation of the peculiar individual factors of political disturbances is hardly possible in default of the description of an abundance of individual traits. Thus, we read that Most exhibits the following “stigmata of degeneration”: “repulsive ugliness, an asymmetrical and enormous upper jaw, the eyes of a toad, flaccid skin.” Or we are told of the misdeeds of the Communard, Allix, and are then informed that “he had invented a telegraph, based upon the reciprocal sympathy of twenty-four pairs of snails, each pair representing a single letter of the alphabet.”

Lombroso begins his demonstration with a purely psychological study; he describes the origin and effect of an impulsive tendency, deeply rooted in human nature, to which he gives the name of “misoneism” (hatred of novelty).^[20] In the wounding of this misoneism he sees the essence of political crime, in the glorious defeat of this sentiment, which opposes itself to the most necessary progress, to the very being of social evolution. Thus the

political criminal appears on the one hand as a transgressor against the most legitimate, and organically the most deeply rooted, social tendency of human nature, and, on the other hand (and simultaneously), as the prime advocate of every advance in civilization.^[21]

Misoneism has its roots deep in the organic life, and is merely the expression in the social sphere of *vis inertiae* in the physical. For this reason it is most powerful, not where it has made its appearance in consciousness, or has been erected into a system of conservative principles, but where it is dominant without those guided by this sentiment being aware of the fact; indeed, it is most effective precisely where, in theory and in all good faith, people aim at progress. Thus Lombroso finds the most intensive misoneism among the French, "who prefer the novelty of innovation, who have always loved rather the stormy movement of revolution than its useful results ... for everything novel that the French take to their bosoms must be of such a kind that it does not disturb them in their habitudes. They gladly change their fashions, their ministers of state, and their external forms of government, but continue to cling all the while to Druidism and Cæsarism."

Inasmuch, therefore, as any and every advance in the condition of humanity can be effected only very slowly, and in the face of opposition both from within and from without, and in view of the fact that human society instinctively clings to what is old-established, Lombroso draws the conclusion that efforts towards progress, characterized by rapid and violent means, are in their very nature abnormal. Even if for an oppressed minority such methods are inevitable, they are still anti-social in their nature—that is to say, they are criminal in character, and often uselessly criminal, because they incite misoneism to bring about a reaction, which will carry things back past the original

starting-point. If any innovation is to be adopted, even if in its nature it is unquestionably progressive, it must come quite slowly, and after long preparation. We see this fact quite as clearly in science and in the practical arts as we do in public life. Every step out of the beaten path, every innovation which does not correspond to a generally felt need, and which has not had the way prepared for it by the establishment of a new tradition, is an assault upon the power of misoneism; and in the eyes of those—and they form the great majority—who cling to all that is old-established, such an assault demands the application of the penal law.

But there have been successful revolutions. How shall we, at the outset, distinguish from these, mere frivolous attacks upon the inevitable inertia of social life? Lombroso's book endeavours to find an answer to this question by means of the anthropological (physical and psychical) study of revolutionaries, and by means of a special statistical examination of the historical material, in search of certain factors independent of the individual human being. The answer is expressed in the terms of "cosmic determinism."

We cannot fully understand the matter and the manner of this investigation unless we are acquainted with certain earlier writings of Lombroso's, and more especially with his researches concerning the nature of genius; it is necessary also to give an anticipatory account of his ideas concerning the nature of revolution.

"Revolution is the historical expression of evolution; it is the chicken which has outgrown the embryonic stage, and is ready for life in the open, breaking through the shell." This is a metaphor to which Lombroso returns again and again. If the new development is one with whose idea the generality have become familiar, if the old forms have become rotten, the evolutionary impulse spontaneously

breaks into fresh channels. It is true that even then in some cases some force has to be applied to overcome the resistance of the adherents of the old ways; for, owing to the universality of misoneism, and to the law of inertia, such adherents will always be found, however cogent the need for innovation. Now, the characteristic of genius is its freedom from that which furnishes obstacles to progress, its freedom from misoneism—at least, in respect of progress in that particular direction towards which the particular type of genius is directed. In genius, therefore, Lombroso recognizes at once the source of all those tendencies which gradually swell to form the irresistible flood of revolution, and the helper through whose instrumentality the ultimately mature embryo is assisted to its birth. And just as, on the one hand, the genius accompanies a genuine revolutionary movement, one capable of development, from its first small beginnings down to its victorious close; so, on the other hand, the pseudo-genius, the “mattoid” criminal or the lunatic, excites revolts which oppose themselves in vain to the *vis inertiae* of society, and whose sole result is to hinder the general course of evolution.

In this section of this remarkable book we find a notable stimulus, and the brilliant exposition leads us to formulate all kinds of speculation. We are induced to attempt also to draw up a prognosis. We ask ourselves what will be the outcome of such a movement as that which was initiated in Germany by Lassalle—half genius, half-moral eccentric—a movement which has found its fool and its half-fool in Neve and Most respectively, and among whose adherents even now the question is being discussed whether the old Prussian suffrage system shall be and can be destroyed and rebuilt by means of street-demonstrations and the general strike.

Lombroso utilized the relations between genius and revolution in a most remarkable manner for the purpose of studying the nature of revolution. A notable portion of his material, and unquestionably the most trustworthy portion, is constituted by the official statistics of the French elections to the Chamber of Deputies in the years 1877, 1881, and 1885. In a nation whose disposition and development have been of so monarchical a character, Lombroso proceeds, a republican vote signifies adhesion to a revolution. "In these elections we have the numerical expression of revolution in its legitimate form—a form entirely free from any criminal or insurgent features."

In a very detailed manner he then proceeds to demonstrate the complete parallelism in France between genius and revolution—that is to say, republican sentiment—which, if not easy to display numerically, nevertheless is and has been universally dominant. Reference is also made to a kind of statistical statement of genius, which was given by Lombroso in another work, "*L'uomo di genio*," 1888.^[22] From these statistics he derives an "index of genius" for every department in France, and according to the size of this index the departments are arranged in groups. These will be seen to correspond in a most striking manner with the groups we obtain by classifying the departments according to their republican or monarchical proclivities.

This analogy is pursued yet further. In a number of interesting tables, diagrams, and charts, the French departments are grouped according to their configuration (mountains, hills, and plains), the geological character of their soil (granitic and other primary formations—jurassic, cretaceous, alluvial, etc.), according to the racial origin of their inhabitants (Ligurian, Iberian, Cymric, Ruthenian, Gaelic, Belgic, etc.), and for each group the predominant political tendency and the index of genius are determined.

In this way also he deduces an analogy bordering on identity between republicanism and genius.

Apart from such analogies as these, his analysis of the electoral results in France, and his grouping of the republican and the monarchical departments according to the configuration of the surface, the geological character of the soil, and the origin of the population, are of the greatest interest; and the interest is further increased by the accompanying commentary dealing with a mass of facts relating to other countries. Thus, of thirty-six departments of a mountainous character, twenty-five are republican; whereas of ten departments in the plains, four only are republican. Lombroso gives numerous examples to show that the inhabitants of mountainous districts are inclined to more rapid evolutionary changes than the inhabitants of the plains, who are more averse to novelty. On the other hand, at very lofty altitudes indeed, an apathetic temperament and political indolence are dominant. Thus, in Mexico, the inhabitants of districts at an altitude of over 2,000 metres (6,560 feet) above the sea-level are characterized by passivity. The inhabitants of the capital city, which is situated at about this altitude, are politically indifferent, and take hardly any part in the revolutions of the country. It is the troops only, recruited from other parts of the country, which issue the *pronunciamentos*.

The monotonous scenery of the plains induces an equable internal state in the inhabitants, and thus strengthens in them the sentiment of misoneism. Only the proximity of large rivers, on which great industrial towns grow up, encourages a political vitality in the plains. Factors of another order may intervene, and may counteract this monotonizing influence of the plains. Here, above all, we note the effect of the crossing of races, in consequence of which the Poles, through contact and intermixture with the Germans, have undergone a notable development in

civilization and political life in advance of so many other Slavonic races. In this connection, Lombroso lays especial stress upon the first effects, the nascent state, of such intercrossing of races, and refers the rapid decline in Polish evolution to disappearance of this *status nascendi*. (This notion of Lombroso's is supported by the fact that the partition of Poland was followed by a renewed crossing of the Polish with the German stock, and there ensued upon this, in the middle third of the nineteenth century, and again to-day, in addition to the blossoming of a quite unexpected industrial, scientific, and literary quickening of the race, a recrudescence of the Polish revolutionary spirit. For a long time the force produced by the nascent state seemed exhausted, and the revolutionary spirit of the Poles appeared to have become metamorphosed into clericalism.)

In addition to the permanent factors of soil and race, by means of which a nation is rendered capable of pursuing a successful course of development through a series of fortunate revolutions, there are other and variable influences which give rise to a continuous rebellious unrest. Pre-eminent among these influences is a climate characterized by periods of rapidly rising temperature, whereas a tropical climate induces absolute indolence in the inhabitants, so that in tropical countries history has nothing to record regarding class-struggles, conspiracies, and serious insurrections.

The hot season in the southern regions of the temperate climes is a cardinal factor in the production of political disturbances. Lombroso has proved this by the utilization of material whose official origin appears to him to render it entirely trustworthy—namely, the data recorded in the Calendar of Gotha for the years 1791 to 1880. In this period we find an account of 836 revolts, rebellions, insurrections, etc., of which 495 took place in Europe. The maximum of the European disturbances took place in the

month of July, whilst of the South American revolts, the maximum occurred in the corresponding month of the southern hemisphere—viz., January. The more recent records, relating to outbreaks in Argentina and Chile, confirm this conclusion. The smallest number of revolts occurred—in Europe, in November and December, and in South America, in May and June. If we examine the records of the individual European nations, we find that among all the nations of Southern Europe the summer is the principal time of disturbance. In the case of five nationalities (the Norwegians, Swedes, Danes, Poles, and Irish) the spring predominates. In one case only was there a maximum of revolts in winter; this was Switzerland, in which ten out of twenty-four recorded outbreaks occurred during the winter season.

Another tabulation of the figures displays the predominance of the nationalities of Southern Europe in the statistics of insurrection. In Greece there were 95 revolts per 10,000,000 inhabitants, this being the maximum; in Russia, down to the year 1900, there were 0·8 per 10,000,000 inhabitants, this being the minimum. Dividing Europe into three zones, we find that in Northern Europe there were 12 revolts, in Central Europe 25, and in Southern Europe 56, per 10,000,000 inhabitants.

Even richer in facts, and more engrossing in consequence of vivid description and apt characterization, is the analysis, in chapters vii. to xii., of the individual factors of political crime. The significance of age and sex are studied, and we find a detailed description of the female protagonists of Russian nihilism, who are depicted as the noblest examples of the “revolutionist by passion.” A description is then given of the born criminals and the morally diseased among rebels and insurgents, with a full account of their individual peculiarities. Proof is submitted of the great part played in all important insurrectionary

movements by the insane and the partially insane ("mattoids"). An elaborate account is given of the characteristics and influence of the "political occasional criminals and political criminals by passion," who are closely allied to the revolutionary genius, and commonly exhibit a noble type of character. Whereas among the French revolutionaries of 1793, among the revolters in South America, the rioters of the Paris Commune, and the modern anarchists, Lombroso finds the most bestial criminal natures and the most horrible moral insanity predominant, among the heroes of the prolonged Italian struggle for freedom and among the so-called nihilists he describes a number of anthropologically normal and noble figures, from whom nothing is more remote than degeneration, criminality, or mental disorder. The chapter is illustrated by a large number of portraits, including those of Louise Michel, Ibarbar, Reinsdorf, and Hödel, as criminal physiognomies; and contrasted with these are the noble countenances of Mazzini, Bakunin, Scheljabow, Wjera, Sassulitsch, Perowskaja, etc.

At the end of this first part of his book, Lombroso sums up the whole of his material for a differential diagnosis between revolution and revolt. Then follows the second part, which was written in collaboration with a young jurist, the Veronese advocate Laschi. Here we have an historical account of the genesis of political crime, with a description of the earlier and more recent methods of dealing with it, both national and international; and an attempt is made, from the standpoint gained in the first part, to formulate juridically the principal elements of political criminology, and to reconstruct the foundations of its penal repression. The conclusion consists of a detailed account of the economic and political prophylaxis of "political crime," in which from time to time—and more especially in the criticism of Italian parliamentary government and party

politics—Lombroso's original modes of thought are strikingly manifest. For the most part, however, these prophylactic prescriptions have reference merely to co-operative associations, insurance against unemployment, and a number of political measures of a more or less "State-Socialist" character of no particular originality, and derived, as it seems to me, in part from the ideas of Luigi Luzzati (the present Minister President), and in part from those of Achille Loria.

The chief merits of the book are not found here, but in its historico-philosophical ideas, which in this concluding portion are but slightly sketched, and in the masterly manner in which, with the aid of a vast material, the foundations are laid of our knowledge of the psychology of the rebel, whose lineaments are depicted with the truest perception of nature and of history.

Lombroso's daily contact with prisoners awaiting trial, owing to his official position as medical officer to the prison at Turin, the criticisms passed from the legal side upon his doctrine of the "born criminal," and the continued exchange of ideas with so distinguished an expert in the theory of jurisprudence as Enrico Ferri, led him in twenty years' ensuing work, in which he accumulated an enormous mass of observations of his own, and utilized the entire international literature of the subject, to study the criminal by passion, the occasional criminal (economic etiology of crime), the habitual criminal, and other abnormal categories of criminals (in addition to the born criminal)—criminal alcoholics, criminal lunatics, and criminal epileptics. The results of all this work were incorporated in the third, fourth, and fifth editions of "*L'uomo delinquente*." From the year 1880 onwards he was assisted in this gigantic undertaking by able personal assistants, and from this year dates the issue of his *Archivio di psichiatria*, in the

production of which he enjoyed the collaboration of an international circle of colleagues. At the same time, the doors of all Italian prisons were open, not to him only, but also to his pupils and fellow-workers—an advantage which I myself occasionally enjoyed. Beltrani-Scalia,^[23] the chief of the Italian prison administration, placed at Lombroso's disposal the entire official material of his department; and Lombroso utilized this, not only to strengthen and develop his theories, but also for the foundation of a unique criminal museum, and for the preparation of carefully-thought-out plans of penal reform. From every quarter materials streamed in, by which hundreds of heads and hands were kept busy. Lombroso's grown-up daughters, Paola and Gina, became readers, translators, actuaries, and sub-editors; and the house in the great square of Turin, from which in the evening can be seen the sunset glow on the peaks of the western Alps, became, not only the collecting centre of the materials pouring in from every direction (ultimately even from the slowly-moving Anglo-Saxon world), not only the source of an extensive journalistic propaganda (in Germany furthered by Maximilian Harden's paper, *Zukunft*, which even then had a wide and increasing circulation), but, in addition, the meeting-place of numerous foreign investigators engaged in the study of the social and biological sciences. Here the heavy red wine of Piedmont, which was supplied with no sparing hand, loosened many tongues; but wine was assuredly not the sole enlivening element in the house, in which distinguished simplicity and a patriarchal atmosphere combined to melt the chill reserve no less of the Prussian Privy Councillor than of the English University Professor, so that the conversation of all was brilliant and unrestrained.

These years of propaganda and of practical efforts on behalf of reform—1885 to 1900—undoubtedly owed a part

of their brilliancy and of their practical fruitfulness to Lombroso's daughters, who first by means of their women friends (among whom I may give the leading place to the social reformer, Madame Kuliszew), and subsequently by means of their affianced husbands (G. Ferrero and M. Carrara), brought fresh worlds of ideas into contact with that of their father. To the elements already enumerated were added music and the plastic arts, and the friendship of such artists as Bistolfi—drawings and sketches by living artists, and casts of celebrated sculptures were dispersed among the skulls and the books with which almost every room in the house was filled. The glorious harmonies of Beethoven and Wagner were not only re-echoed in the hearts alike of young and old among the audience, but also resounded from the skulls of ancient Peruvians and from painted prison-utensils. This was the environment from which came the masterly sketch of the nature of woman; and thus it came to pass that the anthropology of calculus and measuring-rule receded into the background, and was replaced by a profound psychological insight. As a result of such stimuli, and of others too numerous to mention, there originated the intimate analysis of the criminal mentality, in consequence of which the criminal is no longer regarded merely as the savage and atavistic descendant of the prehistoric mammoth-hunter, but rather as one in whom the observer now perceives also, and depicts with the sure hand of a master, the lineaments of an unfortunate being impelled to crime by his passions, by the pressure of want, by exploitation and impoverishment. At the same time the psychological description of the born criminal nature gained additional clearness of detail and sharpness of outline. We must look for this description, not only in the last edition of the chief work, but also in the numerous monographs on individual criminals whose offences attracted public attention during these years of Lombroso's

ripest knowledge and fullest creative force. The last of these figures was the Parisian, Madame Steinheil.^[24]

Lombroso's criminal psychology deserves much more attention than it has hitherto received. In relation to the practical problems of criminal jurisprudence it is more important than were his purely anthropological investigations, although these latter have attracted far greater popular notice. Alike to the expert in forensic medicine and to the psychiatrist, criminal psychology possesses greater diagnostic importance; for it is often necessary to determine whether, in a certain individual, acquired mental infirmity, congenital mental infirmity, or some special and peculiar type of degeneracy, predominates. It is not permissible for the medical jurist to argue as follows: "This individual has remarkable physical characters and incomprehensible psychical peculiarities, and he is therefore ill and irresponsible." The incomprehensible character of a crime or the enigmatical character of a personality is not rarely used as an argument for the belief that mental disorder, and consequent irresponsibility, exists. But this is not a valid inference. A knowledge of the psychology of the respectable bourgeois and of that of the ordinary philistine, or a limited acquaintance with the insane confined in institutions, does not provide any experience of the interweaving of complicated and peculiar motives and feelings in the psyche of the criminal nature. A thorough knowledge of criminal psychology, which is rare to-day,^[25] and which, for obvious reasons, is difficult to obtain, is an essential preliminary for the distinction of criminal natures from the insane and from imbeciles.

Not infrequently it is maintained that the performer of a criminal act cannot be normal if we are unable to discover any profit which he could have derived from his act. The characteristic of a criminal, it is held, is to injure others to

gain a personal advantage; but to injure others simply for the sake of doing injury is said to be characteristic of psychological anomaly.

This assumption is contradicted by two fundamental traits of the criminal nature—recklessness of consequences and cruelty. The recklessness of the criminal nature leads him rather to yield to momentary impulses than to pursue a deliberate purposive plan. The cruel individual, not only as criminal, but also as savage, as despot, as violent leader of a mob, takes a positive pleasure in others' suffering. Nothing, for example, is commoner in the school and the barrack than such a phenomenon as this. To a certain degree, indeed, we find it in the average man, in the normal philistine and the pedant, perhaps, more than all, although only in a low degree of intensity. Many criminal natures undoubtedly possess this tendency to a very high degree, and take a positive delight in the thought of being able to inflict pain and fear on others. But herein they merely exhibit, after their *own* fashion, a general tendency of human nature to find pleasure in the possession and exercise of power, and thus to feel superior to others, and to manifest this superiority by means of the infliction of pain.

In this sphere of cruelty there is certainly no more than a quantitative difference between the criminal nature and the normal philistine, and least of all will one who is really familiar with the erotic life of mankind, which is the principal sphere of the mutual infliction of suffering, maintain that in its association with cruelty there is anything that can be termed pathological.

Unquestionably, many crimes are committed because the injury inflicted upon another is in some way profitable to the criminal. This, indeed, is little more than a matter of business. But just as many crimes are committed because the injury of another is painful to that other, and because

the criminal—the usurer, for example—actually experiences pleasure in having given rise to others' pain.

The profound psychologist, Friedrich Nietzsche, has detected the roots of this phenomenon in average human nature. He speaks of the “horrible beautiful” of crime—of the happiness of one who has completely freed himself from the lower instincts of compassion and from the evil beast “conscience.”

Abundant as are the materials for a special psychology of certain specialities in crime, and extensive as was Lombroso's acquaintance with individual criminals, none the less his account of the elementary qualities of the criminal nature is extremely simple. The differences between individual criminals, who at first sight appear extremely unlike, frequently depend merely upon the fact that the inclination to enrich their own personality at the expense of another is associated in the one case with a favourable, and in the other with an unfavourable, economic position. The thievish proletarian will steal anything he sees lying about or anything that he finds in someone else's pocket. The millionaire similarly disposed will not steal single purses, but will find ways and means of emptying very numerous and very large purses. The criminal proletarian is a petty thief or a burglar; the criminal bourgeois founds fraudulent banks and limited liability companies, or transforms sound undertakings into swindles, or he systematically swindles his partners. Fraudulent bankruptcy is the leading field of typical bourgeois criminality. Thus we get an insight into the operation of many of the so-called “economic factors” of crime, which in essentials amount to this, that in times of economic depression a large number of unscrupulous persons seize opportunities for stealing bread that has risen in price or the money that is needed for the purchase of bread—a larger number than in more prosperous times;

whereas in times of commercial expansion the talents of the swindler on the large scale and of the millionaire plunderer find their greatest opportunity. Moreover, it is clear that one who has no regard for his personal reputation will, if he is a poor man, more readily turn to the commission of offences against property; but if he is well-to-do, he is more likely to commit offences against the person. This is shown by the fact that those who are well off more often offend against the health, life, and sexual freedom of others; whilst those who are ill off more frequently commit offences against property. And it is further shown by the fact that when wages are rising, and the prices of the necessities of life are falling, crimes against the person increase in number, whilst the number of thefts and embezzlements diminishes. This tendency is still more clearly manifested if the rise in wages and the fall in prices are simultaneous.

In addition to cruelty, which we encounter not only in offenders against the person, but also see frequently in the form of a lack of sympathy, in usurers and cheats, the comparative psychology of criminals enables us to recognize in them as permanent qualities a recklessness and remorselessness,^[26] and, in most cases, also an entire lack of integrity—that is to say, merely negative qualities—due to deficiency in the development of sensibility. Among positive qualities, a characteristic one is the fatuous vanity of many habitual criminals. It is a phenomenon of worldwide familiarity that that which in the life of a human being was at first a means merely, ultimately becomes an independent end—indeed, the sole aim. This we find also in the career of the criminal, to whom crime becomes a field for vain display. The art of pocket-picking, of housebreaking, of poisoning, ultimately becomes one pursued for its own sake. Some have thought this almost demoniacal; but there is nothing very singular in the

practice of an acquired facility from the pure pleasure of its clever performance—art for art's sake. Moreover, we see the same thing also in criminals who secretly destroy property or secretly commit arson. Here the art of remaining undiscovered is cultivated for its own sake.

Lombroso gives a very elaborate description of several other psychical characters of criminals—of their religious life, and of their poetry and their literature, which latter, in bloodthirstiness and savage sensuality, closely resemble the tribal songs of the Australian blacks. In his subtle observation and description of the criminal psyche, in which he took note of the smallest details, and at the same time combined these details into a most effective general picture, making use alike of apparently trifling scrawls on prison walls and of comprehensive historical studies of crime, is certainly to be found his chief service. Here we find one of the finest examples known to modern psychopathology of the minute observation of details. Lombroso shows himself to be a true interpreter of nature, and a genius to whom, in the depth of his insight into human nature, we can, among the moderns, compare only Dostoevsky, and, among those of an earlier day, only the brilliant criminal psychologist Shakespeare.

An important circumstance in the development of the individual criminal is the existence of a professional rascality with ancient traditions, representing a kind of syndicated organization of the criminal interests, associated with the equally old traditions of the receivers, vagabonds, prostitutes, and gipsies. This has introduced into the life of crime a conventional element, which would naturally not be able to maintain itself unless it corresponded to the innermost nature of the criminal. The old national capitals—Venice, Madrid, Paris, London—still possess ancient traditions of this character; but the colossal growth of the modern industrial towns has given

rise, in addition, to the existence of a criminal world without traditions, one which knows little or nothing of the three leading features of the ancient tradition—thieves' jargon, tattooing, and soutenance. Southern Italy and Sicily have preserved criminal organizations in the Camorra and the Maffia, out of which there has developed a systematic taxation of the propertied classes, and which even possess Parliamentary powers.

Side by side with the ancient thieves' jargon, almost venerable in view of its genuine antiquity, as shown by numerous words and phrases derived from the Hebrew and Romany tongues, there has arisen the ever-changing speech of the *canaille*, to which contributions are continually furnished, first, by prostitutes, through whose intermediation is effected a contact between the most diverse classes of society; secondly, by submerged individuals originally belonging to the upper classes; and, thirdly, by the artist world. These jargons are naturally in a perpetual flux. They possess their classic writers, as does, for instance, the argot of contemporary Paris in the talented Bruant, to whom every new variation of the jargonization of speech streams down from the summit of Montmartre, and whose songs are diffused throughout France from thousands of small music-halls, just in the same way as François Villon, four and a half centuries ago, disseminated the jargon of his day in shameless but inspired songs.

Now, unquestionably, every argot possesses a criminal psychological interest. The *canaille* will take the new-coined word to its heart only when the thing or the relation described by this word expresses something of great or supreme importance to the blackguard or the cheat. To the burglar, the baby is important principally as a "screecher," so he accepts this new-coined word. To the thief, in the same way, the fingers are "hooks," or, in the argot of

Poland, *grabka*—that which grips. To the naturalism of the vagabond, the cook from whom he begs may be most aptly described as *finkelmusch*—*finkel* being the fireside, and *musch*, a Hebrew word for the vulva.

The humour of every jargon lies in this—that its words are formed by the naming of that part of the denominated whole which appears to the name-giver to be the most important element of that whole. The astonishing vividness and speech-forming power often recognizable in such jargon is really somewhat atavistic when compared with the wearisome newspaper jargon (“journalese”) of our modern books among all civilized peoples. By means of precisely such a word-formation, directed towards the vivid and important, did the colloquial speech of prehistoric man originate.^[27]

In tattooing we recognize allied qualities of originality and force. Many criminals depict on their own skins their fate and their philosophy. Naturally, most of them adorn themselves with merely professional designs, devoid of all trace of originality; but the standard specimens of this decorative art naturally correspond to the taste of the customers, just as the standard specimens of any other decorative art correspond to the taste of the public that demands it. Æsthetically, in fact, a criminal who has his skin tattooed stands nearer to the savage Fiji Islander than he does to the European decorative taste of the common people, as displayed in the shops of the working-class quarters in which chimney “ornaments” are sold. It must be admitted that æsthetic sentiments are not very closely allied to ethical. Nevertheless, the former are emotional stirrings, and it is in this sphere that we must look for the fundamental traits of the criminal nature. It is in this that we find the significance of the tattooings so often met with in criminals, even in those who have never been convicted, who have never been in a barrack, a shop, or a factory. In

Lombroso's atlas we find reproductions of numerous fantastic tattooed designs.

Thus the most important element in the psychology of the criminal is a rudimentary development of the life of feeling in general.^[28]

In an elaborate analysis of the mind of the criminal,^[29] I have endeavoured to show that this mind is dominated by the sovereignty of the moment, a feature in which it resembles the mind of the child and the savage. Here we have an indication that in the criminal, as in the child and the savage, inhibition—the most important function of the brain—is not developed^[30]; for inhibition operates under the influence of our previous experiences and of the continuous consideration of the future consequences of our present actions. Undoubtedly, it is also characteristic of the criminal by passion that, at the time of the deed, the momentary motives drive out or paralyze all past experiences and all considerations for the future. But that which, in the case of the criminal by passion, occurs but once or a few times only during life, is in the born criminal a continuous state, one which characterizes his non-criminal as well as his criminal activities.

It is obvious that alcoholism—from which almost all habitual criminals suffer—must favour the failure of inhibition. The psychology of the criminal is, as a rule, so interpermeated with the characteristics of alcoholism that it is often necessary to grope back into the childhood of the individual in order to ascertain the original lineaments of his character.^[31]

The parasitism of the existence of the criminal is mainly an outcome of economic conditions, and not an elementary feature of crime. In this respect, criminality closely resembles prostitution, which, at least in the modern large town, is through and through a product of parasitic luxury.

Passing on now to consider the pressing question of the causal connection between the psychical and the physical fundamental characteristics of the criminal, we find that it is not possible from the physical characters to deduce with certainty a corresponding development of feeling. But it may well be that both series of phenomena result from a common cause—viz., the arrest of development at a not completely human stage of evolution. This conception of Lombroso's—which I myself regard as correct—is readily comprehensible by every evolutionist, for the evolutionist must assume the inheritance of social feelings, and therewith also the inheritance of the organic substratum of these feelings.

In accordance with the modern standpoint of physiological psychology, we have every reason to regard the vasomotor nervous system as a part, at least, of the organic substratum in which, alike in the individual and in the race, the development of feeling runs its course. A very strong reason for believing that the predisposition to crime is based upon a definite congenital tendency is to be found in the fact that the inheritance of criminal tendencies is manifested also in cases in which neither environment, nor education, nor example, suffice to account for the phenomenon. A very large mass of materials has been collected bearing upon this thesis, a part of which will be found in Lombroso's own writings, a part in Ribot's celebrated work on "Heredity," and a part in my own "Natural History of the Criminal." The most frequent manifestations of criminal heredity take the form of a tendency to fraud, to arson, and to sexual crime. Cruelty, also, is very frequently inherited; and this tendency sometimes finds expression in the desire, as a hospital nurse, to see as many operations as possible, or, at least, to witness as many confinements as possible. The inheritance of criminal tendencies is also shown by the frequency of

criminal acts in children; and at the present day, in the enormous increase of youthful criminality, the primitive and original character of criminal tendencies is most clearly manifested.

Finally, the incorrigibility of many criminals, and their innumerable relapses into crime, afford a proof, not merely of the uselessness of our penal systems, but also of the organic nature of the predisposition to crime. All the experience hitherto recorded shows that those individuals who, anthropologically speaking, exhibit the most severe stigmatization, are also the most hopeless recidivists.

It is a point much open to dispute whether the congenital tendency to crime is essentially a morbid predisposition; but the discussion is profitless. Unquestionably the professional criminal throughout his life exhibits a marked tendency to mental disorder. Many of Lombroso's adherents are inclined to regard insanity as a professional disease of prisoners. It must not, however, be forgotten that debauchery, poverty, alcoholism, and close confinement—conditions inseparable from the criminal life—would suffice of themselves, and in the absence of any predisposition to insanity, to induce mental disorder.

This has nothing whatever to do with the problem of the responsibility of the born criminal. In the most exceptional case we can admit that the criminal is strongly predisposed to become insane.

This is a suitable place in which to draw attention to the fact that Lombroso himself emphasizes the relationships between epilepsy and the criminal nature; and, indeed, that he draws an analogy between the permanent psychical state of the born criminal and the conditions of brain giving rise to epilepsy. To some extent, indeed, he regards the two conditions as identical. His account of these relationships exhibits the characteristic features of his mode of thought. He possessed the impassioned tendency of the great

investigator of Nature, as it was also embodied in Darwin; and he possessed at the same time the patience of the collector. He knew, also, how to demonstrate his results forcibly and vividly; but he was less richly endowed with the faculty of sifting his data, and of grouping them in accordance with a natural, and not merely superficial, criterion. Thus it happened often enough that, perceiving intuitive analogies, his lively imagination led him falsely to regard them as identities. He tells us that in the criminal, as in the epileptic, he discovered the following characteristics: "Tendency to lead a vagabond life, inclination to obscenity, uncleanness, pride in evil actions, a passion for scribbling, a tendency to neologism, tattooing, dissimulation, lack of definite character, easily aroused to wrath, megalomania, vacillations of thought and feeling, cowardice. In epileptic and criminal alike, we find a lengthening of the personal equation (reaction-time), when compared with the normal human being; the same vanity, the same tendency to self-contradiction and to universal exaggeration." He considered that this identity was confirmed by the similarities which can be detected between criminals and epileptics in respect of certain forms of blunting of cutaneous sensibility and other sensory perceptions. It must also be remembered that Lombroso's conception of epilepsy was a very wide one: "To-day, in fact, in accordance with the completely harmonious results of clinical and experimental pathological research, epilepsy has been resolved into a circumscribed stimulation of the cerebral cortex, resulting in paroxysms, sometimes momentary, sometimes of long duration, but always periodic, and always superposed upon a degenerate foundation, whether this foundation be inherited, or acquired through the abuse of alcohol, in consequence of injury to the skull, etc."

As regards this theory that epilepsy is a basic element in the criminal nature, Lombroso finds a link between epilepsy and criminality in certain types of character which, long before his time, certain alienists—especially those of England—had described as quite specific, and as differing entirely from ordinary insanity. As the psychiatric name for these types, the English phrase “moral insanity” has been widely accepted. Such cases are regarded by Lombroso as developmental stages on the way to the formation of the criminal nature. Writing on this subject, he says (German edition, p. 521): “Just as moral insanity passes insensibly into its higher degree—born criminality—so also the epileptic criminal, when his liability to acute or to larval paroxysms has become chronic, exhibits the more advanced manifestation of moral insanity. In the less developed periods we cannot distinguish between these types; and just as two things which are equal to the same thing are equal to one another,^[32] so also, undoubtedly, born criminality and moral insanity are both of them nothing more than variants of epilepsy (Griesinger terms them “epileptoid states”).”

In order to give us a more vivid idea of these epileptoid states, Lombroso groups them as follows:

- First degree, larval epilepsy.
- Second degree, chronic epilepsy.
- Third degree, moral insanity.
- Fourth degree, congenital criminality.
- Fifth degree, criminality by passion.

This view has been opposed in various quarters on the ground that Lombroso, in other parts of his leading work, explains criminality as an atavistic reversion to primitive human types, and that, consequently, in accordance with the same principle of equivalent values, the type of the epileptic must also be identical with that of primitive man.

This conclusion being an impossible one, it is held that Lombroso's whole chain of reasoning is false. But Lombroso invokes the principle of equivalent values in relation, not to qualitative, but to quantitative, relations. His opponents have just as little right to use this principle for a *reductio ad absurdum* as Lombroso himself had to speak of "identity" instead merely of "analogy." It must be admitted that the criminal and the epileptic temperaments are very closely allied, that epileptics provide a disproportionately large contingent to the world of crime, and that it is quite possible that genetic relationships exist between the born criminal and the epileptic. It may well happen that when a mother suffering from nervous or mental disorder becomes pregnant, the brain and the whole organism of her child will be poorly nourished, and will, therefore, not develop normally. The child may have its development arrested at an earlier and more primitive stage, corresponding to the type of a remote ancestor, and, at the same time, these nutritive disturbances may lead to disturbances in the formation of the nerve elements, whereby the child is rendered epileptic throughout its life. The child is thus born an epileptic, and according to the nature of the arrest of development from which it suffers, it may happen that it is incapable of a normal development of the life of feeling, or it may be incapable of acquiring a normal power of resistance to anti-social impulses. It then becomes a criminal, and is, at the same time, an epileptic, with atavistic characteristics. These features may thus be united at the root, as we may see in every idiot asylum, and, unfortunately, also in numerous instances in every prison.

By this identification of the born criminal with the moral imbecile Lombroso has also given occasion to misunderstandings. It was not his intention to define the criminal with reference to the still insufficiently studied

moral insanity; but, contrariwise, to say that we are only justified in speaking of moral insanity in cases in which his (Lombroso's) "criminal type" is seen to exist. Thus moral "insanity" is defined by means of criminality, and thus an entirely new and very vivid conception of moral insanity is rendered possible; for Lombroso's "moral insanity" is not an acquired disease suddenly attacking the brain and suddenly introducing psychical disturbances, but it is the psychological expression of criminal degeneration. Thus, also, he always contrasts the moral lunatic with the ordinary lunatic, and a large proportion of his material is grouped in such a way that this contrast is clearly exhibited with the aid of all the methods of anthropological and psychological study. If he goes on to describe moral insanity as a mere variant of epilepsy, the principal difficulty he has to face is the contradiction this involves with his atavistic explanation of the criminal nature. But if, in the appearances of atavistic traits, we see nothing more than a coordinated element of criminality, this contradiction disappears, while the marked similarity remains, which harmonizes, above all, with Samt's description of epileptoid states; and the theory is further supported by the fact that the stigmata of degeneration are commonly present in both types. The extraordinary frequency of epileptoid types in prisons has also been pointed out by Sommer, Knecht, Sander, Moeli, and Kirn.

This view of Lombroso's is, above all, supported by the fact that criminality and epilepsy are hereditary equivalents—that is to say, that criminals frequently have epileptic children, and conversely. If, however, we find no lack of relationships between epilepsy and crime, these are not explained by the supposition of a simple identity between the two. What Lombroso has succeeded in proving is that in the wide group of degenerates who, under certain social conditions, may become criminals, the epileptics are

notably represented. Epileptics, indeed, unquestionably belong to the less valuable constituents of society.

The importance of the “stigmata” described by Lombroso as indications of psychical degeneration can no longer be disputed, however difficult it remains to understand what relationship handle-shaped and projecting ears, facial asymmetry, dental abnormalities, hypospadias, epispadias, etc., can have to psychical degeneration. We have, in fact, no better explanation than the phrase “correlation of growth.” Our present knowledge of the functions of the brain certainly does not suffice to elucidate the causal chain by means of which anomalies of the skull are associated with moral imbecility. But, after all, there is no single problem of psycho-pathology in which the chain of causation is completely known to us. However, it should not be difficult to understand that a brain enclosed in an abnormal skull can never develop to the full its most complicated function—viz., the coordination of the voluntary activities for the purposes of a course of conduct adapted to the conditions of social life.

The term “degeneration” is unquestionably an indefinite one, and remains to-day incapable of either anatomical or physiological explanation; but it owes to Lombroso’s researches a definite *practical* significance, from the fact that he has proved that the majority of degenerates are socially inadequate, and, further, that this social inadequacy of degenerate individuals makes their existence a great danger to society. The degenerate is often an anti-social being, and society must protect itself against him.

The importance of these stigmata was not comprehensively understood by Morel and the other predecessors of Lombroso, in respect either of their mode of origin, or of their grouping to constitute specific types of degenerate. Morel merely sketched the outlines, and enumerated a few important facts about degeneration. One

small area only of this enormous province has as yet been carefully studied—that of criminality. By Lombroso's anthropometric and other researches very numerous demonstrations and statistical classifications of the stigmata of degeneration have been effected, whilst nothing of the kind has yet been attempted in respect of other forms of degeneration. As a result of his work, we are enabled to define the type of the criminal as that form of degeneration which is characterized morphologically and biologically by atavistic characters, and psychologically by the deficiency of altruistic feelings. Even if this type does not afford us a brief or invariably harmonious signification of crime, still, in a period in which we no longer believe in the persistence of species, and in which, even in "good species," we recognize the tendency to variation, we must not demand that a degenerative subtype should exhibit constant characters.

CHAPTER IV

GENERAL CONSIDERATIONS REGARDING LOMBROSO'S LIFE-WORK AS A SOCIAL REFORMER, HIS METHODS, AND HIS PHILOSOPHY

Lombroso's life-work was by no means confined to the highly specialized field of criminal anthropology. For more than thirty years he was engaged in the description and elucidation, in a very large number of monographs and handbooks, of various social ills—crime, prostitution, alcoholism, pellagra, anarchism, revolts, anti-Semitism. It was as pathologist and anthropologist that his attention was, in the first instance, drawn to these matters; and it was his aim to show that these phenomena—together with many others of which his study was merely occasional—owe their origin to the typical characteristics of the anti-social individual.

To this aim, and to his discoveries, under the guidance of this aim, in the most diverse fields of human experience and knowledge, are due his peculiar significance in the history of science.

He was an anthropologist, but he studied human beings, not in artificial isolation, nor in respect merely of individual organs, such as the skull or the brain—he studied man as he always manifests himself, as the member of a

community, man more or less perfectly adapted to his environment, and, in so far as he is imperfectly adapted, in conflict with the hostile forces of that environment. He studied especially the ill-adapted varieties of mankind, and those which lack the faculty of adaptation; and in this study he endeavoured to discover "types."

As a thinker, his nature resembled that of Spinoza. Like Schopenhauer, Buckle, Quetelet, and Vico, he was one of the most notable advocates of the determinist conception of society and of history. Looking far beyond the horizon of a merely economic view of human society, he sought and found the laws of development of human society rather in the laws of organic nature.

Undoubtedly many of his ideas and tendencies are in harmony with the materialist conception of history, and for this reason we find many of his most distinguished pupils and collaborators in the Marxian camp; but it was impossible that a man endowed as he was with an intuitive capacity for the understanding of the conception of the biological determination of social phenomena should be content to deduce the actions of individuals and the fate of a nation from the economic structure of the society in which the individual and national life are passed.

In his conception of human life, determinism is, indeed, so self-evident a premise of research, that it is not even discussed, and is hardly so much as mentioned; in this respect Lombroso stands on the same platform with the supporters of the materialist conception of history.

But the extent to which, in its detailed application, his biological determinism leads to different results from those which are the outcome of the economic determinism of the Marxians will best be shown by a specific illustration.

This illustration relates to the elucidation of the causes of a tumult which occurred in Esthonia in the year 1905. The

judge before whom the persons arrested during the suppression of the revolt have been brought wishes to discover who were the ringleaders; the psychologist wishes to ascertain to what extent imitation, suggestion, or hypnotic automatism, has impelled certain ordinarily law-abiding citizens to take part in the disturbances; the editor of the local Marxian newspaper demonstrates the causes of the revolt by an analysis of capitalism in general, and of the economic and social characteristics of the government of the disturbed section; the reactionary politician will consider that the fault lies in irreligion, in the disturbing effect of revolutionary agitation, and in the decline in the authority of a government in which constitutionalism has replaced absolutism, and whose punitive measures have lost their former repressive severity. But if Lombroso had been summoned to the prisons of Liebau, Riga, Dorpat, and Reval, and had been invited to ascertain the causes of the Letto-Esthonian jacquerie, he would have examined the meteorological records at the time of the disturbances; would have inquired carefully regarding the racial origin of the persons arrested; would have looked for stigmata of degeneration in their physiognomy and physical characteristics, especially those of the skull; would have noted how many epileptics, hysterics, lunatics, and alcoholics there were among them; would have distinguished the habitual vagrants and those with previous convictions. Among the women arrested during the jacquerie, he would have asked how many were menstruating at the time; he would have made a list of the adolescents entirely dominated by fanatical doctrines; a list of the agents provocateurs; a list of those instigated by feelings of personal animosity against the local landed gentry and their retainers. And when all this had been done, it is very doubtful if among the accused there would then remain any considerable residuum in whom an advocate of the materialist conception of history would be

able to prove the existence of a purely economic determination to the offences with which they have been charged. And even if Lombroso, as is not improbable, should have found among those arrested or liable to arrest some disciples of Bebel or of Schönlank, his analysis of their inherited tendencies, their gynæcological state, their sensibility and reflexes, the shape of their skulls and the extent of their visual fields, would ultimately bring to light determinants of their actions quite other than their acquired orthodox Marxism, which a jurist of the school of Plehve would have denounced as the *vera causa*, or sufficient reason, for their participation in the disturbance.

In no other way can we obtain so clear an idea of Lombroso as a sociologist as from a study of his remarkable book on political criminals and revolutions.^[33] (See above, Chapter III., pp. 64–79.)

Moreover, the manner in which he was led to undertake the writing of this work is in itself especially characteristic of his methods of investigation.^[34] In the year 1884 there was an exhibition at Turin of the relics of those who fought for Italian freedom; in this exhibition were to be seen likenesses of the originators and leaders of this movement, the men who worked and fought beside Mazzini, Garibaldi, and Cavour. It was the study of these physiognomies that led Lombroso to draw his distinction between revolutionists and rioters, and led further to his general analysis of political criminals. This course is extremely characteristic of his method of research. Lombroso at all times and in all places starts from the immediate study of individuals, and proceeds thence to the formulation of general sociological theories. This method of procedure differentiates him as an isolated phenomenon among modern sociologists; but the method was that employed by Goethe and Lavater.

To enable us to characterize more closely Lombroso's method in sociology, let us quote from two of our greatest

thinkers, Kant and Goethe. Kant writes: "Thoughts without contents are empty, intuitions without concepts are blind." Goethe says ("Zur Morphologie," p. 2): "To the man of understanding, to take note of the particular, to observe with precision, to distinguish each from other, is in a sense that which arises out of an idea, and also that which leads up to an idea. Such a one has found his own way home through the labyrinth, without troubling himself about a clue which might have provided him with a more direct path; to such a one a piece of metal which has not been passed through the coining press, and whose value therefore is not apparent, seems a troublesome possession. He, on the other hand, who stands on higher ground is apt to despise the individual instance, and to comprise in a lifedestroying generalization that which can possess life only in isolation."

In hardly any province of thought is the contrast thus characterized by the great morphologist and observer so clearly marked as in the science of society.

Lombroso has described for us individual human beings to the number of many thousand, personally examined by himself in respect both of mental qualities and of bodily characteristics. In addition, we owe to him a number of personal descriptions of deceased celebrities—"pathographies," as they have recently been termed; these comprise the vast material collected by him in his research into the nature of genius. His work on "Cardanus" (Girolamo Cardano [Jerome Cardan], natural philosopher and physician, 1501-1575), published in 1855, when he was still a student, was the first modern pathography; it contains the germ of Lombroso's theory of genius.

The use he is able to make of such individuals for the elucidation of sociological ideas is dependent upon his own peculiar gifts. He has an extraordinarily keen insight into whatever is important and characteristic in an individual;

and his grasp of the significance of the facts thus obtained is due to his remarkable talent for the discovery of analogies. But if he had been endowed with this talent alone, a talent possessed also by the German natural philosophers of the beginning of the nineteenth century, he would not have gone beyond the formulation of mere hypotheses; but owing to his wealth of coinable metal (to use Goethe's simile)—owing, that is to say, to his possession of a limitless abundance of intuitions peculiar to himself—he was able to pass beyond the simple formulation of brilliant hypotheses; his intuitive endowments enabled him to say with Bacon: "*Intellectum longius a rebus non abstrahimus, quam ut rerum imagines et radii (ut in sensu fit) coire possint.*"

Thus, clear perceptions, the utilization of analogy as an organon of research, a grasp of the important and characteristic elements of concrete phenomena—these are the means employed by Lombroso in sociological research. Superadded to these, there arose in him, as a result of his mental development, a strong conviction of the importance of enumeration and mensuration, inducing him to accumulate a colossal mass of data relating to all the subjects investigated by him, to collect statistical data of anthropometry, demography, economic, moral, criminal, and social statistics. It was, moreover, a fact of great importance to the extension of sociological knowledge, that his collection of data was notably facilitated by brilliantly-grounded and broadly-based official statistical inquiries instituted in Italy during the last three decades of the nineteenth century, and also by the results of comprehensive parliamentary investigations. In the absence of the great "*Inchiesta Agraria*" (Agrarian Investigation), his researches into the causes of pellagra, the widely-diffused and destructive disease affecting the agricultural labourers and small farmers of Northern and

Central Italy, would hardly have been possible. Equally important for the anthropometrical researches which, when army surgeon in Calabria in the year 1862, he initiated upon the mixed population of that region (then containing no Latin admixture, but composed of Greek, Albanian, and Sicilio-African elements), was the publication of the recruiting statistics, by means of which it is comparatively easy to ascertain the racial composition of the Italian people; whilst to German anthropology and sociology this indispensable material is almost as inaccessible as are the Italian plans of mobilization.

Quantitatively considered, the greater part of Lombroso's life-work has been devoted to the study of social phenomena bearing upon the fact that every society contains certain categories of pathological or abnormal individuals, whose behaviour has a disturbing influence upon the regular social life. But however interesting and important in relation to the practical working of State and society may be the social interconnections thus brought to light, it is certainly not possible from the knowledge of these alone to deduce a system of sociology; for example, we do not obtain an adequate knowledge of the remarkable social phenomenon of prostitution simply by means of the biological study of the anomalies of a large number of individual prostitutes, and by the proof that these anomalies are analogous to those whose presence may be demonstrated in criminal types. For, although this explains the sociological fact of the existence of a supply of purchaseable sexual pleasure, it does not explain the existence of the demand for the same commodity. Lombroso was gradually induced, not only by the critical powers with which he was so richly endowed (and which led him repeatedly to the view that most of the phenomena he was investigating were produced by purely social factors), but, in addition, by the general tendency of his

mind, to show, not merely that the existence of numerous abnormalities and degenerative varieties of mankind disturbs the life of society, but, further, that the political and economic development of the civilized nations gives rise to the appearance of abnormalities which themselves induce social reactions—and to demonstrate that these cannot be got rid of by reformatory measures, will not disappear with the removal of the cause, but lead to permanent biological individual variations, and, through inheritance, produce anomalies for generations to come, and in this way give rise to long-enduring social injury or disturbance.

In the first place it is to him that we owe the knowledge that a given social and economic order can give rise to transmissible biological anomalies, and that those who suffer from these anomalies, ill-adapted for any social and economic order, necessarily exercise a disturbing influence in society. It was not merely as a positivist that he was led to this view, but, above all, as an anthropologist.

This knowledge is the most important contribution which Lombroso's life-work has given to sociology.

But it does not stand alone.

The greatest of all his services to sociology is that he threw light upon the reciprocal action between the organic and the social phenomena of human evolution in respect of a number of important details; but in doing this he avoided the onesidedness with which Marxism deduces the fate of the social organism from the economic basis of society, and avoided also the error of the dreamers who hope to explain the laws of social existence by regarding society as an organism similar to the mammalian organism, possessing distinct organs, each with its own peculiar functions.

Lombroso was very powerfully influenced by Darwinism and by the evolutionary idea in general, more especially in

the form elucidated by Herbert Spencer in his "First Principles." As anthropologist, indeed, as regards the question of the origin of man and man's place in nature, he was a forerunner of Darwin^[35]; but in respect of the manner in which he presents the reciprocal action between the organic and the social, he is quite free from the analogies and homologies which led such men as Schaeffle and Spencer so widely astray. It was quite inevitable that Lombroso's sociological thought should be powerfully stimulated by the view of his opponents that law is a product of the intellectual, not of the organic life of mankind, and that therefore it was not nature that produced criminals, but social and national processes. Thus it became necessary for him to prove—as in my opinion he succeeded in doing—that nature makes the criminal, but that society provides the conditions in which the criminal commits crimes. Nature creates the criminal—and here Lombroso occupies the same ground as Spinoza and Schopenhauer—inasmuch as it is through nature's work that he comes to be born with predetermined tendencies of character—tendencies which are not altered after birth, but merely provided with opportunities for their manifestation. Lombroso identifies this predisposition of character with the so-called "moral insanity," and there is no objection to this, provided we exclude the idea of an acquired illness. Above all, he regards this predisposition as an arrest at an earlier stage of development, as an atavism. Lombroso always presupposes the acceptance of the "fundamental biogenetic law,"^[36] and for this reason is led to expect the occurrence of atavisms as the result of an arrest of development. Hence, what others speak of as degeneration is to him a pathological process leading to arrest of development.

The course of his own mental development impelled Lombroso to take a further step, and to apply his customary

methods to the study of the revolutionary, of the genius, of women, and of "mattoids." If we now take a comprehensive view of all this, we find that Lombroso's principal contribution to sociology involves the recognition of the following facts:

Organic nature, through the course of development, and under the influence of inhibitive or favourable factors, creates in the masses of individuals to which she gives birth differences and differentiations—differences of sex, of intellectual and æsthetic capacity, of character, etc. Thus she gives opportunity for the origination of certain social phenomena; for society offers a field abounding in opportunities for the activity of the most extensive differences of natural endowment. But society provides also selective factors, and thereby alters the constitution and composition of the materials furnished by nature in the most manifold variety. Thus, more or less rapidly, the race undergoes modification. This reciprocal action is the province in which nature and society meet, and in which social polity has to receive guidance from anthropology and biology.

I consider that Lombroso has proved by a rigid induction that nature has endowed man at birth with social sentiments, or—which amounts to the same thing—with an organic predisposition, out of which, in the course of individual development, social sentiments arise; and that inheritance and foetal development determine whether the individual is in a position to guard and to further his own interests in the communal life without prejudice to the interests of the community.

In this connection he has most carefully investigated two special instances: first, that category of individuals who have needs and impulses incapable of satisfaction without severe injury to the interests of the community or to the social standards—criminals and prostitutes; and secondly,

those who consider that the permanent or future interests of the community cannot be secured without infraction of the traditional forms of social life, or, perhaps, without disregard of formal legal prohibitions, without “breaking the old tables,” without “reevaluation of old values”—geniuses and “political criminals.”

He has, however, also demonstrated the fact that in relation to the rigidity—the formalism—with which the traditions of the social order have hitherto always been preserved, and will continue to be preserved in the future, society itself is not as a rule in a position to distinguish between the criminal and the useful revolutionary. This is made manifest by the study of the researches undertaken by Lombroso for his description of the political criminal (1890) and of anarchism (1849). His examination of the part played in social life by the political or social genius leads him to formulate a theory regarding the acceleration of social evolution. Genius brings to pass the revolution for which the way has been prepared by evolution; the criminal merely produces revolts.

Thus, in my opinion, we owe to Lombroso the recognition of a fact of enormous importance—namely, that many disturbances and also many advances in social life (crime, genius, and revolution) are brought about, not by economic or other social influences, but by the natural variability of the species, *homo sapiens*. (Be it noted that Lombroso contrasts with *homo sapiens*, *homo delinquens*; while he classes the latter with *homo neanderthalensis*.) To the sociologist it is a matter of indifference whether certain classes of varieties are termed degenerative or not. About this point it is for the biologists to come to an agreement, but in doing so they must not ignore Lombroso’s anthropological and morphological researches.

No detailed exposition is requisite to show how remote this method of causal explanation of social phenomena is

from the hypothesis that refers the whole past course of social evolution to the class war, or regards the class war as the sole factor of importance in the making of the future. From the standpoint of Lombroso, a moral organization which would transform its advocates from fighters for the interests of the community to fighters for the exclusive interests of a class would be condemned simply as moral insanity.^[37] In his work on the anarchists he expresses himself in this sense (p. 16), here, indeed, with reference to the governments, which in their political activity are not concerned exclusively with the interests of a particular class.

He has shown how nature produces socially important differentiations altogether apart from the co-operation of socially causative factors. The most important of these differentiations, that between the two sexes, was described by him exhaustively in the first part of his work on the female criminal and the prostitute; here, also, he discusses fully the significance of the natural organization of woman for social life in relation to motherhood.

His description of the natural organization of woman is only one part of the important contributions of Lombroso to sociology.

With regard to the natural differentiation of human beings, his work is summarized in the succeeding paragraphs (I do not think it necessary to refer here to the numerous passages in his works in which he elaborates, in greater or less detail, the views I am about to describe; for my account is based, in addition, more especially upon the direct exchange of ideas, by word of mouth and by correspondence, during an intimacy of many years' duration):

Human beings are differentiated—horizontally, as it were—into tribes and nations in consequence of original variability, in consequence of selective œcological factors

(soil and climate), and in consequence of wars, expulsions, and migrations.

This differentiation—greatly influenced by social factors, such as colonization, miscegenation, etc.—becomes organic, and this organic differentiation is of very great social importance.

In addition to this, there exists another kind of differentiation, which, to express it graphically, is vertical in character—viz., the formation of classes. This depends chiefly upon economic factors, which are competent to induce organic changes in isolated individuals, but not to lead to the formation of inheritable types—that is to say, of racial characteristics. As yet, at any rate, there is no inheritable type of *homo industrialis*, the proletarian.^[38]

In addition to these two varieties of differentiation, there is yet a third kind, dependent upon purely organic causation, giving rise continually to new types with a great tendency to inheritance: talent and genius, the criminal and the saint, the various intermediate stages of sexual differentiation, which permits of so many nuances in the intensity of masculinity and femininity in man and woman. These differences arise altogether independently of social factors—Lombroso has never suggested the deliberate breeding of supermen—but they give rise to all-important disturbances and advances in social evolution.

Finally, in Lombroso's view, the social evils dependent mainly on economic factors—malnutrition, overwork, unemployment, overcrowding, town life, vagabondage, accidents, celibacy, venereal diseases, alcoholism, cachexia—give rise, through the process of reproduction, to the great army of degenerates, who lack the faculty of adaptation, and therefore give rise to further disturbances of social life, to ever-renewed infractions of social order.

No other investigator has done as much as Lombroso for the description and recognition, by means of exact measurement and numeration, of the sociologically important, non-ethnic varieties of the human species, *homo sapiens*. Inspired by the great idea of evolution, he earnestly endeavoured to elucidate the most obscure secrets of organic life; but it was precisely by means of his profound knowledge and understanding of the organic realm that he was safeguarded from attempting to base his sociological thought upon the superficial analogy between the loose association of individuals in society and the intimate interconnection of the cells of a living organism by means of which they are all fused into a unitary being.

A question which appears to me to deserve consideration is whether Lombroso was an individualist or a socialist. It is well known that he exercised a very great influence upon many of the notable advocates of Italian socialism, both through his personality and by means of his writings; but I have shown more than once in what has gone before that he did nothing to support the doctrine of the class war, and Loria was the only thinker standing anywhere near the Marxian position who can be said, so far as I can ascertain, to have exercised a considerable influence upon Lombroso's thought. Lombroso was never a party man.^[39]

Lombroso was a passionate advocate of the rights of the expropriated classes, always a fearless opponent ever ready for battle, of all exceptional laws, and a firm believer in democracy; but he was as far removed from the one-sided advocacy of any kind of class interest as he was from every apriorist interpretation of social life.

I may, therefore, answer the question by saying that as an intellectual, and in his criticism of the present social order, Lombroso shows himself to be an individualist; but, notwithstanding this, his feelings lead him to favour the socialist view, so that we find in his writings a sympathetic

understanding of the humanist movement no less than of the process of emancipation in modern social evolution.

We cannot discuss Lombroso as a sociologist without considering also his ideas and efforts in the field of social reform.

We have seen that he rejects the class war and revolutionary methods as instruments of social reform, but he is even less sympathetic towards parliamentary government,^[40] and he expects valuable results from those reforms only that are demanded and brought into effect by the public opinion of the time, and regarding whose necessity the majority of the population is firmly convinced.

Inasmuch as Lombroso was led to the study of socio-political questions chiefly by way of his interest in the world of crime, it will readily be understood that he was concerned with the construction of the legal order of society, and especially with criminal law, rather than with the construction of the economic order of society. For this reason we find in his writings few original ideas regarding industrial problems and the emancipation of the working classes. During many years spent in Pavia and Pesaro he failed to come into contact in any way with capitalism and the greater industry. First in the industrial city of Turin did these phenomena force themselves upon his attention; but in his earlier life, while still quite a young man, he was much occupied with the agrarian question; and he was one of the most ardent opponents of the traditional tariff policy of Italy—a country in which the food of the people is very heavily burdened by excessive protectionist corn duties, enormous land taxation, and very high octroi (town dues), without any correlative advantage to the small tenant farmers, peasant proprietors, and agricultural labourers.

The progress made by Lombroso in the field of social reform, in consequence of his coming into contact with modern industrialism in the city of Turin, is most clearly

displayed by a comparison of the measures which he recommended in the year 1890 for the prevention of political crime, with the contents of the 200 pages which, in the year 1897, in the third volume of his work on "The Criminal Man,"^[41] he devoted to the prophylaxis and therapy of criminality in general. Two original ideas are to be found in both these works—viz., definite proposals for the decentralization of Italian national administration; and proposals also for the constitution of a kind of popular tribunal, as a counterpoise to the excessive powers of parliamentary cliques. In addition, we find in Lombroso's writings, at quite an early date—and apparently as an original idea—a suggestion for the establishment of public labour (employment) bureaus.

I am not aware what Lombroso's position was as regards the most recent conception among the methods of social reform—namely, the notion of "racial hygiene"; nor do I know what he thought of the demand associated with this notion for the deliberate breeding of supermen as the goal of the social politics of the future.

Unquestionably he was one of the boldest revaluers of traditional values; and he was always a convinced advocate of the view that the inadequate powers of natural selection ought to be supplemented by the deliberate selection (exclusion from reproduction) of anti-social individuals. With this end in view he was ever the fearless champion of the death-penalty, which he designated "estrema selezione." Above all, he put before himself as the goal of his life-work the elevation of criminal law and the application of improved methods for the treatment of criminals; freed from all metaphysical complexion, these should, he considered, be numbered among the ultimate aims of social reform. Penal measures, in his view, are the sole safeguard of social evolution! As usual, in the case of medical men greatly interested in social reform, it is

difficult to determine in Lombroso's case where his demands for social reform end, and where the measures he claims as requirements of public hygiene begin; speaking generally, whenever he touches on hygienic questions—as, for instance, in the matter of pellagra—he takes a comprehensive view, embracing also the preservation and improvement of the race. The campaign against the most destructive endemic disease of Italy—pellagra—was the first notable contribution to social reform made by Lombroso in the years of his early manhood.

But to become a fanatical advocate of racial breeding, in the sense of Gobineau and Houston Chamberlain, was rendered impossible to him by his recognition of the multiplicity of the population of Italy. No anthropologist was more intimately acquainted with the numerous and fundamentally different types inhabiting this country than was the discoverer of the mixed Africo-Hellene race of Calabria—the man who united in his own personality all the highest endowments of the Jewish spirit, and who from his study of the history of the Romance peoples of the Mediterranean region had learned to recognize the importance of the Semitic elements which have been intermingled in this region from the earliest dawn of history.

CHAPTER V

THE SIGNIFICANCE OF CRIMINAL ANTHROPOLOGY

The true significance of criminal anthropology is a matter with which few outside Italy have any real acquaintance, and least of all do those understand it who have most forcibly attacked Lombroso's methods of work on account of their alleged defects.

What is, then, the real significance of this doctrine? It is not merely that it is the starting-point of the reform movement in criminal procedure, in penal methods, and in the theory of jurisprudence; this, indeed, accounts for its practical significance. But its importance reaches far beyond the traditional contest between the prosecuting counsel and the experts, as to whether, in the case of an individual accused person, responsibility is diminished or absent. In legal circles, Lombroso does not play the undesirable rôle of the alienist who appeals to the prosecutor or to the judge with the assertion: "This man belongs to me, not to you, for he is a patient, an invalid." But Lombroso, in the name of criminal anthropology, appeals to all those responsible for the enforcement of the criminal law in the following terms: "You are upon a false road. Neither the accused, nor the accuser, nor, finally, society at large, will be in the least helped or satisfied by your methods, by which you study the *crime* dialectically

and inquisitorially, and endeavour to apportion the punishment to the degree of blame. Criminal anthropology is not satisfied with demanding, with Mittelstaedt and Kraepelin, that we should do away with imprisonment, and abandon any attempt to measure out punishment. Criminal anthropology declares that the interest of society lies, not with the individual crime alone, but with the criminal. Every criminal is, in fact, even before the necessary social reaction has set in against him, or it may be on his behalf, the object of positive scientific study—*i.e.*, of anthropological study. To ascertain whether his nature has been moulded by endogenous or by exogenous factors, to determine whether we have to do with a criminal nature (a born criminal), with an accidental or an occasional criminal, with an insane or a degenerate criminal, is the affair solely of positive science, of anthropology, with methods peculiarly its own." Thus, when we rightly comprehend the life-work of Lombroso, we see that it is completely erroneous to assert that the object of study of criminal anthropology is merely the born criminal, and that its content is solely the description and elucidation of his characteristics.

Everything belonging to inherited human nature, to the social structure, to the economic system and economic history, to justice, to geological, climatical, and meteorological conditions as determining factors of human conduct, all determinative cosmic processes—in short, the reciprocal action between the individual and his environment in the widest possible sense, and the precise determination of the socially important characters of the individual—all these are, for Lombroso, the subject-matter of anthropology; and if a conflict arises between the individual (thus influenced) and the traditional rights or interests of society, they are the subject-matter of criminal anthropology. Criminal anthropology would, and must,

exist, even if the idea of responsibility, and the psychological and legal decisions and traditions based upon that idea, were non-existent.

A broad-minded general review of the necessity and the causal connection, in consequence of which inheritance from nearer and more remote ancestors determines the nature of the individual from his entrance into the world, and of the inescapable influences which the world—all as a unity and as a totality, and also through the individual forces of organized matter and highly organized human society, exercises on the individual, so that the latter is compelled to act in whatever manner the operation of these forces determine, whilst all the time he is under the illusory belief that he desires so to act, and is liable to be blamed for his actions—this view of the ἐν καὶ πᾶν, of the totality of the cosmic process, interpermeated throughout by the spirit of life, and in whose eternal unity and endless manifoldedness the differences between normal and abnormal, healthy and unhealthy, would seem utterly without importance—this is the *positive* view of the world, which from the very beginning guided Lombroso in his researches. I do not propose to consider at any length the question whether this view involves certain dogmatic assumptions. I myself do not think so. In any case, it is to this view of the world we owe the overwhelming accumulation of facts which, between the years 1845 and 1860, was effected in the different fields of natural science. We may also draw attention to the manner in which the growth of positivism was accompanied by a development of the industrial arts and by the consequent transformation of economic life. In a brief Appendix to this work an account is given of the facts discovered during this period—one characterized by a temporary realism in politics and by the development of a realistic and naturalistic art and poetry, and remarkable also for discoveries in chemistry and

physics, with consequent important practical applications. Thus, for example, the new idea regarding man's place in Nature (involving also a new idea of man's relationship to his social environment) led to a new artistic method of representing humanity.

In this period, the time of Lombroso's youth—that of the maturity of Moleschott, Darwin, R. Mayer, Bunsen, Lyell, Pflüger, and Helmholtz—it was possible to gain some respect for facts, the enormous accumulation of which had overwhelmed those who were playing at “natural philosophy” during the two preceding generations. *Positive* facts, in an abundance known to no previous and to no subsequent period in history, were the foundation of positivism, which then became a principle of investigation and of explanation. Upon this foundation, and with the aid of this principle, criminal anthropology was erected. From far-reaching conceptual analyses, and even from distinct definitions, Lombroso was preserved, because he accepted as a fact only that which had definitely been observed, whether as object or as process. His respect for facts was boundless. It is ridiculous to reproach him with not having personally observed every single fact of which he makes use. Read his books, and see the enormous mass of statistical material requisite for his researches. Wide general conclusions can be reached by no other road than that of statistics (see above, p. [10](#)).

It must be freely admitted that Lombroso, in his continuous hunger for material, in his insatiable, unresting desire for new, important, rich, and rare facts—a greed of the intellect from which nothing was more remote than mere sensationalism—did not confine his attention to matters directly observed by himself, nor was he always satisfied with statistically registered details, but frequently utilized facts of a singular nature—inadequately warranted facts, which, on the face of the matter, should have been

more strenuously verified. Among these are certain anecdotes from the lives of celebrated men. To the same category belongs his credulous acceptance as facts of the processes observed by him in his "spiritualistic" experiences. This is a matter to which further reference will be made in a later chapter.

Lombroso's positivism had one consequence of great importance to criminal anthropology. "Anthropology," in his view, embraced all the facts which, proximately or remotely, determine the being and life of man. But he had a preference for observing and utilizing *states—i.e.,* persistent facts—in place of observing and utilizing *processes*. Thus it happened that Lombroso's all-embracing anthropology, which was far more comprehensive than anthropology as understood by Virchow, Broca, and Mantegazza, availed itself more frequently and more thoroughly of anthropometrical and descriptive data than of the results of experiment, which must first be planned and then registered, whereas congenital or acquired physical characters are always ready for observation, and may easily be submitted to serial study and to statistical treatment. He had little inclination for the clinical observation of transient, morbid processes, although he did not disregard this field. In spite of his conviction that mental disorders are diseases of the brain, he did not regard the brain as something which man carries about in his skull as he carries his watch in his pocket; he studied the sick brain of an acute maniac in its organic connection with the entire life-process, in its dependence upon the social conditions of life, in its subordination to hereditary influences—and this inheritance he was accustomed to trace back to the first beginnings of organic life, regarding man as the final product of a cosmic causal chain. Thus, to him the permanent documents, the "stigmata," in which these resultant effects of remote causality find a universal

and permanent expression, necessarily seemed to him to be of greater importance than the transient phenomena of clinical observation. The "types," the categories of criminals, of geniuses, pseudo-geniuses, and cretins, must, he considered, be more worthy of observation than the impulses to speech and movement of the maniac or the katatonic. So, also, he was fascinated by epilepsy, by the trance-state of "spiritualistic" mediums, exhibiting in a high degree phenomena always alike, always recurring in the same manner, whereas the internal processes in the psyche which eluded objective research attracted his observation less, although he was one of the first who appreciated at its true value Fechner's idea of psycho-physics.

Moreover, the phenomena of experimental physiology and pathology, which would otherwise have been most interesting to him, were rendered inaccessible to him in consequence of the elaborate technicalities of the pathological and clinical laboratories. To this category belong racial variability, the hereditary influence of social factors upon social predisposition, the influence of the constitution of the soil, of climate, and of the seasons, upon the most diverse manifestations of human activity, and the significance of cosmic factors. The inevitable result of this was that German biology, and, above all, German psychiatry, which endeavoured to unriddle everything, either at the bedside of the living patient in the hospital or in the brain of the deceased patient in the laboratory, did not understand, and could not understand, what Lombroso was really driving at with his anthropology.

Now let me attempt to summarize the matter in a few words. Lombroso's mind was permeated with the idea of the unity of a universe under the dominion of strict law, of an invariable uniformity of principle throughout the world, within which the human being is subjected to laws identical with those to which crystals, plants, and lower animals are

subordinated; and the understanding of these laws could, he was convinced, be obtained only by the establishment of positive facts. In so far as these facts relate to human beings, they comprise in their totality the science of anthropology.

Certain human actions by which the safety of society is endangered are no less determined than is the secretion of the urine or the heart's beat. It is a stupid blunder to allow the social reaction in response to such actions to depend upon the blameworthiness of the offender. The social reaction has one purpose, and one only—the safety of society. Anthropology, utilizing all the methods at its disposal, will throw light on the determining causes of anti-social actions, and thus by anthropology we shall be guided in our choice of means for the preservation of social security.

That this view forbids us even to moot the idea of “responsibility” is perfectly obvious.^{[\[42\]](#)} Thus it gives us no basis whatever for establishing or denying responsibility in the individual instance, or of determining its extent if it exists. Lombroso provides a scale of measurement neither for punishment nor for responsibility.

CHAPTER VI

CRIMINAL JURISPRUDENCE—PELLAGRA— AGRARIAN REFORM

Lombroso's occupation with the problem of criminals and crime extended far beyond the bounds of criminal anthropology. He was led in this direction, in part by the need for the establishment of a purely anthropological characterization of the world of crime, and in part by his controversies with lawyers, philosophers, and psychiatrists, by which he was enabled to study other categories of criminal than the "born criminal"—categories whose existence he had never denied. Opportunities for investigation in this new field were offered him in the year 1876, when he removed to Turin—a city in which psychiatric studies were very actively pursued—by his observations as surgeon to the Turin prison for the detention of prisoners awaiting trial, and by a very exhaustive study of penal literature, by which he was led very speedily to formulate a system for the reform of criminal law and penal methods. He soon found himself in the position of chief of a school of criminology, whose influence made itself felt in Parliament, in the Courts, and in foreign countries. In Italy not long after, in the year 1880, Enrico Ferri, being appointed Professor of Criminal Jurisprudence in Bologna, gave his powerful support to Lombroso, and there resulted a rapid succession of works upon the insane criminal, the epileptic criminal, the

criminal by passion, the habitual criminal, and the occasional criminal, which, in the year 1888, were published as the second volume of "L'uomo delinquente." The progress of Lombroso's ideas as chief of a "School of Positive Criminology," from the year 1879, when he had become firmly established in Turin, to the year 1894, is indicated by his writings upon punishment, upon the increase of crime in Italy, upon the proposals for a new code of criminal law, and upon political crime and the revolution.^[43]

In the middle of this fruitful period of twelve years (1884) was published Ferri's "Sociologia Criminale," and about the same time the reformatory and etiological ideas of Lombroso began to influence the Italian lawyers; and, notwithstanding the violent protests of the advocates of the "classical" jurisprudence (Lucchini, Brusa, Gabelli, and others), the Italian Attorney-General, Baron Garofalo, in the year 1885, displayed his adhesion to the ideas of the Positive School by the publication of his "Criminologia."

In Germany there soon followed the celebrity of Mittelstaedt's book, "Gegen die Freiheitsstrafe" ("Against Imprisonment") (Leipzig, 1879). This was speedily followed by the yet more modern and humane work of Kraepelin, "Die Abschaffung des Strafmasses" (Stuttgart, 1880), an echo in many respects of the ideas of Garofalo and Lombroso.

In Kraepelin's book it is impossible to overlook the influence of Lombroso's ideas; and the same influence can be traced also in Von Liszt's "Lehrbuch des Deutschen Strafrechts" ("Textbook of German Criminal Jurisprudence"), of which the first edition was published in 1881; but it could be foreseen that in the psychiatric and legal circles of Germany, this influence would be indirect and limited. I was myself convinced of this fact at the time when, in the year 1886, after long study of the writings of

the Italian school, I had resolved to do my best to diffuse the views of that school in Germany, both verbally and in writing.

It is not possible to give a detailed account here of the diffusion of the ideas and methods of the "New School" outside Italy. The conservatism which inevitably results from a legal education gave rise to violent opposition on the part of lawyers in Italy, as well as elsewhere. It was, therefore, above all, necessary to approach the scientific leaders of the legal circles with the ideas of the "New School" of criminology. In this respect it was a fact no less impressive than useful that Lombroso, at the outset of his activity as chief of a school, published in the year 1881, in the first number of Von Liszt's *Zeitschrift für die gesamte Strafwissenschaft (Journal of Criminology)*, an article upon the origin, the essence, and the aims of the new criminal anthropological school in Italy. In this article he insists upon the importance of the different causes of criminality, its anthropological, social, and cosmic factors, upon the aim of repression as a means of social self-defence, and upon the importance of the substitutes for punishment ("sostitui penali"), and the reforms necessary in the application of punishment. Finally, he deals with the "positive" character and the inductive methods of the new school.

Professor van Hamel describes this article as "The entrance of the positive school and of its founder, Lombroso, into the legal world through its chief portal—*i.e.*, the German portal," which was opened to him by Von Liszt. Van Hamel's intention was to indicate the great importance attached at the outset by lawyers of the first rank to the introduction of modern criminology into the circle of the legal sciences. Van Hamel continues in the following terms: "Some years after this there ensued the foundation of l'Union Internationale de Droit Pénal, whose

statutes have been recognized as providing the basic principles alike for criminological science and for practical penal methods."

Since I estimate at a very high value Lombroso's importance in relation to the origin and growth of the present international movement for the reform of our penal methods, I may be allowed to quote further from the learned Van Hamel, and to join with him in saying, in this connection: "Differences in matters of detail affect in no way the uniformity of principles. Such differences must, indeed, be regarded, not merely as inevitable, but positively as advantageous. They are inevitable owing to the differences in human temperament and in national character. They are advantageous because, owing to their existence, new ideas will find their way into acceptance in certain forms, when, if they had sought acceptance in other forms, they would certainly have been rejected. Differences of detail must never lead us to overlook uniformity of principle, nor to overlook the common origin of ideas thus differing in matters of detail. The advocates of the modern penal methods must never forget that these owe their very existence to the positive school of Italian thought."

How did it happen that Lombroso, the anthropologist and psychiatrist, was led to a criticism of the science of law? He had discovered intuitively, and believed he could establish inductively, the fact that there exist "born criminals" or "criminal natures." His whole course of mental development—viz., the fact that he was strongly influenced by the evolutionary theories of Vico and Marzolo, by the English utilitarians, by the French positivists, and, to some extent also, by the German materialists of the middle of the nineteenth century—had induced the conviction that the first object of punishment should be the protection of society, and the second the improvement of the criminal. It

was for these purposes, he considered, that law had come into existence.

This work, whose aim it is to describe Lombroso, the man and the investigator, is not the place in which to describe his influence upon the Italian school of positive penology, or to describe the subsequent development of that school and its further influence upon the legislation and penal methods of the civilized nations. Science grows slowly; the study of the causes of crime demands time and patience, brings disillusionment, and leads to ever-fresh restatements of the old problems. The zeal of the reformer finds it difficult to tolerate the gradual transformation of the old machinery. He wishes at one stroke to rejuvenate old institutions, to sweep away the old rules. But science, which has to provide a basis for his efforts, is in its nature patient. The reformer's zeal, which has to construct the new edifice, is not patient. Lombroso was to learn this from personal experience. It was not possible for him to remain at the standpoint of 1876. And, as reformer, he himself experienced many changes, especially as a result of his investigations into the categories of the criminal by passion, the habitual criminal, the occasional criminal, the criminaloid, the criminal lunatic, and the epileptic criminal.

He and his school, in their efforts at reform, worked along two main lines: first, the reform of practical penal methods; and, secondly, the systematization of the general theory of punishment.

The efforts of this school in relation to the system of punishment and the reform of penal methods are too well known for it to be needful to give here even the brief summary for which alone we should have space. But it is important to point out that the Italians, under Lombroso's guidance, resolutely attacked the penal dogmas of the day, which it was necessary to overthrow before a reform of penal methods in the sense of social defence could possibly

be effected. I shall merely make especial reference to the powerful influence for good exerted by the positive school in the direction of the amelioration and humanization of the horrible function of punishment, which represses so many crimes, but at the cost of so much suffering and of such numerous errors.

Lombroso gradually came to believe that no useful purpose is effected by the provision of a great national apparatus intended to improve that which is unimprovable—*i.e.*, the criminal nature; and that society could not be effectively safeguarded against its permanently dangerous members—*i.e.*, the criminal natures—by means of protective measures of a transient duration.

Being thoroughly convinced of the existence of criminal natures, and being, as a utilitarian, hostile to all metaphysics, it was inevitable, when he came to consider the fundamental aim of the institutions of law and the State, that he should be led to reject all methods of treating criminal natures which did not involve their complete removal or lifelong exclusion from the life of free society. Thus, a large proportion of his subsequent life was spent in endless controversies directly against the traditional legal systems and institutions which did not harmonize with the position he had taken up. He did not seek these controversies, but he could not and would not attempt to avoid them. Throughout them, however, he remained the anthropologist, the collector and investigator in the wide field of the natural history of mankind, one more interested in studying the origin of the socially significant varieties of mankind, of which civilized man is one, than in the description of the differential characters of the races of mankind now living in various parts of the world—although investigations in this latter field were by no means repugnant to him.

Lombroso's great synthetic studies of the natural history of the criminal came to an end in the year 1902, with the publication of the German edition of his book upon the Causes and Prevention of Crime. Some months later appeared a work by Aschaffenburg on Crime and its Prevention. Even after 1902 Lombroso continued to write upon this subject, more especially in his periodical devoted to criminal anthropology; and down to the last year of his life he followed closely the progress of international research in this field. But it seems to me that the book of 1902, published at the close of thirty years' work, marks the end of his inner development, whilst the Congress for Criminal Anthropology held in the year 1906, in which he was able to hold a review of his disciples, co-workers, friends and rivals, gave a fitting outward conclusion to his career, when he had already passed his seventieth year.

During the last years, and, above all, during the last months of Lombroso's life, a tendency to pessimism became clearly manifest; and this tendency was, owing to his peculiar organization, closely connected with a strong bent towards mystic contemplation. But this, in my opinion, has no bearing whatever upon his crimino-anthropological researches. His doctrine of the "born criminal" was in no way based upon a pessimistic foundation. In the field of social reform, including criminology, he was definitely optimistic. The weak, the sick, and the degenerate, were regarded by him at once with the objectivity and the philanthropy of the born physician. It was only in his moral valuation of the genius, and of the great condottieri and conquistadores of modern industrial life, that he lacked mildness; indeed, in this latter respect he rather inclined to severity.

During the period 1879 to 1894 were held the first three International Congresses of Criminal Anthropology; and the same period was signalized by numerous other

performances of Lombroso, which served for the propagation, the development, and the application of his ideas. Thus it happened that he was forced to leave the quiet of the laboratory and the study; the greatest publicity was gained for the "new school"; and the investigator who, until the age of one-and-forty, had lived at Pavia, remote from the world, became involved in unending controversy. By the best elements of Italian political radicalism Lombroso was now regarded as leader; and a little later also, during the years 1880 and 1890, through the support of the slowly developing Marxist School of Socialism,^[44] Lombroso found himself leader in a movement at first dominated entirely by "intellectuals." It soon appeared that the retired and modest investigator was none the less a formidable opponent, whose voice could make itself heard in all the great questions of public life, and far beyond the bounds of Italy. I need mention here only the two great epidemics of anarchism and anti-Semitism, whose flood-tide fell in this period between 1880 and 1892.

Lombroso was a man of harmonious type, a radical through and through, one who could not understand that anyone who had once grasped a truth should be induced to conceal it from social class-considerations. What those may have to suffer who are ill-adapted for the utterance of half-truths, and who are averse from compromise, Lombroso had learned when he came to publish his researches into the cause of pellagra, the characteristic endemic disease of Northern Italy.

Pellagra is a chronic disease in Northern and Central Italy, which gives rise to extensive disturbances of digestion and to cutaneous and nervous disorders, and frequently leads to severe mental disturbance. In Lombroso's view it results from the frequent use of damaged maize, containing toxins, which is consumed by

the peasantry of Northern and Middle Italy in the form of polenta and maize bread, whilst the ground landlords and their bailiffs live upon the better qualities of maize produced by the same peasants. I may quote here a passage from the Preface to my German translation of Lombroso's book on pellagra:

"This book is the result of researches which I have pursued for twenty-nine years, often amid very tragic surroundings—tragic for the reason that from these researches alone I am able to show how human nature strives against every step towards progress, and regards it almost as a crime. In Italy it is a secret to no one that my attempt to show, in opposition to the dominant doctrine, and upon the foundation of numerous experiments, that pellagra results from intoxication with damaged maize, aroused so much hostility—I may almost say so much scandal—in the majority of Italian hygienists and psychiatrists, that in consequence of this my reputation as a practising physician, as an investigator, and ultimately also as a teacher, was severely shaken. The cause of this bitter opposition is perhaps to be found in the greater cleverness of my opponents, who regarded my energetic advocacy of the new theory in the light of a personal attack, whereas it was really the consequence of my too earnest conviction, and of the thought that it was only in this way that I could hope to save thousands and tens of thousands from being unnecessarily sacrificed. But a greater cause of opposition was undoubtedly the hatred of novelty—that deep-rooted passion common to all humanity. At first, indeed, it seemed to me as if the truth must always conquer, and conquer quickly, since in this case it was an obvious truth, one easy to prove, and a very natural one. Nor do I doubt that ultimately the truth will inevitably prevail, for the cleverest machinations must in the end recoil from the granite walls they endeavour to overthrow.

But he who believes that this will occur at once and universally is one who knows little of human nature. Indeed, we must expect the contrary, for all truths which can only be proved by means of a long series of experiments or by long-continued observations rarely fail to encounter an almost insuperable obstacle; and when, in addition, economic class-interests stand in the way—when *these* co-operate with the influence of custom, of inheritance, and of natural human short-sightedness—then woe to the innovator. As Macaulay said, if the Newtonian law had been opposed to any class-interest, there would have been no lack of opposition to the doctrine of universal gravitation.”

It was in the prolonged struggle for his professional life with the powerful interests he had challenged by the publication of his discovery of the cause of pellagra that Lombroso became hardened and completely insensitive to the detraction which is always manifested so freely when scientific truths are displeasing to the economic or political powers-that-be.^{[\[45\]](#)}

Thus it was that Lombroso was forced into the arena of public life, and although he did not become definitely attached to any particular party, he never ceased to attack half-measures and corruption wherever he encountered them. When the political corruption under the rule of Crispi led to the bread-riots at Milan in 1898, the people had an opportunity of experiencing the use of rifle-fire by the apostles of “order”; and the dictatorial powers usurped during these weeks were utilized for the banishment of troublesome political opponents, or to bring about their disappearance in prison—the methods of South American experts in the pursuit of political power being freely followed. The name of Lombroso was upon the list of the proscribed, but they did not dare to lay hand upon him; just as in Russia five years ago the authorities did not dare to

touch Tolstoy, notwithstanding his direct challenge to the Czar.^[46] Thus it was to the struggles amid which he was precipitated by his investigations into the nature of pellagra that Lombroso owed the development of his nature as a fighter, which enabled him to withstand the most violent scientific and political opponents of his theory of the "born criminal." Experiences of life even more bitter than those of Ibsen's "Enemy of the People" were met by Lombroso in a spirit of lofty stoicism.

Owing to his struggle to establish the truth of his views regarding the cause and prevention of pellagra, Lombroso suffered from a recurrence of the economic struggles which had embittered his childhood and youth. The powerful agrarian interests of Lombardy and Venice established a boycott against Lombroso as a physician amongst the well-to-do middle class and also in the medical circle of Northern Italy; and as a result of this his consulting practice, which had hitherto been enormous, and his resulting comfortable circumstances, and therewith also the means he needed for the prosecution of his researches, were all swept away. "Cause and Prevention"—these two words sum up the whole life-work of this man. Cause and prevention of pellagra, of crime, of anarchism, prostitution, anti-semitism, political corruption, self-interested parliamentarism; cause and prevention of lying, hypocrisy, oppression and exploitation—these were the tasks to which Lombroso devoted his whole life, and which he prosecuted without rest and without fear, until at length, after so many struggles, a comprehensive understanding and a calm, mature wisdom finally led him to recognize the manner in which the evils affecting society are inseparably associated with wealth and civilization.

The investigation into the nature of pellagra was of enormous importance to the Italians, who continued to suffer severely from this evil down to the present day. We

might be justified here in giving a detailed account of these studies, because it was in them that Lombroso, above all, showed himself to be a careful experimenter—an experimental pathologist of the first rank. But from the point of view of this book, the significance of these investigations and struggles lies, not so much in the enrichment and development of his knowledge—not so much, that is to say, in the intellectual sphere—as in the light they throw upon the man's intimate life, and upon his character.

In my concluding chapter I shall give some account of the means employed by those whose interests were affected by Lombroso's discoveries (in co-operation with those to whom, as a self-taught man, and one outside the official and professorial ring, he was an object of dislike) to annihilate this obnoxious investigator. To the extent of depriving him of his means of livelihood in Pavia, they were to a large extent successful. But after a struggle lasting thirty years, Lombroso's intoxication theory of pellagra has been finally victorious, and has been officially recognized by the Italian Government. Moreover, this theory has been confirmed by the most recent investigations of Tirelli, Pellizzi, Gosio, and Ferrati, although other toxins of damaged maize are now considered to be of greater importance than the one to which Lombroso gave the name of "pellagrozein."

Lombroso's proposals in the province of agrarian reform were in part of a purely technical nature, and in part based upon a profound (and in his day, at least, well-grounded) distrust of the rival factions in the Italian parliament. At one time he went so far as to believe that nothing could be done to save the peasants and small farmers from pellagra, as long as they remained in their North Italian homes; and

he recommended a wholesale emigration to North America.

[\[47\]](#)

It is not improbable that Lombroso, notwithstanding the universality of his talents and his enormous historical acquirements, would, in better pecuniary circumstances, have confined himself to the study of comparative philology and to the associated field of psychology. It was to these studies that he was principally attracted in youth, and his acquaintance with Marzolo further impelled him in this direction; but precisely because of his poverty he was compelled to abandon a career of learning, and to choose a means of earning his bread. For six years he worked as an army surgeon on the battle-field, in the cholera hospital, and in a small garrison town; until, finally, in the problems of the psychical life of the criminal, the lunatic, and the genius, this born collector of human documents found within the domain of the medical profession, whose humane duties he fulfilled unweariedly as prison surgeon, a field in which his intellect could exercise its powers, in which his character could manifest its strength, and in which his temperament could display its treasures of modesty, love of humanity, and inexhaustible patience.

At length, however, this “enemy of the people,” this audacious formulator of hypotheses, this innovator and rebel, found himself in advanced life recognized by his fellow-countrymen as a benefactor, by his colleagues as the pride of their national science, and by his King as the enlightener of his country.[\[48\]](#)

CHAPTER VII

ENVIRONMENT AND THE THEORIES AS TO THE NATURE OF GENIUS—LOMBROSO'S GENIUS AND PERSONALITY.

I remarked before that almost every one of Lombroso's books might have as its title, "The Cause of, and Prevention of ——" One exception must, however, be made to this generalization, or perhaps two. The first of these relates to his book upon "The Man of Genius,"^[49] and the second to his work "Pensiero e meteore,"^[50] in which were collected his researches into the cosmic and telluric influences that determine human actions.

To speak first of the last-named work, we learn from it, as also from earlier and later minor writings, that in Lombroso's opinion it is not the internal, inborn factors only that exercise an important influence upon the actions and the social behaviour of human beings. Indeed, to Lombroso as a determinist we owe a service which distinguishes him from the great majority of modern determinists. He was bold enough to revive and to restore to psychology the cosmic determinism of the Pythagoreans. It was not *within* the organism alone that he sought the determining influences of physiological and psychological activity. He looked for these also *outside* the organism—in the environment; and his conception of this environment was the very widest possible (see p. [132](#)). At first, when still

quite a young man, he laid stress, with Buckle, upon the influence of civilization—that is to say, of the cultural environment—upon individual phenomena. He saw, indeed, in these phenomena, when they are of an abnormal character—taking, for example, the form of insanity, crime, or prostitution—diseases of the social organism, which become individualized in predisposed or malformed persons (the theory of degeneration). Subsequently he came to note, and perhaps to overestimate, the influence of meteorological and cosmic processes—the influence, that is to say, of the physical environment. Later still, when he had grasped the entire plan of the edifice of his life-work, the most important part of that edifice was always the doctrine of causes and of the environment—understanding always by the term “environment” all that comes into relation from outside with the individual and with society, everything competent to determine his tendencies, his gifts, his capacities, and his actions.

Lombroso ultimately came to regard environment as profoundly important in determining the production of criminality, as may be seen most clearly in a passage from the fourth chapter of his work on “The Cause and Prevention of Crime,” of which I here give a portion. After a detailed explanation of the distinction between the older civilization, typified by force, and contemporary civilization, typified by cunning, and having shown that both these types are manifested in the criminal career, he goes on to say: “We experience here *de facto* the parallel activity of two forms of criminality: atavistic criminality, characterized by the relapse of abnormally predisposed individuals to the employment of forcible means in the struggle for existence—means which our own civilization has normally ceased to use—manslaughter, robbery with violence, or rape; and evolutionary criminality, which is just as maleficent in

intention, but far more civilized in its means, for in place of force and violence it employs cunning and artifice."

The first form of criminality is exhibited only by *a comparatively small number of unfortunately predisposed individuals*; the second form, by those who are not sufficiently strong to withstand *the unfavourable influences of their environment*.

Thus, following in the tracks of Quetelet, and contemporaneously with Adolf Wagner—the former being the founder of "social physics," and the latter the man who demonstrated "the reign of law in the apparently voluntary actions of human beings"—Lombroso regarded the activity of the individual as devoid of all true spontaneity. He viewed it in its dependence upon numerous external and internal factors, in part belonging to the organization of the individual and in part to his environment. In accordance with this view, he assigned to the intellect, to "reason," a minimal share in the control of actions, in the conduct of the *ego*. And even in emotion he saw, for the most part, a simple operation of unconscious processes, subsidiary reactions of the organism in response to natural forces.

Thus, in his view, the personality of the doer tended to disappear; individual differences faded away. In his determinism, the idea of the "type," of the "group," of the "class," preponderates. The average man, whose type is deformed by the inexorable law of pathological inheritance (which plays so large a part in all Lombroso's works), acts under the mechanical compulsion of his internal disposition and organization; and, further, as if this alone were insufficient, he is driven by the external conditions of life, whether those of the physical environment or those of the social organization. Thus he reduces individual differences, for the most part, to a few types, in which the degenerative predispositions almost always manifest themselves in the form of automatic "epileptic" discharges. This does not

mean that he altogether denied individual classification, but in his teaching all individuals were contemplated in the light of one and the same fundamental determinism. From the lowest step of this classification occupied by the savage atavistic criminal, the series proceeds to the altitude on which is enthroned the figure of the genius.

This determinism, although not expressly stated, underlies also his account of genius.

Almost throughout his whole life he was interested in the problem of genius. We see this from his first important work, published in the year 1855, upon the "Insanity of Cardanus." It runs through the six Italian and eight foreign editions of his work on "The Man of Genius." We see it also in the last important work published before he died, on "Genius and Degeneration."

It is well known that he regarded the analogy between the epileptic automatic discharge and the inspiration of genius as a proof of the identity of these two phenomena. Here the indefiniteness of the concepts "genius" and "epilepsy" is compensated by the importance and abundance of the facts adduced by him to show that in the essence of genius an "anomaly" is almost invariably to be recognized—and this not merely in the peculiarities commonly observed in men of genius in spheres altogether independent of the direct manifestations of their genius. But inspiration, the discharge itself, is also cosmically determined. Thus we understand why it is that, in the last edition of "The Man of Genius," the section upon the characteristics of the genius occupies no more space than does the account of the environing causes of genius, and occupies barely half the amount of space given to the section upon genius as manifested in the insane.

However much or however little of these ideas may be found to possess permanent value, one point of unquestionable importance is Lombroso's demand that

among the conditions of the work of genius we must study the personality of the genius himself with all his individual peculiarities. A glance at the almost interminable series of "pathographies" of highly-talented persons proves to us how strong an influence Lombroso's ideas exercised upon the intellectual world of Germany, and to what an extent they gave rise to an anthropological method of study of the nature of the man of genius.

We Germans must see, unless we are blind, the enormous importance in relation to the work produced by the two most distinguished figures of our recent intellectual history—Richard Wagner and Friedrich Nietzsche—of the severe suffering with which both were afflicted. Even if it be not true that pathology is the root of genius, at any rate, pathos, not ethos, will persist as the sphere in which mortal man attains the highest perfection, and the one in which he performs the greatest deeds. And Lombroso's own path through life, overburdened as he was with sorrows, struggles, pains, and deprivations, shows us that, in default of the forcible over-stimulation which severe suffering induces in rich and deep natures, the energy of the highest spiritualization is unable to radiate from the hidden depths of our nature; and yet these same sorrows and struggles are likely, in those in whom the divine fire of Prometheus has not glowed from the first, to lead to crime or to insanity.

In the light of this idea, the life-work of the master, who displayed the close relationship between these three great manifestations of suffering humanity, genius, insanity, and crime, will no longer appear so strange as his isolated and detached ideas appeared to his contemporaries. And we shall continue to return again and again to his works, as to an arsenal of means to help us to the understanding of the highest and of the deepest endowments of mankind.

If we wish to do justice to the life-work of Lombroso, we must not omit the study of his own personality, to which, therefore, a final glance may be directed. By his birth and by his own peculiar temperament he belonged to that Jewish aristocracy to which, as Bismarck pointed out, Disraeli also belonged. The former well-to-do position and the high standing of his family were changed greatly for the worse in consequence of the Austrian domination in Italy. Lombroso was compelled to be not merely his own teacher, but also his own bread-winner; and when at length he had attained a good position as a consulting physician and University Professor, owing to his espousal of the cause of the Italian peasantry he lost the material advantages of a position which would otherwise have led him to acquire considerable wealth in the industrially powerful Northern Italy.

These losses freed him completely from the desire to strive for outward success, and restored to him the leisure without which he could never have collected his enormous materials, or carried on his incessant polemic for clearer ideas, and effected the systematic arrangement of his material. Thus his life attained a harmonious character such as rarely belongs to the learned life of a successful physician; and whilst he remained outwardly unpretending and modest, always ready to help others both in word and deed, he continued to be the intellectual father of new and ever new sensational hypotheses. He, "the slave of facts," never boasted of his diligence; and although in innumerable controversies he unweariedly defended his ideas, his zeal was always on behalf of the ideas themselves, never to gain material advantages. Lombroso never sought for personal gain from the conceptions of whose value and importance he was so firmly convinced, and which came to him, as it were, intuitively. Indeed, his principal strength lay in intuition, in his ready grasp of the

essential. His theories of intuitive genius lay stress upon certain analogies between intuition and epileptoid states; and the great reverence paid by him to truth may possibly have led him at times to underestimate the powerful, although not always fully conscious, intellectual activity which paves the way to every happy discovery.

We cannot here attempt to show the extent and importance of Lombroso's contributions to Italian culture outside the domain of anthropological researches. From his house in Turin, and from the circle of thinkers, officials and artists who assembled there, there was diffused a powerful influence, and at times the very consciousness of Italy seemed to be centred here at work. And, unceasingly, a manifold receptivity and activity found the unity and the energy requisite for their concentrated effects in the fiery soul in whose ardour the most heterogeneous elements were fused, and whose spirit lives on in his successors and disciples—

"cursores qui vitae lampada tradunt."

APPENDIX A

LOMBROSO'S SPIRITUALISTIC RESEARCHES

During the correction of the previous chapters I have read Lombroso's final and posthumous work, and I feel that it is expedient to append a brief account of Lombroso's dealings with the spiritualists, which were, indeed, characteristic of his peculiar personality, but are without significance in relation to his more important investigations—those which interest us and will interest posterity.

It was about the year 1890 that throughout Europe the investigations of psychiatrists, neurologists, and psychologists into the subject of hypnotism attained their acme. During the years 1885 to 1890 there was an unceasing current of hypnotic experiments. Almost every clinic had its own mediums; and soon some of these mediums, of whom not a few attended more than one clinic, produced occult phenomena, such as the action of medicaments at a distance (Bourru and others), the polarizing effect of magnets, thought-transference, and thought-reading, in addition to the phenomena of the hypnotic sleep and hypnotic suggestion. Not infrequently such séances as these, instituted by serious men of science, closely resembled the phenomena of the "animal magnetism" of the first third of the nineteenth century and the séances of the spiritualists during the middle third of the century. Men who, unquestionably, were well experienced in observation and in rigorous experiment—

such men as Charcot, Richet, Preyer, Forel, and Zöllner—believed in the reality of the occult phenomena which gradually made their appearance in the hypnotic mediums.

In the year 1888, Lombroso published a series of exhaustive experiments, dealing more especially with the limits of suggestion in the waking state, and the influence of a permanent magnet upon suggested sensations. It was most remarkable that this positivist investigator, a man whose habit it had been to confine himself to objective investigation, and to consider subjective phenomena as entirely subsidiary and to deal with them with extreme caution, should concern himself with matters so little accessible to objective observation as the reaction to hypnotic procedures and the examination of suggested ideas in hypnotized and hysterical subjects, and while engaged in this path of study to associate, ultimately, more and more intimately with thought-readers, spiritualists, and other thaumaturgists.

It was, indeed, a result of his overwhelming conviction, at once of the objectivity and of the materiality of the performances of hypnotized persons, associated with a reluctance to accept the explanation of such phenomena by purely subjective factors—viz., their explanation solely by means of ideas—that led Lombroso to the credulous assumption that there existed a peculiar material condition of the brain-substance as the cause of all these categories of phenomena.

The fact that the mediums themselves either coquetted in a most equivocal manner with the possibility of associated immaterial processes, or else introduced the absurd doctrines of spiritualism for the explanation of the phenomena occurring at their séances, did not discourage Lombroso from the continually renewed study of thought-readers, calculating wonders, telepathists, and teleurgists (persons who claimed the power of giving rise to

mechanical changes in remote objects), for he believed in the genuineness of different forms of “trance”; and his honourable capacity for belief, his disinclination to explain anything that was new as the result of deception merely because it was an unusual experience, frequently delivered him over to the devices of cheats.

I can explain here that, from my own experience, his most important medium, Eusapia Palladino, whom, in April, 1894, in association with Lombroso, Enrico Ferri, the psychologist Luigi Ferri, the physiologist Richet, the anthropologist Sergi, and the painter Siemiradzki, I observed in several séances, was, indeed, a “miracle”—*i.e.*, a miracle of adroitness, false bonhomie, well-simulated candour, naïveté, and artistic command of all the symptoms of hystero-epilepsy. In Rome, where the séances were held, she had at her disposal certain extremely adroit male mediums, who were associated in all her tricks. These mediums behaved irreproachably. During the séances, in consequence of emotional excitement and superstitious terror, they suffered publicly from hysterical paroxysms; and they were clever enough to charm Siemiradzki by arranging that “from the fourth dimension” a sheet of writing-paper should fall into his lap, upon which was inscribed in isolated Polish words^[51] a prophecy of the speedy restoration of the kingdom of Poland. I took an exact transcript of this manifestation, and must repeat to-day what I said sixteen years ago, that if (as the mediums asserted, though I do not myself believe it) the spirit of Kosciuszko really wrote these hopeful words—instead of prophesying *finis Poloniæ*—then “in the fourth dimension” the spelling and grammar of the Polish language must have been very badly preserved. (Charles Dickens made the same observation in respect to English spelling as exhibited by “spirits.”)

At that time it was my impression that in these séances Lombroso's interest was in the spiritualists, not in the "spirits," and, in the next place, in the abnormal trance-state of the mediums. This was undoubtedly so at that time; but his subsequent publications have shown that at a later date he went much further than this, and ascribed to the brain-substance the faculty of exercising a powerful influence beyond the periphery of the body (although, according to the dominant and still unshaken opinion, the function of the brain-substance is subject to the law of isolated nervous conduction). For example, in the *Annales des Sciences Psychiques*, 1892, p. 146 *et seq.*, Lombroso wrote as follows:

"Not one of these facts (which we must admit to be facts, since we cannot deny that which we have seen with our own eyes) is of a nature to render it necessary to suppose for its explanation the existence of a world different from that admitted by neuropathologists to exist. I see nothing inadmissible in the supposition that in hysterical and hypnotized persons the stimulation of certain centres, which become powerful owing to the paralyzing of all the others, and thus give rise to a transposition and transmission of psychical forces, may also result in a transformation into luminous or motor force. In this way we can understand how the force, which I will call cortical or cerebral, of a medium can, for example, raise a table from the floor, pluck someone by the beard, strike him or caress him—very frequent phenomena in these séances. In certain conditions, which are very rare, the cerebral movement which we call thought is transmitted to distance, sometimes small, sometimes very considerable. Now, in the same way in which this force is transmitted, it may also become transformed, and the psychic force may manifest itself as a motor force. Do we not see the magnet give rise

to a deflection of the compass-needle without any visible intermediary?"

We must not without further consideration dismiss this idea as absurd, because a very simple experiment suffices to show that the well-known and continuous heat-radiation from the living body—that is to say, the dispersal from the body of ultra-red etheric undulations—undergoes notable and easily measurable changes, in association with every change in the intellectual or emotional equilibrium, just as the arterial pulse, which changes under the influence of emotional disturbance, gives rise to varying oscillations in the air. But we do not possess sense-organs adequate to detect either these atmospheric or these etheric undulations. We were unable to establish their existence until physiology had given us Mosso's plethysmograph and Zamboni's dry battery.

There was a very powerful subjective reason why Lombroso did not apply a strenuous criticism to the occult phenomena of Eusapia, of Pickmann, etc. His own most important ideas had at first encountered doubt from the learned world, and in many cases contempt and ridicule. For this reason he was free from the tendency, traditional in academic circles, towards an extreme reserve in relation to completely new facts and theories contrary to the dominant views, and therefore dangerous to those advocating them. On the contrary, to doubt the good faith of those who were producing the new hypnotic and other mediumistic phenomena was not only contrary to his natural disposition, incapable of any pettiness and indisposed to mistrust anything that was unusual, but it also conflicted with the tendencies resulting from his own personal experiences.

In the year 1872, when he brought before the Medical Academy of Milan his experiments and investigations regarding the etiology of pellagra through the consumption

of spoilt maize, he was accused by the surgeon Porta, Dean of the medical faculty of Pavia and an advocate of the interests of the great landlords, of having falsified his experiments, and of having artificially induced lesions in the animals he experimented on—the result being that the whole matter was turned to ridicule, and he and his pellagrous chickens were made fun of at the next carnival.

Lombroso was accustomed to quote a verse from Dante, “Io non piangea, si dentro impetrai” (“I did not weep, but my heart was turned to stone”), in order to explain the impression left upon him by this experience. The controversies about pellagra continued for about thirty years, until at length, in the year 1902, official recognition was given to his theory by the legislation carried in that year for the prevention of the disease.^[52] The *déclassé*, the Jew, the self-taught man, could not be allowed to take an equal rank in the university life amongst the sons of the well-to-do classes of Northern Italy, so closely allied with the landed interest; and for this reason the most distinguished and influential member of the academic circle described his laborious and tedious researches as falsified. It was this experience which made it psychologically impossible for him, when he came to study occult phenomena, to take into consideration the possibility of fraud.

This helps us to understand how he came to enter upon these investigations, and how it was that he allowed himself in many cases to be deceived regarding the reality of the processes under observation.

But it was precisely his unmitigated positivism which led him *a priori* to regard many things as possible and open to discussion, from which others in their specialist narrowness would have (doubtless in this instance more wisely) turned away. In the year 1888, Lombroso believed himself to have proved the influence of the magnet upon

suggested colour sensations. With this begins the series of his publications upon occult phenomena (“Studi sull’ ipnotismo e sulla credulità,” *Archivio di psichiatria*, 1888, ix., pp. 528–546). From these effects of the magnet (whose subjective causation he left an open question) he drew the following inference: “The magnet is an object known to have effect within the physical sphere. If a new result is seen to follow its application, this must also be of a physical character, and cannot be of any other. Thus in the hypnotized person, whose cerebral molecules are in a condition different from that in the brain of the non-hypnotized person, the magnet has given rise to a rearrangement of the cerebral molecules. If the observed effect is purely subjective, we must conclude that the subjective phenomena are dependent upon the physical conditions, and that the rearrangement of the cerebral molecules gives rise to the phenomenon of so-called polarization.”

Psychologically allied with this is Lombroso’s utterance regarding muscle-reading, to the effect that if an act of the will is effective at a distance, this proves that the will, far from being immaterial, is a phenomenon of movement, and is, therefore, a manifestation of matter. Indeed, he expresses his astonishment that thought-transference is so rarely observed: “May it be that in the forms of energy known under the names of electricity, magnetism, heat, light, and sound, there is produced the same thing as in thought; and if one admits this, may it not be that thought is simply a phenomenon of movement.”^[53]

At the time when these first experimental studies were published, Lombroso was, however, still sceptical regarding spiritualistic phenomena, as is proved by the following utterance, which I publish here in full because in it we can already detect the psychological tendencies which ultimately led him to capitulate—*i.e.*, to recognize the

existence of telepathic phenomena at séances: "Every epoch is unripe for the discoveries which have had few precursors; and if it is unripe it is also unadapted to perceive its own incapacity. The repetition of the same discovery prepares the brain to make it its own, to accept it, and finds minds gradually becoming less hostile to its acceptance. For nearly twenty years the discoverer of the cause of pellagra was regarded throughout Italy as mad; to-day the academic world still laughs at criminal anthropology, at hypnotism, at homeopathy. Who knows whether we, who to-day laugh at spiritualism, may not also be in error? Thanks to the misoneism which lies concealed in us all, we are, as it were, hypnotized against the new ideas, incapable of understanding that we are in error, and like many insane persons, whilst the darkness hides the truth from us, we laugh at those who stand in the light" ("L'influenza della civiltà e dell' occasione sui genio," *Fanfulla della Domenica*, 1883, Nr. 29).

In the year 1891, when Lombroso, in association with Bianchi and Tamburini, had held the first sittings with Eusapia Palladino, he wrote in a letter to Dr. Ciolfi: "I am ashamed and sorrowful that with so much obstinacy I have contested the possibility of the so-called spiritualistic facts. I say the *facts*, for I am inclined to reject the spiritualistic *theory*; but the facts exist, and as regards facts I glory in saying that I am their slave."

There soon followed other sittings, most of them with Eusapia as medium, conducted by Von Aksakow and Du Prel. (To this period belong all the sittings in which I myself took part with Siemiradzki, and in which there took place Lombroso's thorough investigation of the trance-state of both the male mediums mentioned above.) From 1896 onwards, after observations made on the "thought reader" Pickmann, Lombroso published in his *Archivio di*

psichiatria a perpetual record of his mediumistic experiments.

His last work of all, published after his death ("Ricerche sui fenomeni ipnotisi e spiritici," pp. 320, Turin, Unione Editrice, 1910), might be regarded by the credulous as a "Greeting from the Spirit-World." We, however, who renounce this "Spirit-World," may well content ourselves with the undying intellectual achievements of the deceased investigator; to our enemies we freely give the Lombroso of senile decay, for the Lombroso of youth, for ever young, is ours.

APPENDIX B

LIST OF BOOKS CONSULTED

PAOLA E GINA LOMBROSO: Cesare Lombroso, Appunti sulla vita. Turin, 1906.

C. LOMBROSO: Writings, 1854-1909.

C. LOMBROSO: Archivio di psichiatria, Scienze penali ed Antropologia criminale. Turin, 1880-1909.

ENRICO FERRI: Sociologia criminale. Turin, 1902.

FRASSATI: La nuova scuola di diritto penale. Turin, 1891.

M. CECCAREL: Della vita e degli scritti di Paolo Marzolo. Treviso, 1870.

L. BIANCHI: L' Opera di Cesare Lombroso nella scienza e nelle sue applicazioni. Turin, 1906.

MARIO CARRARA: Cesare Lombroso (Annuario della R. Università di Torino, 1909-1910).

H. KURELLA: Cesare Lombroso und die Naturgeschichte des Verbrechers. Hamburg, 1892.

H. KURELLA: Naturgeschichte des Verbrechers. Stuttgart, 1893.

H. KURELLA: Die Grenzen der Zurechnungsfähigkeit und die Kriminal-Anthropologie. Halle a S., 1903.

H. KURELLA: Die soziologische Forschung und Cesare Lombroso, Monatsschr. f. Kriminalpsychologie und Strafrechtsreform, 1906. S. 308 u. ff.

G. ASCHAFFENBURG: Das Verbrechen und seine Bekämpfung. Heidelberg, 1903.

R. SOMMER: Kriminal-psychologie und strafrechtliche Psychopathologie. Leipzig, 1904.

APPENDIX C
FACTS AND DOCUMENTS OF POSITIVISM,
1841-1865

PREPARATORY WORK, 1841-1850

1841. JOULE: Thermogenic Effects of the Electric Current.
HERSCHEL: Philosophy of the Inductive Sciences.
LIST: Das nationale System der politischen
Ökonomie.
1842. R. MAYER: Erhaltung der Energie.
R. WAGNER: Handwörterbuch der Physiologie.
A. COMTE: Cours de philosophie positive.
L. FEUERBACH: Wesen des Christentums.
1843. J. S. MILL: Inductive Logic.
MATTEUCCI: Discovery of the Nerve-Current.
1844. FARADAY: Electrical Conduction and the Nature of
Matter.
1845. *Discovery of the Electrical Incandescent Lamp.*
1846. W. WEBER: Electrodynamic Measurements.
Discovery of Anæsthesia by Ether.
1847. HELMHOLTZ: Die Erhaltung der Kraft (Conservation of
Energy).
Discovery of Anæsthesia by Chloroform.
1848. QUETELET: Du système social.
DUBOIS-REYMOND: Animal Electricity.
Discovery of Gold in California.
1849. *Discoveries of Bacillus of Anthrax and of Aniline
Dyes.*

1850. HERBERT SPENCER: Social Statics (Identity of Laws of Organic and Social Evolution).

DOMINANCE OF POSITIVISM, 1851-1860.

1851-1860. *Mileage of European Railway Systems increases by 250 per cent.*

1851. LYELL: Principles of Geology.

LOMBROSO: Concerning Marzolo's "Monumenti storici rivelati dall' analisi della parola."

SCHOPENHAUER: Parerga und Paralipomena.

Discovery of the Neanderthal Skull and Other Evidences of the Antiquity of Man.

HELMHOLTZ: Ophthalmoscope.

RUHMKORFF: Induction Coil.

RICHARD WAGNER: Oper und Drama.

MILLET: Le Semeur; und COURBET: Das Begräbnis von Ornans.

1852. MOLESCHOTT: Kreislauf des Lebens.

1855. PFLÜGER: Electrotonus.

NAEGELI: Investigations Regarding Vegetable Physiology.

BÜCHNER: Kraft und Stoff (Force and Matter).

FARADAY: Magnetic Philosophy.

Discovery of Hot-air Engine, of Bessemer Steel, and of Aniline-violet.

WALT WHITMAN: Leaves of Grass.

1856.

*Discovery of the Annular Kiln, of the Regenerative
Gas Furnace, and of the Mercurial Air-pump.*

J. VON LIEBIG: Theory and Practice of Agriculture.

LE PLAY: Les Ouvriers Européens.

THE FOUR CLASSICAL YEARS OF POSITIVISM, 1857-1860.

1857. BUNSEN: Exact Methods for the Analysis of Gases.

MOREL: Traité des Dégénérescences.

MARX: Materialist Conception of History.

BUCKLE: History of Civilization.

TOCQUEVILLE: La Révolution et l'Ancien Régime.

FLAUBERT: Madame Bovary.

1858. VIRCHOW: Cellularpathologie.

M. SCHIFF: Lehrbuch der Physiologie.

1859. KIRCHHOFF und BUNSEN: Spectrum Analysis.

DARWIN: Origin of Species.

J. S. MILL: On Liberty.

*Discovery of the Telephone, the Ice Machine, and
the Azo Colouring Matters.*

1860. FECHNER: Psychophysik.

BOUCHER DE PERTHES: De l'Homme Antédiluvien et de
ses Œuvres.

BOUCHER DE PERTHES: Discovery of the Gas Engine.

SEMPER: Der Stil.

AFTER-EFFECTS, 1861-1865.

1861. BACHOFEN: Das Mutterrecht (Matriarchy).
GRIESINGER: Pathology of Mental Disorders.
SCHLEICHER: Grammatik der indogermanischen Sprachen.
MANET: Frühstück im Grünen.
DOSTOIEFFSKY: Raskolnikow.
FONTANE: Wanderungen durch die Mark.
Liberation of Serfs in Russia.
1862. HERBERT SPENCER: First Principles.
IBSEN: The Comedy of Love.
TOURGUENEFF: Fathers and Sons.
Construction of Pacific Railway.
Lincoln's Emancipation Proclamation.
Bismarck's Realpolitik (Blood and Iron).
1863. HUXLEY: Man's Place in Nature.
LYELL: Antiquity of Man.
HUGGINS: Spectra of Fixed Stars and Nebulæ.
BROCA: Sur le Siège, le Diagnostic et la Nature de l'Aphémie.
PASTEUR: Theory of Fermentation.
RENAN: Vie de Jésus.
WUNDT: Vorlesungen über die Menschen und Tierseele.

1864. LOMBROSO: Genio e follia.

A. WAGNER: The Reign of Law in the Apparently
Voluntary Actions of Human Beings.

LASSALLE: Bastiat-Schultze.

DE GONCOURT: Renée Mauperin.

ZOLA: Confession de Claude.

TOLSTOY: War and Peace.

1865. MEYNERT: Anatomy of the Cerebral Cortex and its
Relations to the Sensory Surface of the Body.

LUBBOCK: Prehistoric Times.

LOMBROSO: Aliénations Mentales Étudiées par la
Méthode Expérimentale.

HAECKEL: Generelle Morphologie.

VON LIEBIG: Induktion und Deduktion.

CANNIZZARO: L' emancipazione della ragione.

J. S. MILL: Comte and Positivism.

TAINE: Le Positivisme Anglais.

*Extension of Democracy in England by Russell and
Gladstone.*

Martin Steel, Gas-engines, Influence Machines.

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1. The family name, originally pronounced Lumbroso, shows clearly that the family belonged to the Spanish Jews who were expelled from Spain and settled in North Africa. The name is a Spanish adjective in common use, denoting “clear” or “illuminating.”

2. Bartolomeo Panizza—in 1812-13 army surgeon attached to the grande armée in Russia; in 1815 professor of anatomy at Pavia—discovered the characteristic of the crocodile to which Brücke gave the name of *foramen Panizzæ*; widely known as a teratologist and comparative anatomist; in 1856 published his “Osservazioni sperimentali sul nervo ottico,” based upon the method of secondary degeneration of the medullary sheath, subsequently applied by Gudden with such valuable results.

3. I have not been able to ascertain precisely to what extent Lombroso was influenced by Quetelet. The writings of this investigator did not reach him directly, but they probably influenced him indirectly by way of von Oettingen’s “Moral Statistik.”

4. “Ricerchi sul cretinesimo in Lombardia,” *Gazz. Medica Italiana Lombarda*, No. 13, 1859.

5. Together with Mantegazza, his colleague (as experimental pathologist) in Pavia from 1861 to 1866, Lombroso was the founder of anthropology in Italy. Of anthropology in the modern sense it is possible to speak only since, in the year 1859, Broca founded the Parisian Anthropological Society. Previously the term had denoted, as Kant’s “Anthropology” shows, empirical descriptive psychology. From the first the doctrine of the important varieties of human beings (insanity, cretinism, criminality, genius, degeneration) was for Lombroso a chapter of general anthropology. From the first also he regarded a knowledge of the environment as of the greatest importance for an understanding of the origin of these varieties (*vide infra*).

6. In Pavia, in 1871, he was appointed, in addition, lecturer on forensic medicine and hygiene.

7. Lombroso, as professor of forensic medicine, was also a member of the legal faculty. From 1896 onwards he held, in addition, the position of professor-in-ordinary of psychiatry and superintendent of the psychiatric clinic. As early as 1891 he had received the appointment of professor-extraordinary of psychiatry. In the year 1900, the Minister of Education (L. Bianchi) appointed him professor-in-ordinary of criminal anthropology, whilst he retained the professorship of psychiatry.

8. The title given by the author, then only nineteen years of age, to this study of important relations of correlation, does not give an adequate notion of the real contents of the essay.

9. These two works, with two publications regarding criminal lunatics (1871), and the “Antropometria di 400 delinquenti veneti” (*R.C. dell’ Istituto Lombardo*, fasc. 12) form the nucleus of his subsequent work on “L’ uomo delinquente.”

10. A. Baer, one of the fiercest opponents of criminal anthropology, pushes his criticism so far as to maintain in his leading work “that the formation of the skull is in no way dependent upon that of the brain.” The book, upon p. 12 of which will be found this monumental nonsense, is entitled by Baer “Der Verbrecher in anthropologischer Beziehung” (“The Criminal from the Anthropological Standpoint”), Leipzig, 1893.

11. “Iets over criminelles Anthropologie,” Haarlem, 1896; P. H. J. Berends, “Eenige Schedelmaten van Recruten, Mordenaars, Paranoïsten, Epileptici, en Imbecillen,” Nymegen, 1896.

12. The “Inca bone” will be found figured in Toldt’s “Atlas of Human Anatomy” (London: Rebman, Limited), p. 100, fig. 218, where it is described as “a large Wormian bone in the uppermost part of the lambdoid suture.”

13. Certain peculiarities are discoverable in the brains of criminals which are not yet explicable on comparative anatomical considerations. I have described these as *atypical*, and in my “Natural History of the Criminal” I have collected and discussed them. Since the date of publication of this work (1893) only one extensive investigation of the brains of criminals has been undertaken, and in this the number of brains dealt with was about equal to the number examined in all the previous investigations put together. In so far as it furnishes any new particulars, this investigation confirms the doctrine of criminal anthropology, a fact of especial interest for the reason that the brains examined were chiefly those of women (Leggiardi-Laura, *Rivista di sc. biologiche*, ii., 4-5, 1900; *ibid.*, *Giorn. de le R. Accademia di Torino*, 1900, fasc. 5).

14. The *ear-point*, or *tubercle of Darwin*, is a small prominence on the edge of the helix, an atavistic vestige of the former point of the ear. It is sometimes called *Woolner’s tip*, Darwin’s attention having been drawn to this prominence by the sculptor Woolner (Toldt’s “Atlas of Human Anatomy,” London, Rebman, Limited).

15. The Germans speak of thieves as being *langfingerig*, “long-fingered,” in the same sense in which we in England speak of them as “light-fingered.”—TRANSLATOR.

16. “La Donna Delinquente, la Prostituta, e la Donna Normale.”

17. Havelock Ellis confirms this statement, as the result of a most laborious investigation (“Man and Woman,” 4th edition, London, 1904, chap. xvi, and appendix).

[18](#). Aschaffenburg also writes: "I believe that in some instances we are entitled to regard the prostitute as the equivalent of the criminal; but, notwithstanding this, I believe that the complement to the prostitute is to be looked for, not in the thief, the pickpocket, or the forger, but rather in the beggar and the vagrant."

TRANSLATOR'S NOTE.—Lombroso's views regarding the prostitute are disputed by many who accept the greater part of his teachings in the matter of criminal anthropology. Prostitution is largely a socially-caused phenomenon, and therefore prostitutes, in so far as they are the complements of criminals will be mainly complementary to socially-caused and occasional "criminals," *not* to habitual and instinctive criminals. Thus, Bloch ("The Sexual Life of Our Time," London, Rebman, Ltd., 1909, p. 401), while admitting that the world of crime is very near to that of prostitution—because the prostitute has need of a man to whom she is not simply a chattel, to whom she can be something from the personal point of view, and also because she shares with the criminal the life of the social pariah—goes on to say: "Lombroso's doctrine that prostitution is throughout equivalent to criminality is certainly not justified. It is only by the outward circumstances of their life that the bulk of prostitutes are driven into intimate relations with criminality." For a careful consideration of the pros and cons of this profoundly important question, with reference to leading authorities, see Havelock Ellis, "Sex in Relation to Society," pp. 266-269.

[19](#). In Germany in the year 1899 ("Statistik des Deutschen Reichs," vol. xxxii., II., 50-65), for every 100 men condemned for the offences specified below, there were of women convicted of the like offence:

Crime and misdemeanour in general	19·3
Breaches of the peace	12·0
Perjury	14·6
False accusation	35·8
Procurement	164·6
Procuring abortion	375·9
Infant exposure	400·0
Fraud	20·0
Injury to property	6·0
Simple assault	11·8
Aggravated assault	7·9
Petty larceny	37·9
Major thefts	13·3

[20](#). Compare Walter Bagehot's phrase, "the pain of a new idea," which will be found in his brilliant little volume on "Physics and Politics" (p. 163).—TRANSLATOR.

[21](#). Compare also Havelock Ellis, "Studies in the Psychology of Sex," vol. vi., "Sex in Relation to Society," where this fundamental and profoundly important paradox is most thoughtfully expounded. After explaining the difference between *traditional morality* and *ideal morality*, the former being concerned with the accepted standards of social conduct, the latter embodying an attempt to reform those standards, and showing how the two moralities are of necessity opposed each to the other, Ellis goes on to say (*op. cit.*, p. 368): "We have to remember that they are both equally sound and equally indispensable, not only to those who accept them, but to the community which they continue to hold in vital theoretical balance. We have seen them both, for instance, applied to the question of prostitution; traditional morality defends prostitution, not for its own sake, but for the sake of the marriage system, which it regards as sufficiently precious to be worth a sacrifice, while ideal morality refuses to accept the necessity of prostitution, and looks forward to progressive changes in the marriage system which will modify and diminish prostitution."—TRANSLATOR.

[22](#). Translated as "The Man of Genius." London: Walter Scott.

[23](#). This brilliant expert has given the best summary of his own aims in the speech which he delivered in the year 1870 in Cincinnati, at the Congress for Prison Reform. He said: "When the chains have been removed, when corporal punishment has been abolished, when the treatment of prisoners has become something altogether different from what it has been in the past, when, in a word, in penology severity has been replaced by mildness and consideration, still it will not be easy to say if and to what extent this humane spirit will have dammed the spreading flood of crime, nor should I find it easy to determine precisely the grounds by which we have been guided to a decision whether severity or mildness is to be preferred.

"To study the criminal, this is the first and the greatest need. After so many years filled with work and discussion we have arrived at the point from which we ought to have started, precisely because, after taking such an infinity of trouble, we have discovered nothing but emptiness."

[24](#). "Pensieri sui processo Steinheil," *Archivio di psichiatria*, etc., vol. xxx., p. 87, 1909.

[25](#). The monumental work of the Public Prosecutor, E. Wulffen (Berlin, 1909), offers a notable exception to this generalization.

[26](#). The born criminal is, invariably, utterly destitute of the feeling that he is doing wrong. Murderers frequently describe their misdeeds as trifles, as pardonable errors of youth, and they are astonished and indignant that they are so severely punished. To the true criminal, the pangs of conscience are entirely unknown, and a brutish indifference to death is a most frequent manifestation. This is shown very clearly in the turns of phrase met with in the jargon of criminals in relation to the punishment of execution. One of the most sensational trials in recent days—the trial of Heinze and of the prostitute with

whom he lived—served to acquaint the general public with the phrase “cut the cabbage” for decapitation. The expression “to sneeze in the sack” corresponds to this (the guillotined head, when severed by the falling knife, is received in a sack); and there are many others. Lombroso gives numerous examples of a perfect equanimity persisting up to the very moment of death. One of his reports (*Archivio di psichiatria*, 1891, Section 4) tells us of a murderer who, whilst awaiting his execution, drew caricatures of the spectators. Allied to this indifference, appears to be the puzzling impulse of professional murderers before the commission of a crime to speak openly of their plans, and even to describe the actual details of the proposed murder. Troppmann, although he lied in court during the trial, while confined in his cell made drawings of the way in which he had committed the murder.

[27.](#) Cf. F. Max Müller, “The Science of Thought,” 1887, pp. 270, 271: “If the science of language has proved anything, it has proved that every term which is applied to a particular idea or object, unless it be a proper name, is already a general term. *Man* meant originally anything that could think; *serpent*, anything that could creep; *fruit*, anything that could be eaten.”—TRANSLATOR.

[28.](#) Very various significations are attached to the term “criminal psychology.” Some denote by it a general theory of responsibility; some, an account of the mental disorders which have forensic importance; some, the theory of the will, of purpose, of deliberation, of design, of resolve, of the associations with and the aids to crime; some, the developmental history of individual criminals, or a description of the means by which they have been led to commit some particular crime, or which they have adopted in the course of its performance; some, finally, denote by the term a classification of the world of criminals in accordance with character, after the manner of Benedikt and Krauss. The teaching of Lombroso is concerned solely with the elements of the criminal nature which possess an anthropological interest, just as the ethnologist endeavours to elucidate the natural character of a race.

[29.](#) “Naturgeschichte des Verbrechers” (“The Natural History of the Criminal”), pp. 230–246.

[30.](#) See above, p. [42](#), the observations of Professor Ranke.

[31.](#) In Lombroso’s “Palimsesti del carcere” (1891) are to be found extremely interesting histories of the childhood of criminals, to which, in my German edition of the work, I have added certain observations of my own (Hamburg, 1900).

[32.](#) Lombroso’s syllogism: “All criminals are morally insane, all epileptics are morally insane, therefore all criminals are epileptics,” should have been stated in the hypothetical rather than in the categorical form.

[33.](#) “Il delitto politico e le rivoluzioni,” Turin, Fratelli Bocca, 1890. (A French translation of this work has been published.)

[34.](#) *Archivio di psichiatria*, vol. vi., p. 148, 1884.

[35.](#) See p. [33](#).

[36.](#) The *fundamental biogenetic law* runs as follows: "The history of the foetus is a recapitulation of the history of the race, or, in other words, ontogeny is a recapitulation of phylogeny."—Haeckel, "The Evolution of Man," Popular English Edition, p. 2.

[37.](#) For the reason that in such a moral scheme the true social instinct is lacking.

[38.](#) In his earliest great imaginative work, "The Time Machine," Mr. H. G. Wells imagines in the distant future of our race such a differentiation into two types; the "Morlocks," the underground race, who had taken to preying on the above-ground moiety, were the descendants of our present proletarians.—TRANSLATOR.

[39.](#) In 1899 he was chosen as municipal councillor by one of the working-class quarters of Turin, and sat for some years. In this position, however, he attracted public attention only by his successful resistance to a proposed large municipal loan for the purpose of building a great electric power station, to be driven by water-power.

[40.](#) Of parliamentary government he writes ("Delitto politico," p. 531): "Parliamentary government, which has with justice been stigmatized as the greatest superstition of modern times, offers greater and ever greater obstacles to the introduction of a good method of government, so that, whilst the electors lose sight more and more of the high ideals of the State, some of the elected representatives obtain a freedom from responsibility which tends to the advantage of crime—which may, indeed, make of them occasional criminals, if they have not inherited the criminal nature. For five centuries Italy has fought for the abolition of the privileges of priests, feudal lords, and kings; and now in the name of freedom we endow 500 kinglets with inordinate privileges, and even free them from liability to prosecution for ordinary crime!"

And of universal suffrage he writes: "In the general view, universal suffrage works for the abolition of class distinctions, but in the hands of the corrupt and the uncultured it may be directly subversive of freedom.

"Let us therefore advocate everything that can be for the advantage of the common people, but let us at the same time give these latter only so much power as may be necessary to wring from the upper classes the concessions needful for the good of the commonalty" ("L'uomo delinquente: Cause e rimedii," 1897, pp. 442, 443).

[41.](#) "L'uomo delinquente."

[42.](#) See also R. Sommer, *Kriminalpsychologie*, 1904, p. 6 *et seq.* It may be mentioned that Sommer, in the spirit of positive science, has discovered

methods by which psychomotor processes, some of which possess great crimino-psychological importance, may be rendered objectively cognizable.

[43](#). "Della pene" (R. Istituto Lombardo, Rendic, second series, vol. viii., pp. 993-1005, 1875); "Sull' incremento del delitto in Italia e sui mezzi di arrestarlo," Turin, 1879; *Troppo presto*. "Appunti al nuovo progetto di codice penale," Turin, 1888; "Il delitto politico e le rivoluzioni," Turin, 1890. In addition, there was founded in the year 1880, in association with Ferri and Garofalo, the *Archivio di psichiatria*, "Scienze penali ed antropologia criminale" (Turin, E. Loescher).

[44](#). See above, p. [124](#) *et seq.*

[45](#). In view of the fact that shortly after the death of Lombroso it was widely asserted both in the medical and the lay Press of this country and of the United States that Lombroso's views regarding the nature of pellagra had recently been shown to be erroneous, I wrote to Dr. Kurella for further information. He replied as follows: "On receipt of your letter, I wrote to an Italian colleague to inquire of him what were the views presently held regarding the etiology of pellagra. He informs me that the majority of experimental pathologists in Italy remain convinced of the truth of Lombroso's views. He also refers me to this year's (1910) *Wiener Klinische Wochenschrift*, No. 23, p. 963, where there is an article by Raubitschek, an Austrian experimenter, who claims to have confirmed Lombroso's theory by means of experiments on rats."

Unquestionably, therefore, numerous investigators, both in Italy and elsewhere, hold fast by one form or other of the *zeist* theory of the etiology of pellagra, which Lombroso believed himself to have established beyond the possibility of refutation. But during the past year this theory has, nevertheless, been largely discredited. In the *Lancet* of February 12, 1910, will be found the report of the Pellagra Investigation Commission, in which some of the alternative hypotheses are discussed. Dr. Sambon was despatched by this Commission in charge of the Pellagra Field Commission in Italy, and in an editorial note in the *British Medical Journal* of May 21, we are told that a telegram had been received from Dr. Sambon, under date of May 13, stating "The Commission has definitely proved that maize is not the cause of pellagra; the parasitic conveyor is the *Simulium reptans*." It is probable that the matter will soon be definitely settled, and it cannot be denied that pellagra presents many analogies with other endemic disorders due to protozoal infection conveyed by the bite of a blood-sucking insect.—TRANSLATOR.

[46](#). See the translation of Count Tolstoy's pamphlet, "The Hanging Czar," published by the Independent Labour Party.—TRANSLATOR.

[47](#). In view of this advice, it is interesting to note that I have just received a medical periodical published in the United States, from which I learn that during the winter of 1909-1910 the Romance and Slav population of the towns of the Mississippi States has been extensively ravaged by pellagra. As late as

the year 1908, in the great American textbook, Osler's "Principles and Practice of Medicine," we learn that pellagra "has not been observed in the United States!"

TRANSLATOR'S NOTE.—Dr. Kurella writes to me to the following effect: "I remember twenty-five years ago, in asylums both in Pennsylvania and in Illinois, finding cases of pellagra, with the characteristic skin-lesions, in addition to the mental disorder. But my American colleagues then ridiculed my diagnosis."

[48](#). Among other tributes to Lombroso may be mentioned those which he received at the International Congress of Criminal Anthropology, held at Turin in the year 1906.

[49](#). English translation in Scott's Contemporary Science Series.

[50](#). Milan, 1878. A volume of the International Scientific Series.

[51](#). Pure nominatives, such as anyone could extract from a dictionary in default of all knowledge of the language.

[52](#). See note to page [152](#).

[53](#). *Annales des Sciences Psychiques*, 1904.

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TRANSCRIBER'S NOTES

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